
From: Lara Fleming <Fleming.Lara@comcare.gov.au>
Sent: Tuesday, 1 June 2021 4:44 PM
To: General.Enquiries
Subject: Claim 1326583/1 McLean Richard [SEC=OFFICIAL:Sensitive]

OFFICIAL: Sensitive

From: Dr Rich Mclean <rich@richmclean.com.au>
Sent: Monday, 31 May 2021 10:52 AM
To: Ombudsman <ombudsman@ombudsman.gov.au>
Cc: Doug <dandamclean@bigpond.com>; Rich McLean <richarddrawsstuff@gmail.com>; Lara Fleming <Fleming.Lara@comcare.gov.au>
Subject: Re: Commonwealth Ombudsman Complaint - 2021-704235 Richard McLean

Ombudsman,

I refer to the below email from worksafe.

They guarantee that my insurer is Comcare.

I disagree with your statement

I am making a whistleblower statement - and have - at

www.richmclean.com.au

If you do not act the Government will be responsible for rejecting a free citizens rights as a whistleblower.

Dr Rich McLean

My whistleblower statement is at www.richmclean.com.au

Good afternoon Rich,

Thank you for your email.

Any further questions relating to your claim should be directed to Comcare, on 1300 366 979, Monday to Friday, between 8.30am and 5pm AEST.

Kind regards,

Meg.

MEG
Advisor

info@worksafe.vic.gov.au
Tel/ 1800 136 089 or 9641 1444

Head Office, 1 Malop Street
Geelong VIC 3220
www.worksafe.vic.gov.au



Whilst the Advisory Service endeavours to provide accurate information and advice, all advice provided is based on the information received in your email and should not be assumed to apply to other situations or circumstances. Please consider the application of the advice to your individual circumstances, taking into account any relevant statutory obligation or duty, before acting upon it.

BE GREEN, READ FROM THE SCREEN

▼ Rich McLean ---08/05/2021 02:42:54 PM---Thanks Carly This is all a bit new to me so don't know who to speak to or turn to!

From: Rich McLean <richarddrawsstuff@gmail.com>
To: Advisory_Service/Public_Affairs/VWA@WorkCover
Date: 08/05/2021 02:42 PM
Subject: Re: GT35- Re: GT6|Re: URGENT REVIEW S29

Thanks Carly

This is all a bit new to me so don't know who to speak to or turn to!

Thanks for your reply

I will follow it up with them

If that it a block what shall I do?

Kindly

Dr Rich McLean

Human Rights Awarded Autobiographer & Registered Therapeutic Supports Provider for the NDIS | Artist-Life-Coaching | Traditional drawing / Digital illustrator / International Recovery Expert & Advocate

Live your best life!

Discover me @ www.richmclean.com.au

Call me @ +61 400639248

Email me @ rich@richmclean.com.au

“The bad news is that nothing is permanent, but the good news is that nothing is permanent.” - Buddhist adage

I acknowledge the Indigenous people as the traditional custodians of the land where we live, learn & work.

I'm out and about! This email is sent from my phone

On 7 May 2021, at 2:51 pm, Advisory_Service@worksafe.vic.gov.au wrote:

Good Afternoon Rich,

Thank you for your e-mail.

Any further questions relating to your claim will need to be directed to Comcare as I can't confirm what their legislative requirement for providing an outcome on a claim is.

Their contact number is 1300 366 979

Kind Regards

Carly

Carly
Advisor

info@worksafe.vic.gov.au
Tel/ 1800 136 089 or
9641 1444

Head Office, 1 Malop
Street
Geelong VIC 3220
www.worksafe.vic.gov.au

<26424030.gif>

<ecblank.gif>

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BE GREEN, READ FROM THE SCREEN

<graycol.gif>

Rich McLean ---04/05/2021 06:07:09 PM---Dear Worksafe thanks so much I forwarded this do you think its ok?

From: Rich McLean <richarddrawsstuff@gmail.com>
To: Advisory_Service/Public_Affairs/VWA@WorkCover
Date: 04/05/2021 06:07 PM
Subject: Re: GT6|Re: URGENT REVIEW S29

Dear Worksafe thanks so much

I forwarded this do you think its ok?

When do you think is a reasonable timeframe I'll hear back?

Im staving and squattinglol

Thanks so much

Kindly

Rich

On 4 May 2021, at 3:39 pm, Rich McLean <richarddrawsstuff@gmail.com> wrote:

From R Mclean

Re: Urgent review

Dear Commcare, the WorkSafe Advisory has suggested I forward my claim on to Commcare

Could you please acknowledge this email and if necessary forward it to the relevant department.

Thanks in advance for attending to this and also I was just wondering if you could acknowledge this with a receipt and a turn around time.

Grateful for your time.

Kindly

Rich M

<injuryclaimform.pdf>
<workcoverGPCertificates.pdf>

Begin forwarded message:

From: Advisory_Service@worksafe.vic.gov.au
Subject: GT6|Re: URGENT REVIEW S29
Date: 4 May 2021 at 3:25:56 pm AEST
To: Rich McLean <richarddrawsstuff@gmail.com>
Reply-To: Advisory_Service@worksafe.vic.gov.au

Hello Richard,
Thank you for contacting the WorkSafe Advisory service.

With regards to your claim for worker's compensation, the employer noted on the claim form, NDIS/NDIA is not covered under the Victorian WorkCover scheme.

Being a federal agency, we advise lodging the claim with [Comcare](#), the federal worker's compensation authority.

If you have any further questions, please contact WorkSafe Advisory on 1800 136 089, between 7:30am and 6:30pm, Monday to Friday.

Best regards,
Stuart.

Stuart
Advisor info@worksafe.vic.gov.au
Tel/ 1800 136 089 or 9641 1444

Head Office, 1 Malop Street
Geelong VIC 3220
www.worksafe.vic.gov.au

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<ecblank.gif>

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BE GREEN, READ FROM THE SCREEN

<graycol.gif>

Rich McLean ---04/05/2021 01:11:13 PM---From: Rich McLean <richarddrawsstuff@gmail.com> To: advisory_service, Rich Mclean <rich@richmclean.com.au>, Richard McLean <ric

From: Rich McLean <richarddrawsstuff@gmail.com>

To: advisory_service, Rich Mclean <rich@richmclean.com.au>, Richard McLean <richard@creativemusings.com.au>, Richard McLean <richarddrawsstuff@gmail.com>

Date: 04/05/2021 01:11 PM

Subject: URGENT REVIEW S29

[attachment "injuryclaimform.pdf" deleted by sender] [attachment "workcoverGPCertificates.pdf" deleted by sender]

On 31 May 2021, at 9:30 am, ombudsman@ombudsman.gov.au wrote:

Our ref: 2021-704235

Dear Dr McLean

Thank you for your correspondence.

We are unable to consider your matter as it is not within our jurisdiction. The Commonwealth Ombudsman's Office handles complaints about the administrative actions of Australian Federal Government agencies.

Under the NDIS Terms of Business for Registered Providers, you are responsible for insuring yourself against instances that may result in a loss of income.

This, therefore, would not involve administrative actions of Australian Federal Government agencies.

To learn more about insurance for NDIS registered providers or support workers, visit the finder [website](#).

Alternatively, you could contact WorkSafe Victoria at www.worksafe.vic.gov.au

Unless you are responding to a request for information made by our Office, within the timeframe specified, please do not reply to this email. Any emails sent to this address which are not a response to a request for information are unlikely to be responded to.

Yours sincerely
Helen

Complaint Resolution Officer
Commonwealth Ombudsman
Phone: 1300 362 072

Email: ombudsman@ombudsman.gov.au

Website: ombudsman.gov.au

[<Mail Attachment.png>](#)

Influencing systemic improvement in public administration

The Office of the Commonwealth Ombudsman acknowledges the traditional owners of country throughout Australia and their continuing connection to land, culture and community. We pay our respects to elders past and present.

COMMONWEALTH OMBUDSMAN - IMPORTANT CONFIDENTIALITY NOTICE

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- * about an identifiable individual;
- * subject to client legal privilege or other privilege; or
- * subject to a statutory or other requirement of confidentiality.

If you have received this message in error, please call 1300 362 072 to inform the sender so that future errors can be avoided.

Sensitive: This document may contain sensitive information as defined under Section 6 of the Privacy Act.

From: Lara Fleming <Fleming.Lara@comcare.gov.au>
Sent: Tuesday, 1 June 2021 4:39 PM
To: General.Enquiries
Subject: Claim 1326583/1 McLean Richard [SEC=OFFICIAL:Sensitive]
Attachments: registration.provider.certificate.pdf; Untitled attachment 00182.htm; image001.png; Untitled attachment 00185.htm; MCLEAN, RICHARD WILLIAM - Invoice 300063677318.pdf; Untitled attachment 00188.htm

OFFICIAL: Sensitive

Please scan email and attachments to file - Claim 1326583/1 McLean Richard

From: Dr Rich Mclean <rich@richmclean.com.au>
Sent: Monday, 31 May 2021 11:14 AM
To: Joshua Boyes <jboyes@shine.com.au>
Cc: Lara Fleming <Fleming.Lara@comcare.gov.au>
Subject: From Rich Mclean Ombudsman ref Our ref: 2021-704235

Josh,

Here is an invoice from the NDIA in which an advance payment should be paid back - hence they are my employer.

Comsure has rejected my workers comp claim. - worth a damn lot of money.

Additionally here is my contract with the from the NDIS Quality and safeGuards Commission. They can hire and fire me.

Sensitive: This document may contain sensitive information as defined under Section 6 of the Privacy Act.



**NDIS Quality
and Safeguards
Commission**

For the attention of the:
Chief Executive Officer / Board Chair / Principal
MCLEAN, RICHARD WILLIAM
Trading as Rich McLean, Arts Therapist, Peer-Support Worker & Mental Health Advocate
24 Rosella Court
Ocean Grove VIC 3226

30 June 2019

NDIS Quality and Safeguards Commission
Your new certificate of registration as a registered NDIS provider

Dear Chief Executive Officer

In June 2019, all registered providers in the Australian Capital Territory (ACT), Victoria (Vic) Queensland (Qld), Tasmania (Tas) and the Northern Territory (NT) received a provider information email to let them know what is happening with the transfer of registration as providers of supports under the National Disability Insurance Scheme (NDIS). This followed an email to all providers in the ACT, Vic, Qld, Tas and the NT in May 2019. You can find a copy of both emails on the NDIS Commission website at www.ndiscommission.gov.au.

Your registration to provide supports under the NDIS will be transferred from the National Disability Insurance Agency (NDIA) to the NDIS Commission on 1 July 2019, by the operation of the National Disability Insurance Scheme (Quality and Safeguards Commission and Other Measures) Transitional Rules 2018. Under those rules, the Commissioner will register MCLEAN, RICHARD WILLIAM (trading as Rich McLean, Arts Therapist, Peer-Support Worker & Mental Health Advocate) as a registered NDIS provider under section 73E of the National Disability Insurance Scheme Act 2013 (the Act).

The Commissioner of the NDIS Commission is now issuing you with its Certificate of Registration in accordance with paragraph 73E(4)(b) of the Act. This certificate is attached and will apply to MCLEAN, RICHARD WILLIAM (trading as Rich McLean, Arts Therapist, Peer-Support Worker & Mental Health Advocate) from 1 July 2019. Attached is an information guide relating to NDIS provider obligations under the NDIS Commission.

Your Registration ID is: 4-433J-962

You will need this Registration ID when contacting the NDIS Commission in relation to your registration and in order to access the NDIS Commission Portal located on the NDIS Commission website.

Certificate of registration

The details of your registration, including any classes of supports (previously referred to as groups of supports) that you are registered to provide, and the conditions of registration are identified in the Certificate of Registration. It is important that you are familiar with the conditions that apply to your registration and your responsibilities as a registered NDIS provider.

Registration scope

Given you will be a registered NDIS provider from 1 July 2019, it is important to be registered in relation to all supports and services that you deliver to participants with NDIA managed plans.

The transfer of provider registration is happening in the ACT, Vic, Qld, Tas and the NT as of 1 July 2019, NSW and SA transitioned on 1 July 2018. The NDIS Commission will have authority to register NDIS providers operating in all states and territories except Western Australia (WA) from 1 July 2019.

If you are delivering, or intending to deliver, supports or services to participants who reside in WA, you will need to continue your registration with the NDIA and meet the quality and safeguarding requirements in WA. More information about this is available at <https://www.ndiscommission.gov.au/about/start-dates/wa>.

Register of NDIS providers

Under section 73ZS of the Act, the Commissioner of the NDIS Commission maintains a public register of registered NDIS providers. The register is published on the NDIS Commission's website at www.ndiscommission.gov.au.

If you consider the information about you on the NDIS Provider register is inaccurate, please contact the NDIS Commission by sending an email to registration@ndiscommission.gov.au.

Next steps

Your registration will transfer to the NDIS Commission as of 1 July 2019. You will then need to start getting ready to apply for renewal of your registration.

You will need to make an application for registration under the new NDIS Commission arrangements before the end of the period specified in your Certificate of Registration. This will involve the following:

1. Submitting an application for renewal using the NDIS Commission Portal and your Registration ID. You will be required to confirm key information about your registration, including the key personnel.
2. You will also:
 - a. Undertake a self-assessment of your organisation against the NDIS Practice Standards relevant to the supports and services you provide to participants.
 - b. Arrange for an assessment against the NDIS Practice Standards. This involves a NDIS Commission approved quality auditor assessing your organisation, using either a verification or a certification method, against relevant NDIS Practice Standards. Information about approved quality auditors is published on the NDIS Commission website. Your Certificate of Registration attached specifies the timing of quality audits for your organisation.
3. To retain your organisation's registration, your organisation must submit the registration renewal application with the NDIS Commission by **31/03/2020**. This date is the end of the period of registration as stated on your Certificate of Registration. If your organisation does not submit the renewal application by this date, your organisation's status as a registered NDIS provider will lapse.

Please be aware that any registration groups your organisation is currently registered to provide to participants residing in the ACT, Vic, Qld, Tas or the NT will transfer to your registration with the NDIS Commission on 1 July 2019. As part of the registration renewal process there will be the opportunity to vary these where your organisation intends to provide different supports or services.

NDIS Commission Portal

All users linked to your organisation in the NDIA's Myplace portal will also have access to your organisation's details in the NDIS Commission Portal.

Your organisation will be required to use the NDIS Commission Portal to undertake the registration renewal process. Other functionality available on the NDIS Commission Portal, including how to provide access for additional users, is detailed on the NDIS Commission Portal webpage <https://www.ndiscommission.gov.au/providers/provider-registration/ndis-commission-portal>.

On 1 July 2019, the 'My Reportable Incidents' page will be available via the NDIS Commission Portal. This will be the way registered NDIS providers in all states and territories (except for Western Australia) notify the NDIS Commission of Reportable Incidents.

Information for providers registered for Specialist Positive Behaviour Support (110)

To support safeguarding for people subject to restrictive practices, the National Disability Insurance Scheme (Restrictive Practices and Behaviour Support) Rules 2018 require that a registered provider of specialist behaviour support services must use a behaviour support practitioner whom the NDIS Quality and Safeguards Commissioner considers suitable. To comply with this requirement, section 29 requires that specialist behaviour support providers notify the NDIS Commission by 31 July 2019 of their behaviour support practitioner(s).

To notify the NDIS Commission of your behaviour support practitioner(s) please go to the Behaviour Support webpage <https://www.ndiscommission.gov.au/providers/provider-responsibilities/behaviour-support> and follow the link: Notification of Behaviour Support Practitioners (s29). Details of your practitioner(s) can be entered into this form and submitted online to the NDIS Commission.

On the basis of the information collected from your notification, your practitioner(s) will be considered provisionally suitable as NDIS behaviour support practitioners and advised of this in writing.

Information for providers implementing a regulated restrictive practice in accordance with a behaviour support plan

The National Disability Insurance Scheme (Restrictive Practices and Behaviour Support) Rules 2018 require that any provider using a regulated restrictive practice must only use the practice in accordance with a behaviour support plan. The provider must also report monthly to the NDIS Commission on the use of restrictive practices. This applies to all new behaviour support plans developed from 1 July 2019 that contain regulated restrictive practices. There are specific state and territory transitional arrangements for what to do in relation to behaviour support plans that are already in place at 1 July 2019. Further information is available at the Behaviour Support webpage <https://www.ndiscommission.gov.au/providers/provider-responsibilities/behaviour-support>.

Please find attached your organisation's Certificate of Registration, including conditions of registration.

NDIS Provider Registration
NDIS Quality and Safeguards Commission
[NDISCommission.gov.au](https://www.ndiscommission.gov.au)

registration@ndiscommission.gov.au
PO Box 210
PENRITH NSW 2750



**NDIS Quality
and Safeguards
Commission**

Certificate of Registration

Issued pursuant to subsection 73E(4) of the National Disability Insurance Scheme Act 2013
(the NDIS Act)

As of 1 July 2019, MCLEAN, RICHARD WILLIAM (72066207615) of 24 Rosella Court Ocean Grove VIC
3226 is a **registered NDIS provider**

Registration ID:	4-433J-962
Legal name:	MCLEAN, RICHARD WILLIAM
Business/trading name:	Rich McLean, Arts Therapist, Peer-Support Worker & Mental Health Advocate
ABN:	72066207615
ACN:	Not specified
Primary address / head office:	24 Rosella Court Ocean Grove VIC 3226
Registered provider in relation to:	The provision of the following classes of supports under participants' plans.
Registration classes:	Therapeutic Supports
Period for which the registration is in force:	From 1 July 2019 until 31 Mar 2020

Note: If you submit an application for further registration before the date identified above as the end of the period for which your registration is in force, then by operation of section 73K of the NDIS Act, your registration will continue in force until the Commission makes a decision on the application under subsection 73E(1) of the NDIS Act.

Conditions of registration

Your registration as a registered NDIS provider is subject to the conditions set out in the attachment to this Certificate of Registration.

Graeme Head AO

Commissioner

NDISCommission.gov.au

registration@ndiscommission.gov.au

PO Box 210

PENRITH NSW 2750

CONDITIONS OF REGISTRATION ATTACHMENT

REGISTRATION ID 4-433J-962

Conditions of registration under section 73F of the National Disability Insurance Scheme Act 2013 (the NDIS Act)

Your registration as a registered NDIS provider is subject to the following conditions:

Standard conditions of registration – subsection 73F(2) of the NDIS Act

1. There are standard conditions which apply to all registered NDIS providers under section 73F(2) of the Act. These are:
 - a. a condition that you comply with all applicable requirements imposed by a law of the Commonwealth or a law of the State or Territory in which you operate as a registered NDIS provider
 - b. a condition that you comply with all applicable requirements of the NDIS Code of Conduct
 - c. a condition that you comply with all applicable standards and other requirements of the NDIS Practice Standards
 - d. a condition that you comply with all applicable requirements relating to record keeping prescribed by the National Disability Insurance Scheme rules for the purposes of section 73Q
 - e. a condition that you implement and maintain the applicable complaints management and resolution system in accordance with section 73W
 - f. a condition that you comply with all applicable requirements relating to complaints prescribed by the National Disability Insurance Scheme rules for the purposes of section 73X
 - g. a condition that you implement and maintain the applicable incident management system in accordance with section 73Y
 - h. a condition that you comply with all applicable requirements relating to reportable incidents prescribed by the National Disability Insurance Scheme rules for the purposes of section 73Z
 - i. a condition that you give to the NDIS Commissioner, on request, information specified in the request within the period specified in the request (which must not be less than 14 days).

Conditions imposed under section 73G of the NDIS Act

2. If, before the date specified on your Certificate of Registration as the last date of your period of registration, you submit an application for further registration you must take all action reasonably necessary to ensure that an approved quality auditor (as defined by the NDIS Act):
 - (a) completes a quality audit entailing an assessment of you against the applicable standards and other requirements prescribed by the NDIS Practice Standards (as referred to in paragraph 73E(1)(a) of the Act and
 - (b) submits the results of the completed audit to the NDIS Commission within 9 months after that last date.

Note: If you submit an application for further registration before the date specified on your Certificate of Registration as the last date of your period of registration, then by operation of section 73K of the NDIS Act, the registration will continue in force until the NDIS Commission makes a decision on the application under subsection 73E(1) of the NDIS Act.

Conditions imposed by rules made under sections 73H and 209 of the NDIS Act

3. It is a condition of your registration that you comply with:

- (a) Part 4 of the *National Disability Insurance Scheme (Provider Registration and Practice Standards) Rules 2018*; and
- (b) Parts 2 – 4 (as applicable) of the *National Disability Insurance Scheme (Restrictive Practices and Behaviour Support) Rules 2018*; and
- (c) if you are registered to provide specialist disability accommodation, Parts 2 and 5 of the *National Disability Insurance Scheme (Specialist Disability Accommodation Condition) Rules 2018*.

Note: Links to and information about these conditions are available at www.ndiscommission.gov.au.

It is a registration provider certificate.

In addition, I have made a whistleblower statement here, which I have sent to the ombudsman.

www.richmclean.com.au

I deserve protection as a whistleblower.

This has been denied.

If you are legitimate you will see that the ombudsman has refused my whistleblower statement with this response to Helen from the ombudsman:

Dear Helen,

I have evidence that you are rejecting my whistleblower statement, that is about an endemic cover up by the Government.

It is located at www.richmclean.com.au

Other than that, I request information about why you have not provided me with NDIS terms of business for Registered providers?

Please answer this.

Comcare is a federal Government agency that has also rejected my claim.

I have an invoice / statement from the NDIA in which they forward me a cheque or rather an invoice, for an advance payment.

(They therefore are my employers).

This proves as well as my contract, I am an employee of the NDIA, and I deserve compensation.

I have already contacted Worksfae and they say ComCare is my insurer.

Please comment

Dr Rich Mclean

On 31 May 2021, at 9:30 am, ombudsman@ombudsman.gov.au wrote:

FOI request - 2021/4547

Our ref: 2021-704235

Dear Dr McLean

Thank you for your correspondence.

We are unable to consider your matter as it is not within our jurisdiction. The Commonwealth Ombudsman's Office handles complaints about the administrative actions of Australian Federal Government agencies.

Under the NDIS Terms of Business for Registered Providers, you are responsible for insuring yourself against instances that may result in a loss of income.

This, therefore, would not involve administrative actions of Australian Federal Government agencies.

To learn more about insurance for NDIS registered providers or support workers, visit the finder [website](#).

Alternatively, you could contact WorkSafe Victoria at www.worksafe.vic.gov.au

Unless you are responding to a request for information made by our Office, within the timeframe specified, please do not reply to this email. Any emails sent to this address which are not a response to a request for information are unlikely to be responded to.

Yours sincerely
Helen

Complaint Resolution Officer
Commonwealth Ombudsman
Phone: 1300 362 072
Email: ombudsman@ombudsman.gov.au
Website: ombudsman.gov.au

[<Mail Attachment.png>](#)

Influencing systemic improvement in public administration

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This message may contain information which is:

- * about an identifiable individual;
- * subject to client legal privilege or other privilege; or
- * subject to a statutory or other requirement of confidentiality.

If you have received this message in error, please call 1300 362 072 to inform the sender so that future errors can be avoided.

Riddle me this - if I am not the centre of a conspiracy - why is it I cannot make a whistleblower statement,ent?

I await your reply

RM<

Begin forwarded message:

From: SCHEMEDEBTMANAGEMENTTEAM
<SCHEMEDEBTMANAGEMENTTEAM@ndis.gov.au>
Subject: RE: Receipt of advance payment bill needed and required [SEC=OFFICIAL]
Date: 19 May 2021 at 2:49:11 pm AEST
To: Dr Rich McLean <rich@richmclean.com.au>
Cc: "richarddrawstuff@gmail.com" <richarddrawstuff@gmail.com>

Dear Rich

Thank you for contacting the NDIA.

Please see attached an invoice that was sent on 13/05/2021.

Unfortunately we cannot assist with issues experienced with your email account or server, please submit an IT ticket if it relates to an NDIS IT issue.

Kind Regards

Nicholas N
Finance Officer
Finance Branch
National Disability Insurance Agency

END OF THE WORLD



3010:04 AMP8

National Disability Insurance Agency
T 1800 800 110

From: Dr Rich McLean <rich@richmclean.com.au>
Sent: Wednesday, 19 May 2021 6:46 AM
To: ADVANCE.PAYMENT1 <ADVANCE.PAYMENT1@ndis.gov.au>
Subject: Receipt of advance payment bill needed and required

Hello NDIS NDIA

I want a record of how much I owe on my COVID advance payment please

Can you email it to be and cc richarddrawstuff@gmail.com please?

I wish to acknowledge it and plan to pay it

My others email "dissappeared" off my email server I am wondering who is responsible for intercepting my emails?

Can you confirm?

Provider number below through PRODA

Thanks

Dr Rich McLean
 Human Rights Awarded Autobiographer & Registered Therapeutic Supports Provider for the
 NDIS | Artist-Life-Coaching | Traditional drawing / Digital illustrator / International Recovery
 Expert & Advocate

Live your best life!

Discover me @ www.richmclean.com.au
 Call me @ +61 400639248
 Email me @ rich@richmclean.com.au

"The bad news is that nothing is permanent, but the good news is that nothing is permanent." -
 Buddhist adage

I acknowledge the Indigenous people as the traditional custodians of the land where we live,
 learn & work.

I'm out and about! This email is sent from my phone

***** IMPORTANT: This e-mail is for the use of the intended recipient only and
 may contain information that is confidential, commercially valuable and/or subject to legal or parliamentary privilege. If you are not the intended recipient you are
 notified that any review, re-transmission, disclosure, dissemination or other use of, or taking of any action in reliance upon, this information is prohibited and may
 result in severe penalties. If you have received this e-mail in error please notify the sender immediately and delete all electronic and hard copies of this transmission
 together with any attachments. Please consider the environment before printing this e-mail

svc_PROD_ADLIB

From: Dr Rich Mclean <rich@richmclean.com.au>
Sent: Monday, 31 May 2021 6:43 PM
To: General.Enquiries; reconsiderations.team@comcare.gov.au; Lara Fleming
Cc: Rich McLean; Rich McLean
Subject: Re: Reconsideration request Comcare Letter 03897925 - Claim 01326583/01.[SEC=OFFICIAL:Sensitive]
Attachments: Comcare_document_folio.pdf; Untitled attachment 00029.htm; image001.jpg; Untitled attachment 00032.htm; Psychological injury statement.docx; Untitled attachment 00035.htm; Medical certificate for compensation.pdf; Untitled attachment 00038.htm; Workers Compensation Claim Form.pdf; Untitled attachment 00041.htm; Other medical certificate - 1.pdf; Untitled attachment 00044.htm; Psychological injury statement.docx; Untitled attachment 00047.htm; Medical certificate for compensation.pdf; Untitled attachment 00050.htm; Workers Compensation Claim Form.pdf; Untitled attachment 00053.htm; Other medical certificate - 1.pdf; Untitled attachment 00056.htm; Comcare_document_folio.pdf; Untitled attachment 00059.htm; rD.Rich.McLean.registration.provider.certificate.pdf.pdf; Untitled attachment 00062.htm; image001.jpg; Untitled attachment 00065.htm; workcover.comcare.pdf; Untitled attachment 00068.htm; MCLEAN, RICHARD WILLIAM - Invoice 300063677318.pdf; Untitled attachment 00071.htm

Dear Bernadette,

Re:

claim number: 1326583/1 determination outcome letter [SEC=OFFICIAL:Sensitive]

Thanks for your email. With the statement 'Your request for reconsideration of the determination dated 26 May 2021, which declined liability for anxiety state and depressive disorder under section 14 of the Safety, Rehabilitation and Compensation Act 1988 (SRC Act), has been received. '

1) I was under the impression that Lara Fleming was overseeing my case? Now is she not? I have a recording of her admitting that Amy Delzoppo had rejected my claim, but then Lara was unsure about it, and as her manager, you would expect her to justify this position.

2) I understood and have evidence for that Amy rejected my claim because of the reasons below, which I rebutted in the following valid ways underneath:

3) I understand that Amy no longer has anything to do with my case, so how can she decide I am not eligible with no legislative support to back her statement then it be passed onto Lara who took the reigns because I suggested to Amy that conspiracy to pervert the course of justice has a 10-14 year jail term?

Bernadette, where do you fit into the picture?

I still do not understand how it is flat out rejected, but then again rejected on the assumption I suffer from 'anxiety and depression', which is actually, not the case whatsoever.

Can you please acknowledge where you got this information from?

Additionally, I please draw your attention to the document that details my sexual abuse claim and me working with a client for over a year and a half whom had a sexual abuse history.

In addition - I support my claim with a letter from the magistrate that is scathing in her assessment of my childhood sexual abuse claim - and additionally that the lawyer responsible for the hearing illegally - did not give me an outcome.

The magistrate said 'I was doomed to fail from the start'

I wish to say that I am rationally paranoid that because of information I know and a conspiracy to pervert the course of justice and maim me in all ways including financially has been proved by me as a whistleblower statement.

It will be taken to the federal police and the national Ombudsman.

That statements on my website, and it includes Comcare.

I wish to remind individuals that I have the name of again that if they act as pawns in the veneer of a government and or motive to rob me of prosperity and lead to my ruin, and 'make my death' look like a symptom of a presumed illness, that I will name and shame those responsible.

If you dont want to be named, then please identify the person who has rejected my claim.

But bluntly, an I rejected because I cannot be insured, or on the grounds of an apparent illness, or because of some legislative concept I have not been shown?

Why am I even in reconsideration or appeal stage when the first stage has not got a concrete answer?

I remain yours sincerely,

Dr Rich Mclean

On 28 May 2021, at 4:05 pm, General.Enquiries <Enquiries.General@comcare.gov.au> wrote:

If you have any questions please contact Comcare at General.Enquiries@comcare.gov.au

Kind Regards

Bernadette White

Sensitive: This document may contain sensitive information as defined under Section 6 of the Privacy Act.

NOTICE: This e-mail message and attachments may contain confidential, personal or legally privileged information. If you are not the intended recipient you should not use or disclose any information in the message or attachments. If received in error, please notify the sender by return email immediately, if possible, or Enquiries.General@comcare.gov.au. Comcare does not waive any confidentiality or privilege. For information about how we handle personal information, please visit www.comcare.gov.au/privacy or contact us on 1300 366 979 and request a copy of our Privacy Policy.

<Comcare_document_folio.pdf>

Ms Joanne Kelly
National Disability Insurance Agency
PO Box 4046
Market Square
GEELONG 3220

1 June 2021

Re: Dr Richard William McLean

Reconsideration reference number: 63442407

Dear Ms Kelly

Receipt of reconsideration request

Dr McLean has requested a reconsideration of the determination dated 26 May 2021, which declined liability for anxiety state and depressive disorder under section 14 of the *Safety, Rehabilitation and Compensation Act 1988* (SRC Act). A copy of this request is attached.

If you would like to provide any comments or additional evidence you consider relevant to the reconsideration, please provide this to Comcare by: 8 June 2021.

If no further information is provided, the reconsideration will proceed based on the evidence available on the claim file.

Comcare aims to complete the reconsideration within 30 calendar days from the date of receiving the request or the date the last piece of evidence is received. If this timeframe is unable to be met, you will be contacted.

The information sheet titled *About Your Request for Reconsideration* contains more information about the reconsideration process and is attached.

Yours sincerely

A handwritten signature in black ink, appearing to read 'Bernadette White', with a stylized flourish at the end.

Bernadette White
Review Officer

Tel: 1300~366~979

Attachment: About a request for reconsideration, A copy of the reconsideration request

ASSISTANCE AND FURTHER INFORMATION OPTIONS

Phone (from landlines only) 1300 366 979, for the cost of a local call or additional information and forms are available from our website at www.comcare.gov.au

- General information about Comcare's [claims and benefits](#) are available from our website
- [Claims are assessed](#) under the Safety, Rehabilitation and Compensation Act 1988 (SRC Act)
- [The clinical framework for the delivery of health services](#) provides guidance for treatment providers helping employees recover and return to work following a workplace injury or disease

[Privacy is important to us.](#) More information on how Comcare handles personal information is available from our website or call 1300 366 979.



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ABOUT YOUR REQUEST FOR RECONSIDERATION

Comcare has received your application for reconsideration, and we have appointed a Review Officer to your matter. Please take the time to read the information below as this outlines the reconsideration process. If you have any questions or wish to clarify the information below, please contact your Review Officer.

WHAT IS THE PROCESS OF A RECONSIDERATION

A reconsideration is conducted 'on the papers'. This means that your Review Officer will review of all the relevant documents on the claim file and any additional information provided during the reconsideration process. The Review Officer is independent from the management of the claim.

Where new evidence has been presented, the other affected party will be provided a period of time to respond to the request for reconsideration before process will commence. Comcare will provide you with a copy of any information it receives relevant to the reconsideration process.

Once Comcare receives all relevant information, the Review Officer will complete the reconsideration and issue a decision, known as a reviewable decision.

The reviewable decision is expected to be completed within a maximum of 60 days from the receipt of your request. If this timeframe needs to be extended, your Review Officer will communicate the delay and the reason for it directly to you.

OUTCOME

Comcare provides the reviewable decision in writing via your preferred method of communication. If you would like to discuss the outcome of the reconsideration with the Review Officer, you may contact them by phone.

A reviewable decision can do the following in relation to a determination under review:

- > affirm—the determination under review does not change;
- > vary—the determination under review is changed in some way;
- > revoke—the determination under review is overturned and replaced with the reviewable decision.

ONUS OF PROOF

Onus of proof is a legal term that defines how Comcare assesses information on the claim file to make a decision. In the reconsideration process, that means that an employee must demonstrate that an entitlement to compensation exists on the balance of probabilities.

WHAT IS NATURAL JUSTICE

Natural justice means that if any person that is potentially affected by a reconsideration provides information to Comcare that affects another person's interests, we need to release this information to that person and provide them with an opportunity to respond.

WHAT HAPPENS AFTER THE RECONSIDERATION

If either party disagree with Comcare's reviewable decision, then either party may appeal to the Administrative Appeals Tribunal (AAT) by lodging an *Application for review*.

An appeal must be lodged to the AAT within 60 days from the day the reviewable decision is received. We will provide details of your closest AAT registry in the reviewable decision or more information can be found at www.aat.gov.au

CONTACTING COMCARE

You can call Comcare on 1300 366 979, email us at 'reconsiderations.team@comcare.gov.au', or visit our website at www.comcare.gov.au

More information about the reconsideration process can be found at http://www.comcare.gov.au/claims_and_benefits/reconsideration

svc_PROD_ADLIB

From: Lara Fleming <Fleming.Lara@comcare.gov.au>
Sent: Friday, 28 May 2021 12:42 PM
To: rich@richmclean.com.au
Cc: General.Enquiries; Reconsiderations.Team
Subject: claim number: 1326583/1 determination outcome letter [SEC=OFFICIAL:Sensitive]
Attachments: 03718_CALM_Zero_tolerance_v3.pdf

OFFICIAL: Sensitive

Good afternoon Richard,

I'm writing to confirm that I have notified our Reconsiderations team of your request for reconsideration. They have been cc'd into this email and will acknowledge your request shortly.

I'd also like to note that all Comcare employees have the right to a safe workplace free of aggressive and abusive behaviour. Comcare has a zero tolerance of aggression against its staff.

Comcare expects that you will be respectful and courteous when communicating with Comcare staff. Please ensure that you refrain from offensive language and personal insults.

Amy's role requires her to make decisions consistent with the legislative framework under the Safety, Rehabilitation and Compensation Act 1988 (SRC Act). She has communicated the reasoning for her decision and notified you of your appeal rights in a respectful manner.

Any further communication regarding your claim should be directed to myself or the Reconsiderations team. Amy no longer has any involvement on your claim.

You can visit our website if you would like to review the SRC Act - <https://www.comcare.gov.au/scheme-legislation/src-act>

Kind regards,

Lara Fleming
 Assistant Director
 Claims Operations | Canberra
 Claims Management Group | Comcare
 P: (02) 6225 2391

Comcare
 GPO Box 9905, Canberra, ACT 2601
 1300 366 979
www.comcare.gov.au

COVID-19 Update: While we are unable to serve you in person during COVID-19, we are still working and you can contact us via phone or email. Work health and safety is our highest priority. We monitor this situation daily and regularly update our COVID-19 guidance.

-----Original Message-----

From: Dr Rich Mclean <rich@richmclean.com.au>

Sent: Thursday, 27 May 2021 7:24 PM

To: General.Enquiries <Enquiries.General@comcare.gov.au>; Amy Delzoppo <Delzoppo.Amy@comcare.gov.au>; Amy Delzoppo <Delzoppo.Amy@comcare.gov.au>
 Cc: Rich McLean <rich@richmclean.com.au>; Rich McLean <richarddrawsstuff@gmail.com>
 Subject: Re: claim number: 1326583/1 determination outcome letter[SEC=OFFICIAL:Sensitive]

Dear Amy,

No no thanks for your time and evidence, as you know it was recorded and if my lawyer states that I should be covered when you have such a weak argument you will be held to account as an individual who is a mere pawn of a greater entity designed to financially ruin and maim me - that is why I am a whistleblower, and why I am warning people if they don't want to spend up to 12 years in jail for making a decision on someone's like they were told to by someone higher in authority than them. :-)

Hence, I'm helping you.

I disagree with the weak argument.

I have not even read the safety, rehabilitation and compensation Act 1999, yet I don't need to yet as you have really poorly identified, or actually, not at all successfully identified the reasons why I am rejected.

In addition, Lara is a weak conversationalist-you already rejected me then she un-rejected me as your boss-then she didn't know and was kind of just bobbing along aimlessly with nothing to say.

I request an appeal.

Send me the Act.

This is exactly the mechanism that the 'conspiracy'; utilises - the exact methodology of rejecting rejecting and 'kicking the can down the road', knowing full well they are in breach of all human compassion because I deserve cover and allowed it and will prove it with my litigation team if necessary. You know I am homeless.

I provided a copy of my registration - which you were utilising as a mechanism for 'kicking the can down the road', utilising delaying tactics once you knew I said I was disadvantaged and had moved house many times had computer problems and didn't have it.

I had it all along, but obviously it was merely a tactic employed by yourself to lengthen the time it takes me to get a result.

It is not a determination if it is decided by you with little to no evidence or critical thinking, then undecided by your boss, mulled over a bit more, can be kicked down the road and waiting weeks just to reject me anyway.

This is often a mechanism through which narcissistic abusers and the law try and destroy people's faith and their confidence.

But I promise you I will expose this should I be a millionaire, between the sheets or on the streets!

It's hilarious it's like a game.

I'm sure you're lovely but honestly someone at quote 'Comcare' (who's position you refer to), is paying you to well...be a horrible person, and you accept that then smile and wish me well.

It's really obnoxious and I think it's fitting of any decent type of human being.

I'll give you a call tomorrow, and record it, citing this email and I'll even read it to you to get your response after I have literally cornered and caught out both of you for whistleblower purposes - the thing is - you don't even know why you are rejecting me - you are just a puppet you muppet lol

Anyway I can't wait to chat.

I hope you have a lovely evening and your nerves tingle with relaxation at the thought of being a pointless pawn prostituting yourself to be inhumane as a horrible person for cash, much like a whore, except with a sex worker you at least get your rocks off.

With you you are just paid, rented really, to keep up the veneer as a pawn in the facade with no idea what's going on like a neutral pleb, with money from Comcare that protect the very people and institutions positions of power and privilege. (Which you have no idea what I am talking about).

Anyway I feel amazing today, and I look forward to seeing the statement and if necessary exposing crimes against individuals just for advocating for themselves when a exploit concealed and inherent systemic conspiracy exists to protect people like my GP and the malpractice suit and the conspiracy that happened after that, and my former partner, who's Boss was David Irvine of ASIO - ohh... the things I know about them!

(And you)

Kindly.

Rich

> On 26 May 2021, at 4:27 pm, General.Enquiries <Enquiries.General@comcare.gov.au> wrote:

>

> Good afternoon Richard

>

> Thank you for your time today. As discussed, Comcare have declined liability on your workers' compensation claim on the basis Comcare are not satisfied you are an 'employee' in accordance with the Safety, Rehabilitation and Compensation Act 1988. I have attached the determination letter and your notice of rights.

>

> If you disagree with the determination, you have the right to request a reconsideration within 30 days of receiving Comcare's determination. I have attached the request for reconsideration form which you will need to complete and email to reconsiderations.team@comcare.gov.au if you disagree with the determination. If you are unable to request a reconsideration within the 30 day timeframe, you can request an extension of time and it will be considered by the reconsideration team.

>

> Thank you for providing a copy of your registration. I have reviewed this document and consider it supports Comcare's position that you are a registered NDIA provider who delivers support to NDIS participants rather than an employee of the NDIA.

>

> If you would like to discuss the determination letter, please do not hesitate to contact me or my manager Lara Fleming. Both myself and Lara work standard hours 9 am until 5 pm Monday to Friday.

>

> My contact details are:

> Email: Delzoppo.amy@comcare.gov.au

> Phone: (02) 6276 0354

>

> Lara's contact details are:

> Email: Delzoppo.amy@comcare.gov.au

> Phone: (02) 6225 2391

>

> Warmest regards,
>
> Amy Delzoppo
> Senior Claims Manager
> Canberra 7 | Claims Management Canberra Claims Management Group |
> Canberra
> P: (02) 6276 0354
>
> Comcare
> GPO Box 9905, Canberra, ACT 2601
> 1300 366 979
> www.comcare.gov.au
> Sensitive: This document may contain sensitive information as defined under Section 6 of the Privacy Act.
> NOTICE: This e-mail message and attachments may contain confidential, personal or legally privileged information. If you are not the intended recipient you should not use or disclose any information in the message or attachments. If received in error, please notify the sender by return email immediately, if possible, or Enquiries.General@comcare.gov.au. Comcare does not waive any confidentiality or privilege. For information about how we handle personal information, please visit www.comcare.gov.au/privacy or contact us on 1300 366 979 and request a copy of our Privacy Policy.
> <Comcare_document_folio.pdf>
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ZERO TOLERANCE OF AGGRESSION TOWARDS COMCARE STAFF

All Comcare employees have the right to a safe workplace free of abusive, aggressive or violent behaviour. Comcare has a zero tolerance policy on aggression and violence against its staff.

If you display abusive, threatening or violent behaviour towards Comcare staff they will:

1. Advise you that they will be unable to assist you if you continue the behaviour
2. Warn you that they will end the conversation if your aggressive behaviour continues
3. End the conversation if your aggressive behaviour continues.

Comcare may also implement a communication plan in the event that abusive behaviour continues. Comcare will consider reporting all threats of violence against its employees to the police. Comcare may also report any abuse or harassment of its employees as a breach of the APS Code of Conduct.

Comcare expects that you will be respectful and courteous when communicating with Comcare staff.

Please ensure that you:

- > treat others as you would like to be treated.
- > use an appropriate speaking level and tone.
- > communicate without using threats, abuse or offensive language.
- > conduct yourself without using offensive gestures or behaviour.
- > uphold the APS Values and Code of Conduct.

Comcare will:

- > be courteous and helpful.
- > communicate the reasoning behind any decision made in relation to your claim.
- > notify you of your rights to appeal decisions under the *Safety, Rehabilitation and Compensation Act 1988*.
- > uphold the APS Values and Code of Conduct.

Dr Richard William McLean
2 McCubbin Street

FOOTSCRAY 3011

28 May 2021

Reconsideration reference number: 63442407

Dear Dr McLean

Receipt of reconsideration request

Your request for reconsideration of the determination dated 26 May 2021, which declined liability for anxiety state and depressive disorder under section 14 of the *Safety, Rehabilitation and Compensation Act 1988* (SRC Act), has been received.

A copy of this request for reconsideration has been provided to National Disability Insurance Agency, with an opportunity for them to respond.

If you would like to provide any comments or additional evidence you consider relevant to the reconsideration, please provide this to Comcare by: 4 June 2021.

If no further information is provided, the reconsideration will proceed based on the evidence available on the claim file.

Comcare aims to complete the reconsideration within 30 calendar days from the date of receiving the request or the date the last piece of evidence is received. If this timeframe is unable to be met, you will be contacted.

The information sheet titled *About Your Request for Reconsideration* contains more information about the reconsideration process and is attached.

Yours sincerely



Bernadette White
Senior Review Officer
Tel: 1300~366~979

Attachments: About a request for reconsideration, A copy of the reconsideration request

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Comcare

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svc_PROD_ADLIB

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Sent: Thursday, 27 May 2021 7:24 PM
To: General.Enquiries; Delzoppo.amy@comcare.gov.au;
 Delzoppo.amy@comcare.gov.au
Cc: Rich McLean; Rich McLean
Subject: Re: claim number: 1326583/1 determination outcome
 letter[SEC=OFFICIAL:Sensitive]

Dear Amy,

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(And you)

Kindly.

Rich

> On 26 May 2021, at 4:27 pm, General.Enquiries <Enquiries.General@comcare.gov.au> wrote:

>

> Good afternoon Richard

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> If you disagree with the determination, you have the right to request a reconsideration within 30 days of receiving Comcare's determination. I have attached the request for reconsideration form which you will need to complete and email to reconsiderations.team@comcare.gov.au if you disagree with the determination. If you are unable to request a reconsideration within the 30 day timeframe, you can request an extension of time and it will be considered by the reconsideration team.

>

> Thank you for providing a copy of your registration. I have reviewed this document and consider it supports Comcare's position that you are a registered NDIA provider who delivers support to NDIS participants rather than an employee of the NDIA.

>

> If you would like to discuss the determination letter, please do not hesitate to contact me or my manager Lara Fleming. Both myself and Lara work standard hours 9 am until 5 pm Monday to Friday.

>

> My contact details are:

> Email: Delzoppo.amy@comcare.gov.au

> Phone: (02) 6276 0354

>
> Lara's contact details are:
> Email: Delzoppo.amy@comcare.gov.au
> Phone: (02) 6225 2391
>
> Warmest regards,
>
> Amy Delzoppo
> Senior Claims Manager
> Canberra 7 | Claims Management Canberra
> Claims Management Group | Canberra
> P: (02) 6276 0354
>
> Comcare
> GPO Box 9905, Canberra, ACT 2601
> 1300 366 979
> www.comcare.gov.au
> Sensitive: This document may contain sensitive information as defined under Section 6 of the Privacy Act.
> NOTICE: This e-mail message and attachments may contain confidential, personal or legally privileged information. If you are not the intended recipient you should not use or disclose any information in the message or attachments. If received in error, please notify the sender by return email immediately, if possible, or Enquiries.General@comcare.gov.au. Comcare does not waive any confidentiality or privilege. For information about how we handle personal information, please visit www.comcare.gov.au/privacy or contact us on 1300 366 979 and request a copy of our Privacy Policy.
> <Comcare_document_folio.pdf>

From: Rich McLean <richarddrawsstuff@gmail.com>
Sent: Wednesday, 26 May 2021 2:08 PM
To: Amy Delzoppo; Lara Fleming; General.Enquiries
Cc: Rich McLean; Rich McLean
Subject: Sorry found it, Amy and Lara. :-)
Attachments: rD.Rich.McLean.registration.provider.certificate.pdf.pdf

Hi Amy and Lara.

Either way, I will contest if you still dont think I have a contract with the NDIA.

Additionally I add an email that states my current active registration.

Please re-do my Comcare compare application framed by this new information

Thanks

Rich

In addiittion,

The says:

ContactCentre@ndiscommission.gov.au

RE: being an 'employee' for the purposes of workcover - URGENT please [SEC=OFFICIAL]

'Dear Richard Mclean,

Thank you for your time over the phone regarding registration ID: 4-433J-962. The e-mail below is addressed to the NDIA but just to be very clear it was sent to the NDIS Commission.

I am sorry to hear about your current situation and the struggles you are facing, however I discussed this matter with my team leader and I believe that you may have been provided similar information on a separate occasion. I will do my utmost to be clear so that you can locate the department best placed to assist with your enquiries.

I'll begin with information regarding your registration and the renewal process. Your renewal date is 31/3/2020, as a transitioning provider you are afforded 9 months from this date to have your renewal application and accompanying audit completed and submitted to the Commission. This would have seen you submit by 31/12/2020. You have now entered into breach of your conditions of registration.

You are still able to trade and service participants (if you wish) during this time however the expectation is that you be looking to complete your audit as soon as is practicable.

Should you require any further assistance, please do not hesitate to contact us on 1800 035 544.

Yours sincerely
 Holly Withers on behalf of

Contact Centre



P: 1800 035 544 | E: registration@ndiscommission.gov.au
www.ndiscommission.gov.au

The NDIS Quality and Safeguards Commission acknowledges the traditional owners of country throughout Australia and their continuing connection to land, sea and community. We pay our respects to them and their cultures, and to elders both past and present.

So as you see my registration is still complete and able to work under my contract, proving again I am employed by them, any non acknowledgement of this I will oppose.

Cheerrs

Rich



**NDIS Quality
and Safeguards
Commission**

For the attention of the:
Chief Executive Officer / Board Chair / Principal
MCLEAN, RICHARD WILLIAM
Trading as Rich McLean, Arts Therapist, Peer-Support Worker & Mental Health Advocate
24 Rosella Court
Ocean Grove VIC 3226

30 June 2019

NDIS Quality and Safeguards Commission
Your new certificate of registration as a registered NDIS provider

Dear Chief Executive Officer

In June 2019, all registered providers in the Australian Capital Territory (ACT), Victoria (Vic) Queensland (Qld), Tasmania (Tas) and the Northern Territory (NT) received a provider information email to let them know what is happening with the transfer of registration as providers of supports under the National Disability Insurance Scheme (NDIS). This followed an email to all providers in the ACT, Vic, Qld, Tas and the NT in May 2019. You can find a copy of both emails on the NDIS Commission website at www.ndiscommission.gov.au.

Your registration to provide supports under the NDIS will be transferred from the National Disability Insurance Agency (NDIA) to the NDIS Commission on 1 July 2019, by the operation of the National Disability Insurance Scheme (Quality and Safeguards Commission and Other Measures) Transitional Rules 2018. Under those rules, the Commissioner will register MCLEAN, RICHARD WILLIAM (trading as Rich McLean, Arts Therapist, Peer-Support Worker & Mental Health Advocate) as a registered NDIS provider under section 73E of the National Disability Insurance Scheme Act 2013 (the Act).

The Commissioner of the NDIS Commission is now issuing you with its Certificate of Registration in accordance with paragraph 73E(4)(b) of the Act. This certificate is attached and will apply to MCLEAN, RICHARD WILLIAM (trading as Rich McLean, Arts Therapist, Peer-Support Worker & Mental Health Advocate) from 1 July 2019. Attached is an information guide relating to NDIS provider obligations under the NDIS Commission.

Your Registration ID is: 4-433J-962

You will need this Registration ID when contacting the NDIS Commission in relation to your registration and in order to access the NDIS Commission Portal located on the NDIS Commission website.

Certificate of registration

The details of your registration, including any classes of supports (previously referred to as groups of supports) that you are registered to provide, and the conditions of registration are identified in the Certificate of Registration. It is important that you are familiar with the conditions that apply to your registration and your responsibilities as a registered NDIS provider.

Registration scope

Given you will be a registered NDIS provider from 1 July 2019, it is important to be registered in relation to all supports and services that you deliver to participants with NDIA managed plans.

The transfer of provider registration is happening in the ACT, Vic, Qld, Tas and the NT as of 1 July 2019, NSW and SA transitioned on 1 July 2018. The NDIS Commission will have authority to register NDIS providers operating in all states and territories except Western Australia (WA) from 1 July 2019.

If you are delivering, or intending to deliver, supports or services to participants who reside in WA, you will need to continue your registration with the NDIA and meet the quality and safeguarding requirements in WA. More information about this is available at <https://www.ndiscommission.gov.au/about/start-dates/wa>.

Register of NDIS providers

Under section 73ZS of the Act, the Commissioner of the NDIS Commission maintains a public register of registered NDIS providers. The register is published on the NDIS Commission's website at www.ndiscommission.gov.au.

If you consider the information about you on the NDIS Provider register is inaccurate, please contact the NDIS Commission by sending an email to registration@ndiscommission.gov.au.

Next steps

Your registration will transfer to the NDIS Commission as of 1 July 2019. You will then need to start getting ready to apply for renewal of your registration.

You will need to make an application for registration under the new NDIS Commission arrangements before the end of the period specified in your Certificate of Registration. This will involve the following:

1. Submitting an application for renewal using the NDIS Commission Portal and your Registration ID. You will be required to confirm key information about your registration, including the key personnel.
2. You will also:
 - a. Undertake a self-assessment of your organisation against the NDIS Practice Standards relevant to the supports and services you provide to participants.
 - b. Arrange for an assessment against the NDIS Practice Standards. This involves a NDIS Commission approved quality auditor assessing your organisation, using either a verification or a certification method, against relevant NDIS Practice Standards. Information about approved quality auditors is published on the NDIS Commission website. Your Certificate of Registration attached specifies the timing of quality audits for your organisation.
3. To retain your organisation's registration, your organisation must submit the registration renewal application with the NDIS Commission by **31/03/2020**. This date is the end of the period of registration as stated on your Certificate of Registration. If your organisation does not submit the renewal application by this date, your organisation's status as a registered NDIS provider will lapse.

Please be aware that any registration groups your organisation is currently registered to provide to participants residing in the ACT, Vic, Qld, Tas or the NT will transfer to your registration with the NDIS Commission on 1 July 2019. As part of the registration renewal process there will be the opportunity to vary these where your organisation intends to provide different supports or services.

NDIS Commission Portal

All users linked to your organisation in the NDIA's Myplace portal will also have access to your organisation's details in the NDIS Commission Portal.

Your organisation will be required to use the NDIS Commission Portal to undertake the registration renewal process. Other functionality available on the NDIS Commission Portal, including how to provide access for additional users, is detailed on the NDIS Commission Portal webpage <https://www.ndiscommission.gov.au/providers/provider-registration/ndis-commission-portal>.

On 1 July 2019, the 'My Reportable Incidents' page will be available via the NDIS Commission Portal. This will be the way registered NDIS providers in all states and territories (except for Western Australia) notify the NDIS Commission of Reportable Incidents.

Information for providers registered for Specialist Positive Behaviour Support (110)

To support safeguarding for people subject to restrictive practices, the National Disability Insurance Scheme (Restrictive Practices and Behaviour Support) Rules 2018 require that a registered provider of specialist behaviour support services must use a behaviour support practitioner whom the NDIS Quality and Safeguards Commissioner considers suitable. To comply with this requirement, section 29 requires that specialist behaviour support providers notify the NDIS Commission by 31 July 2019 of their behaviour support practitioner(s).

To notify the NDIS Commission of your behaviour support practitioner(s) please go to the Behaviour Support webpage <https://www.ndiscommission.gov.au/providers/provider-responsibilities/behaviour-support> and follow the link: Notification of Behaviour Support Practitioners (s29). Details of your practitioner(s) can be entered into this form and submitted online to the NDIS Commission.

On the basis of the information collected from your notification, your practitioner(s) will be considered provisionally suitable as NDIS behaviour support practitioners and advised of this in writing.

Information for providers implementing a regulated restrictive practice in accordance with a behaviour support plan

The National Disability Insurance Scheme (Restrictive Practices and Behaviour Support) Rules 2018 require that any provider using a regulated restrictive practice must only use the practice in accordance with a behaviour support plan. The provider must also report monthly to the NDIS Commission on the use of restrictive practices. This applies to all new behaviour support plans developed from 1 July 2019 that contain regulated restrictive practices. There are specific state and territory transitional arrangements for what to do in relation to behaviour support plans that are already in place at 1 July 2019. Further information is available at the Behaviour Support webpage <https://www.ndiscommission.gov.au/providers/provider-responsibilities/behaviour-support>.

Please find attached your organisation's Certificate of Registration, including conditions of registration.

NDIS Provider Registration
NDIS Quality and Safeguards Commission
[NDISCommission.gov.au](https://www.ndiscommission.gov.au)

registration@ndiscommission.gov.au
PO Box 210
PENRITH NSW 2750



**NDIS Quality
and Safeguards
Commission**

Certificate of Registration

Issued pursuant to subsection 73E(4) of the National Disability Insurance Scheme Act 2013
(the NDIS Act)

As of 1 July 2019, MCLEAN, RICHARD WILLIAM (72066207615) of 24 Rosella Court Ocean Grove VIC
3226 is a **registered NDIS provider**

Registration ID:	4-433J-962
Legal name:	MCLEAN, RICHARD WILLIAM
Business/trading name:	Rich McLean, Arts Therapist, Peer-Support Worker & Mental Health Advocate
ABN:	72066207615
ACN:	Not specified
Primary address / head office:	24 Rosella Court Ocean Grove VIC 3226
Registered provider in relation to:	The provision of the following classes of supports under participants' plans.
Registration classes:	Therapeutic Supports
Period for which the registration is in force:	From 1 July 2019 until 31 Mar 2020

Note: If you submit an application for further registration before the date identified above as the end of the period for which your registration is in force, then by operation of section 73K of the NDIS Act, your registration will continue in force until the Commission makes a decision on the application under subsection 73E(1) of the NDIS Act.

Conditions of registration

Your registration as a registered NDIS provider is subject to the conditions set out in the attachment to this Certificate of Registration.

Graeme Head AO

Commissioner

[NDISCommission.gov.au](https://www.ndiscommission.gov.au)

registration@ndiscommission.gov.au

PO Box 210

PENRITH NSW 2750

CONDITIONS OF REGISTRATION ATTACHMENT

REGISTRATION ID 4-433J-962

Conditions of registration under section 73F of the National Disability Insurance Scheme Act 2013 (the NDIS Act)

Your registration as a registered NDIS provider is subject to the following conditions:

Standard conditions of registration – subsection 73F(2) of the NDIS Act

1. There are standard conditions which apply to all registered NDIS providers under section 73F(2) of the Act. These are:
 - a. a condition that you comply with all applicable requirements imposed by a law of the Commonwealth or a law of the State or Territory in which you operate as a registered NDIS provider
 - b. a condition that you comply with all applicable requirements of the NDIS Code of Conduct
 - c. a condition that you comply with all applicable standards and other requirements of the NDIS Practice Standards
 - d. a condition that you comply with all applicable requirements relating to record keeping prescribed by the National Disability Insurance Scheme rules for the purposes of section 73Q
 - e. a condition that you implement and maintain the applicable complaints management and resolution system in accordance with section 73W
 - f. a condition that you comply with all applicable requirements relating to complaints prescribed by the National Disability Insurance Scheme rules for the purposes of section 73X
 - g. a condition that you implement and maintain the applicable incident management system in accordance with section 73Y
 - h. a condition that you comply with all applicable requirements relating to reportable incidents prescribed by the National Disability Insurance Scheme rules for the purposes of section 73Z
 - i. a condition that you give to the NDIS Commissioner, on request, information specified in the request within the period specified in the request (which must not be less than 14 days).

Conditions imposed under section 73G of the NDIS Act

2. If, before the date specified on your Certificate of Registration as the last date of your period of registration, you submit an application for further registration you must take all action reasonably necessary to ensure that an approved quality auditor (as defined by the NDIS Act):
 - (a) completes a quality audit entailing an assessment of you against the applicable standards and other requirements prescribed by the NDIS Practice Standards (as referred to in paragraph 73E(1)(a) of the Act and
 - (b) submits the results of the completed audit to the NDIS Commission within 9 months after that last date.

Note: If you submit an application for further registration before the date specified on your Certificate of Registration as the last date of your period of registration, then by operation of section 73K of the NDIS Act, the registration will continue in force until the NDIS Commission makes a decision on the application under subsection 73E(1) of the NDIS Act.

Conditions imposed by rules made under sections 73H and 209 of the NDIS Act

3. It is a condition of your registration that you comply with:

- (a) Part 4 of the *National Disability Insurance Scheme (Provider Registration and Practice Standards) Rules 2018*; and
- (b) Parts 2 – 4 (as applicable) of the *National Disability Insurance Scheme (Restrictive Practices and Behaviour Support) Rules 2018*; and
- (c) if you are registered to provide specialist disability accommodation, Parts 2 and 5 of the *National Disability Insurance Scheme (Specialist Disability Accommodation Condition) Rules 2018*.

Note: Links to and information about these conditions are available at www.ndiscommission.gov.au.

From: Amy Delzoppo <Delzoppo.Amy@comcare.gov.au>
Sent: Wednesday, 26 May 2021 2:18 PM
To: Email.RMC
Subject: FW: Sorry found it, Amy and Lara. :-) [SEC=OFFICIAL]
Attachments: rD.Rich.McLean.registration.provider.certificate.pdf.pdf

OFFICIAL

Please scan as one file to 1326583/1

From: Rich McLean <richarddrawsstuff@gmail.com>
Sent: Wednesday, 26 May 2021 2:08 PM
To: Amy Delzoppo <Delzoppo.Amy@comcare.gov.au>; Lara Fleming <Fleming.Lara@comcare.gov.au>; General.Enquiries <Enquiries.General@comcare.gov.au>
Cc: Rich McLean <richarddrawsstuff@gmail.com>; Rich McLean <rich@richmclean.com.au>
Subject: Sorry found it, Amy and Lara. :-)

Hi Amy and Lara.

Either way, I will contest if you still dont think I have a contract with the NDIA.

Additionally I add an email that states my current active registration.

Please re-do my Comcare compare application framed by this new information

Thanks

Rich

In addiition,

The says:

ContactCentre@ndiscommission.gov.au

RE: being an 'employee' for the purposes of workcover - URGENT please [SEC=OFFICIAL]

'Dear Richard Mclean,

Thank you for your time over the phone regarding registration ID: 4-433J-962. The e-mail below is addressed to the NDIA but just to be very clear it was sent to the NDIS Commission.

I am sorry to hear about your current situation and the struggles you are facing, however I discussed this matter with my team leader and I believe that you may have been provided similar information on a separate occasion. I will do my utmost to be clear so that you can locate the department best placed to assist with your enquiries.

I'll begin with information regarding your registration and the renewal process. Your renewal date is 31/3/2020, as a transitioning provider you are afforded 9 months from this date to have your renewal application and accompanying

audit completed and submitted to the Commission. This would have seen you submit by 31/12/2020. You have now entered into breach of your conditions of registration.

You are still able to trade and service participants (if you wish) during this time however the expectation is that you be looking to complete your audit as soon as is practicable.

Should you require any further assistance, please do not hesitate to contact us on 1800 035 544.

Yours sincerely
Holly Withers on behalf of
Contact Centre



NDIS Quality
and Safeguards
Commission

P: 1800 035 544 | E: registration@ndiscommission.gov.au
www.ndiscommission.gov.au

The NDIS Quality and Safeguards Commission acknowledges the traditional owners of country throughout Australia and their continuing connection to land, sea and community. We pay our respects to them and their cultures, and to elders both past and present.

So as you see my registration is still complete and able to work under my contract, proving again I am employed by them, any non acknowledgement of this I will oppose.

Cheerrs

Rich



**NDIS Quality
and Safeguards
Commission**

For the attention of the:
Chief Executive Officer / Board Chair / Principal
MCLEAN, RICHARD WILLIAM
Trading as Rich McLean, Arts Therapist, Peer-Support Worker & Mental Health Advocate
24 Rosella Court
Ocean Grove VIC 3226

30 June 2019

NDIS Quality and Safeguards Commission
Your new certificate of registration as a registered NDIS provider

Dear Chief Executive Officer

In June 2019, all registered providers in the Australian Capital Territory (ACT), Victoria (Vic) Queensland (Qld), Tasmania (Tas) and the Northern Territory (NT) received a provider information email to let them know what is happening with the transfer of registration as providers of supports under the National Disability Insurance Scheme (NDIS). This followed an email to all providers in the ACT, Vic, Qld, Tas and the NT in May 2019. You can find a copy of both emails on the NDIS Commission website at www.ndiscommission.gov.au.

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The Commissioner of the NDIS Commission is now issuing you with its Certificate of Registration in accordance with paragraph 73E(4)(b) of the Act. This certificate is attached and will apply to MCLEAN, RICHARD WILLIAM (trading as Rich McLean, Arts Therapist, Peer-Support Worker & Mental Health Advocate) from 1 July 2019. Attached is an information guide relating to NDIS provider obligations under the NDIS Commission.

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Registration scope

Given you will be a registered NDIS provider from 1 July 2019, it is important to be registered in relation to all supports and services that you deliver to participants with NDIA managed plans.

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2. You will also:
 - a. Undertake a self-assessment of your organisation against the NDIS Practice Standards relevant to the supports and services you provide to participants.
 - b. Arrange for an assessment against the NDIS Practice Standards. This involves a NDIS Commission approved quality auditor assessing your organisation, using either a verification or a certification method, against relevant NDIS Practice Standards. Information about approved quality auditors is published on the NDIS Commission website. Your Certificate of Registration attached specifies the timing of quality audits for your organisation.
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NDIS Commission Portal

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To notify the NDIS Commission of your behaviour support practitioner(s) please go to the Behaviour Support webpage <https://www.ndiscommission.gov.au/providers/provider-responsibilities/behaviour-support> and follow the link: Notification of Behaviour Support Practitioners (s29). Details of your practitioner(s) can be entered into this form and submitted online to the NDIS Commission.

On the basis of the information collected from your notification, your practitioner(s) will be considered provisionally suitable as NDIS behaviour support practitioners and advised of this in writing.

Information for providers implementing a regulated restrictive practice in accordance with a behaviour support plan

The National Disability Insurance Scheme (Restrictive Practices and Behaviour Support) Rules 2018 require that any provider using a regulated restrictive practice must only use the practice in accordance with a behaviour support plan. The provider must also report monthly to the NDIS Commission on the use of restrictive practices. This applies to all new behaviour support plans developed from 1 July 2019 that contain regulated restrictive practices. There are specific state and territory transitional arrangements for what to do in relation to behaviour support plans that are already in place at 1 July 2019. Further information is available at the Behaviour Support webpage <https://www.ndiscommission.gov.au/providers/provider-responsibilities/behaviour-support>.

Please find attached your organisation's Certificate of Registration, including conditions of registration.

NDIS Provider Registration
NDIS Quality and Safeguards Commission
[NDISCommission.gov.au](https://www.ndiscommission.gov.au)

registration@ndiscommission.gov.au
PO Box 210
PENRITH NSW 2750



**NDIS Quality
and Safeguards
Commission**

Certificate of Registration

Issued pursuant to subsection 73E(4) of the National Disability Insurance Scheme Act 2013
(the NDIS Act)

As of 1 July 2019, MCLEAN, RICHARD WILLIAM (72066207615) of 24 Rosella Court Ocean Grove VIC
3226 is a **registered NDIS provider**

Registration ID:	4-433J-962
Legal name:	MCLEAN, RICHARD WILLIAM
Business/trading name:	Rich McLean, Arts Therapist, Peer-Support Worker & Mental Health Advocate
ABN:	72066207615
ACN:	Not specified
Primary address / head office:	24 Rosella Court Ocean Grove VIC 3226
Registered provider in relation to:	The provision of the following classes of supports under participants' plans.
Registration classes:	Therapeutic Supports
Period for which the registration is in force:	From 1 July 2019 until 31 Mar 2020

Note: If you submit an application for further registration before the date identified above as the end of the period for which your registration is in force, then by operation of section 73K of the NDIS Act, your registration will continue in force until the Commission makes a decision on the application under subsection 73E(1) of the NDIS Act.

Conditions of registration

Your registration as a registered NDIS provider is subject to the conditions set out in the attachment to this Certificate of Registration.

Graeme Head AO

Commissioner

[NDISCommission.gov.au](https://www.ndiscommission.gov.au)

registration@ndiscommission.gov.au

PO Box 210

PENRITH NSW 2750

CONDITIONS OF REGISTRATION ATTACHMENT

REGISTRATION ID 4-433J-962

Conditions of registration under section 73F of the National Disability Insurance Scheme Act 2013 (the NDIS Act)

Your registration as a registered NDIS provider is subject to the following conditions:

Standard conditions of registration – subsection 73F(2) of the NDIS Act

1. There are standard conditions which apply to all registered NDIS providers under section 73F(2) of the Act. These are:
 - a. a condition that you comply with all applicable requirements imposed by a law of the Commonwealth or a law of the State or Territory in which you operate as a registered NDIS provider
 - b. a condition that you comply with all applicable requirements of the NDIS Code of Conduct
 - c. a condition that you comply with all applicable standards and other requirements of the NDIS Practice Standards
 - d. a condition that you comply with all applicable requirements relating to record keeping prescribed by the National Disability Insurance Scheme rules for the purposes of section 73Q
 - e. a condition that you implement and maintain the applicable complaints management and resolution system in accordance with section 73W
 - f. a condition that you comply with all applicable requirements relating to complaints prescribed by the National Disability Insurance Scheme rules for the purposes of section 73X
 - g. a condition that you implement and maintain the applicable incident management system in accordance with section 73Y
 - h. a condition that you comply with all applicable requirements relating to reportable incidents prescribed by the National Disability Insurance Scheme rules for the purposes of section 73Z
 - i. a condition that you give to the NDIS Commissioner, on request, information specified in the request within the period specified in the request (which must not be less than 14 days).

Conditions imposed under section 73G of the NDIS Act

2. If, before the date specified on your Certificate of Registration as the last date of your period of registration, you submit an application for further registration you must take all action reasonably necessary to ensure that an approved quality auditor (as defined by the NDIS Act):
 - (a) completes a quality audit entailing an assessment of you against the applicable standards and other requirements prescribed by the NDIS Practice Standards (as referred to in paragraph 73E(1)(a) of the Act and
 - (b) submits the results of the completed audit to the NDIS Commission within 9 months after that last date.

Note: If you submit an application for further registration before the date specified on your Certificate of Registration as the last date of your period of registration, then by operation of section 73K of the NDIS Act, the registration will continue in force until the NDIS Commission makes a decision on the application under subsection 73E(1) of the NDIS Act.

Conditions imposed by rules made under sections 73H and 209 of the NDIS Act

3. It is a condition of your registration that you comply with:

- (a) Part 4 of the *National Disability Insurance Scheme (Provider Registration and Practice Standards) Rules 2018*; and
- (b) Parts 2 – 4 (as applicable) of the *National Disability Insurance Scheme (Restrictive Practices and Behaviour Support) Rules 2018*; and
- (c) if you are registered to provide specialist disability accommodation, Parts 2 and 5 of the *National Disability Insurance Scheme (Specialist Disability Accommodation Condition) Rules 2018*.

Note: Links to and information about these conditions are available at www.ndiscommission.gov.au.

CERTIFICATE OF CAPACITY



- A valid Certificate of Capacity must be provided if you are claiming compensation for loss of income because of a transport accident or work-related injury or illness.
- The certifier will use this Certificate of Capacity to communicate with your employer and your case manager about your work capacity (refer to the TAC or WorkSafe Victoria (WorkSafe) website for who can certify). Note: The first medical certificate for a work-related injury/condition WorkSafe claim must be issued by a medical practitioner.
- Certifiers - Please type or use block letters and ensure that all relevant sections are complete. Incomplete forms may be returned.

This certificate has been issued in relation to a:

☐ Transport accident related injury (TAC Claim) ☒ Work related injury/condition (WorkSafe claim)

This certificate has been issued to confirm attendance only Complete sections 1, 2, 5 & 6 only ☐

1. Worker Details

Worker First Name

Richard

Claim Number (if known)

Worker Last Name

McLean

Date of Injury (if Claim number not known)

18/1/21

Date of Birth

8/4/73

Worker Address

2 McCubbin Street

FOOTSCRAY

3011

2. Diagnosis

I examined you on

If this certificate refers to a period prior to the date of examination please provide details in Additional Comments (Section 3) below

My Clinical Diagnosis/es based on my examination of you and other available information is:

anxiety, depression reaction to dealing with clients trauma

3. Capacity Assessment

If capacity is affected further details MUST be provided in this section.
Continue to Section 4 if capacity is unaffected

Your work capacity is affected by your injury/condition as follows:

Physical Function	CAN	WITH MODIFICATIONS	CANNOT
Select applicable			
Sit	☒	☐	☐
Stand/Walk	☒	☐	☐
Bend	☒	☐	☐
Squat	☒	☐	☐
Kneel	☒	☐	☐
Reach above shoulder	☒	☐	☐
Use injured arm/hand	☒	☐	☐
Lift	☒	☐	☐
Neck movement	☒	☐	☐

Physical Function - Additional Comments eg. limits on durations weight-handling capacity repetitive or sustained postures movements or forces:

Mental Health Function

Select applicable

NOT AFFECTED AFFECTED

Attention/Concentration

☐

☒

Memory (short and/or long term)

☐

☒

Judgement (ability to make decisions)

☐

☒

Mental Health - Additional Comments eg. effects of mental health symptoms, cognitive function

Other Functional Considerations - not listed above

Other Functional Considerations - Additional Comments eg. effects of medication

Work Environment Considerations eg. physical (temperature, noise, space, light) or mental health considerations that affect work capacity

4. Certification

Note: Certificate durations for a work-related injury/condition (WorkSafe claim) unless special reasons apply are up to:
 • 14 days for the first certificate (must be issued by a medical practitioner) • 28 days for a subsequent certificate.

Taking into account the effects of your injury/condition, as outlined in section 3, you:

- ☐ Have a capacity for pre-injury employment from
- ☐ Have a capacity for suitable employment from to
- ☒ Have no capacity for employment from **25/5/21** to **22/6/21**

Estimated timeframe to return to work days or weeks

An estimated timeframe will assist with planning for a return to safe work

5. Treatment Plan

Your treatment plan including injury management, strategies to increase capacity for work, address return to work barriers and/or prevent recurrence/aggravation of injury:

medication , psychiatry

6. Certifier Declaration

I certify that I have clinically examined this patient. The information and medical opinions I have provided in this certificate are, to the best of my knowledge, true and correct.

Provider name, address and phone no. (or practice stamp)

Dr Richard Moore
370 ST GEORGES RD
FITZROY NORTH VIC 3068

Telephone **03 9485 7700**

Signature of Certifier

Provider number or Hospital name

0322489A

Date issued **25/5/21**

7. Worker Declaration – WORKER TO COMPLETE

MANDATORY unless this is the first certificate or an attendance certificate only

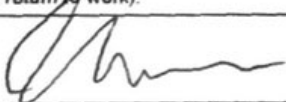
At any time since the last Certificate of Capacity was provided, have you engaged in:

- voluntary work, or
- any form of employment or in self-employment for which you have received or been entitled to receive payment in money or otherwise?

☒ No, I have not

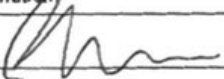
☐ Yes, I have

Please provide details of any voluntary work, employment or self-employment you have engaged in (other than with your pre-injury employer as part of your return to work):



I declare that the details I have given on this certificate are true and correct. I understand that it is an offence under the legislation to provide false or misleading information.

Signature of Worker



Date

25/05/21

Further Information**Returning to work**

If you have a work capacity for suitable employment your employer and case manager will use the information provided by your certifier on the Certificate of Capacity to assess suitable options for you to safely stay at or return to work. They will take into account what you can do safely and any limitations that apply to your individual circumstances. A capacity for suitable employment could mean working reduced hours while you recover or working modified or different duties until you can return to your normal work with your pre-injury employer or another employer.

Privacy

The TAC and WorkSafe (WorkSafe Agents and Self-Insurers) will handle your personal and health information in accordance with their privacy policies and legislation. You can access privacy policy information at the TAC and WorkSafe websites.

From: Rich McLean <richarddrawsstuff@gmail.com>
Sent: Tuesday, 25 May 2021 7:38 PM
To: Feedback.Mailbox; General.Enquiries; Lara Fleming; foi; Amy Delzoppo
Cc: Rich McLean
Subject: ATT Lara Fleming and Amy Delzoppo - URGENT
Attachments: workcover.commcare.pdf; MCLEAN, RICHARD WILLIAM - Invoice 300063677318.pdf

Dear Amy Delzoppo and Lara Fleming,

Please be made urgently aware of this email before 'YOUR' decision that is expected tomorrow.

Please find attached my latest workcover statement that covers me up until 22/06/2021. It is a work related injury/condition as the drs report says.

Also if I am not employed or covered by NDIS / NDIA

Then why have I got an advance payment from them?

Please consider this when you 'assess' me for eligibility which I have already proven, and I bade a warning below.

Please bear in mind you sent me this information:

'During this initial contact, the claims manager will discuss your claim and the claims process. They may also request additional information to help progress your claim. You will also have the opportunity to ask questions and learn more about the claim process.

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- any treatment you do have will include clear recovery goals and ongoing measurement of your progress; and
- staying in or returning to good work will be part of your overall recovery and return to health as far as possible.

If your claim is not accepted, we will explain our decision. We will also inform you how you can get the decision reviewed and we will suggest other support services that are available to you.'

In actual fact, you have already rejected me.

Your Boss, in so called 'quality assurance' Lara Fleming, says this is not the case, yet she seems unsure or unable to say with any surety or confidence one way or the other.

Additionally a cc'd email states from Worksafe that commcare are my insurer in their opinion:

(In addition, I have only worked in Victoria too, but have the agency for national work),

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On 18 May 2021, at 9:52 am, Advisory_Service@worksafe.vic.gov.au wrote:

Hi Rich,

Thank you for contacting WorkSafe Advisory.

As per your email I can see your claim is managed by CommCare.

Please liaise with CommCare for any queries you have with the claim process.

Kind Regards

Cassandra

Cassandra
Advisor

info@worksafe.vic.gov.au
Tel/ 1800 136 089 or 9641 1444

Head Office, 1 Malop
Street
Geelong VIC 3220
www.worksafe.vic.gov.au

<14590346.gif> <ecblank.gif>

Additionally Lara said she would give me an update and outcome today, this email is from yesterday:

'Good afternoon Dr McLean,

Thank you for your email dated 20 May 2021.

I'm writing to advise that we are still reviewing the information on your claim file and will provide you with an update tomorrow.

Kind regards,
Lara Fleming

Assistant Director
Claims Operations | Canberra
Claims Management Group | Comcare
P: (02) 6225 2391

I also emailed all of you with this URGENT request and this evidence of an advance payment from the NDIA:

'As a registered provider and in debt to the NDIA as my 'employer', whom I am a 'sole trader' and 'contract' to:

I stopped work on the 22nd Jan - due to an injury/illness I sustained at work. I have attached the workcover forms I filled out. I have medical evidence from my doctor to back it up. I have other evidence from my work under the NDIA that reasonably translates the situation I was triggered by by my client of the NDIS.

The reluctance of my private health insurance to reimburse what I was covered for - income assist - led me to be destitute & become bankrupt-and further due to the financial distress this caused in addition to the triggered response I had while at work, I was further incarcerated against my will and hospitalised where I sustained injuries complicated by the situation.

1) Workcover says I am covered, but covered by which insurer? I assume it is Commcare.

2) I have called the NDIS & NDIA and they say I am NOT covered for workers compensation through the NDIA NOR the NDIS, even though I have registered NDIS provider ID number 4050046572 - and you are an 'employer' of myself who is paid in ways, through the portal of PRODA - a government agency - hence the NDIA is the people I contract to and currently owe money to as an 'employee'. The NDIA had gifted me this money though COVID because it is a responsible thing to do for an 'employee' that is under the auspice of NDIA.

3) Because I was denied cover for my stress related illness that was explicably work-related by my private insurer, I was forced to bankruptcy so because this debt was incurred when I went bankrupt - I CANNOT pay.

4) This private insurance company were brutal in their assessment and it has not been resolved - it is still before AFCA - in addition they say they will pay it IF I have a workcover claim for the same 'injury' or 'psychological injury' for the same condition.

5) Hence I have been in conversation with Commsure the federal governments insurance agency to see if I am covered by them | ie: who will my insurer be if not the NDIA?

6) This debit reasonably demonstrates in an acute way that the NDIA actually IS my employer, and hence you would assume, I would be covered under federal insurer.

So I wish to state and ask of Commsure, the NDIA, the NDIS, workcover, and work safe:

Is it reasonable for me to conclude I will be covered for workcover by Commsure because this debt is exemplary of me even though I am a sole trader, to be an 'employee' of the NDIA?

q) If not, why not? Please provide evidence in legislative terms that demonstrates my exemption of cover by Commsure.

I remind you that the NDIS quality and safeguards commission is in the dropdown box on the menu of Commcare's website for claims.

Please treat this as urgent.

Thanks for all your replies.

Rich

Dr Rich McLean

Phd, MeD, BFA, Ass Dip CAD

P : (+61) 0400 639 248

E: rich@richmclean.com.auWeb: www.richmclean.com.au

Please see below too:

Re Amy

On 13 May 2021, at 4:07 pm, Amy Delzoppo <Delzoppo.Amy@comcare.gov.au> wrote:

OFFICIAL

Good afternoon Richard

Thank you for your time yesterday.

As discussed, National Disability Insurance Agency (NDIA) have advised that you are not employed by them and they are not paying your wage. Please find attached the emails NDIA provided to Comcare.

***I interrupt* Amy Delzoppo has OFFICIALLY stated she has attached the emails that NDIA provided to ComCare - but THERE WAS NOTHING ATTACHED and the NDIA has not responded**

You further go on...and I correct you on the points below:

When a new claim is received, Comcare must be satisfied that the claim has been lodged by an employee as defined under the *Safety Rehabilitation and Compensation Act 1988* (SRC Act). If not, then coverage does not exist for the person under the SRC Act.

Subsection 5(1) to (15) of the SRC Act provides coverage for the following employees:

- Employees of ACT Government
- Employees of the Commonwealth
- Employees who work for Members of Parliament
- Members of the Australian Federal Police
- **Persons employed under a contract of service**
- Persons works as apprentices or graduate for the Commonwealth
- Employees of Commonwealth authorities and licenced corporations
- Persons declared by the Minister to be Commonwealth employees
- Persons declared by the Minister to be employees of the Australian Capital Territory

NDIA have stated you are not an NDIA employee. Therefore, I have explored whether you are engaged under a contract of service with NDIA. Generally the key indicators of a contract of service are:

- The NDIA has the power to hire the person engaged for the job

NOTE: The NDIA 'approved' me, and can indeed, fire me.

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- The payment is in the form of wages and the NDIA deducts tax and pays superannuation
- The person engaged in being paid by the NDIA and not through a separate company

NOTE: The above would accurately describe this as TRUE

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- The NDIA has the right to supervise and control the manner in which the employee does his work

NOTE: The above would accurately because I have to do an audit my the NDIS quality Assurance and safeguards Commission. If I dont meet those, and I am yet to find out - I will be excluded from my job.

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- The person engaged in subject to the NDIA's disciplinary standards and any other internal department policies which provide guidance and standards of behaviour.

NOTE: The above would accurately because I have to do an audit my the NDIS quality Assurance and safeguards Commission. If I dont meet those, and I am yet to find out - I will be excluded from my job. Additionally I have to make progress reports, lease with different organisations and do risk assessments and additionally have to comply with 'reportable instances' within a definite timeframe.

NDIA's response suggest that you do not meet these key indicators.

I DISAGREE

Based on the information available, I am not satisfied you are an employee under the SRC Act and cannot be covered for workers' compensation from Comcare.

What do you think now I have outlined the above?

Please treat this as URGENT, as I am homeless.

Rich

You are welcome to provide a copy of your contract with NDIA which should set out the terms and conditions of your engagement with them. If you would like to provide this, could you please do so by 20 May 2021? If nothing further is received from you by this time, I will need to decline your claim based on the available evidence not supporting you are an employee as defined under the SRC Act.

Warmest regards,

Amy Delzoppo

Senior Claims Manager

Canberra 7 | Claims Management Canberra

Claims Management Group | Canberra

P: (02) 6276 0354

COVID-19 Update: While we are unable to serve you in person during COVID-19, we are still working and you can [contact us](#) via phone or email. Work health and safety is our highest priority. We monitor this situation daily and regularly update our [COVID-19 guidance](#).

Begin forwarded message:

From: SCHEMEDEBTMANAGEMENTTEAM

<SCHEMEDEBTMANAGEMENTTEAM@ndis.gov.au>

Subject: LETTER OF DEMAND – OUTSTANDING DEBT TO NDIA

[SEC=OFFICIAL]

Date: 13 May 2021 at 3:46:44 pm AEST

To: "rich@richmclean.com.au" <rich@richmclean.com.au>

Dear Provider,

Recovery of Advance Payment for Registered NDIS Providers

Thank you for speaking to us recently in regard to repayment of the Advance Payment, which was made by the NDIA to your organisation on or around the 30th March 2020.

Please see attached an invoice for the balance owing of \$1,048.73

Please arrange payment by COB 20 May 2021.

The NDIA reserves its rights in respect of the Advance Payment.

If you have any queries in relation to the invoice please contact the schemedebtmanagementteam@ndis.gov.au mailbox.

Yours Sincerely

Scheme Debt Management Team
National Disability Insurance Agency

Email schemedebtmanagementteam@ndis.gov.au

Here is the evidence:

- Their ABN is: 25617475104
- The date of the invoice in which they 'reserve its rights' ie: I owe them, is stated above.
- It is a TAX INVOICE (ie: an employer).
- Document number: 300063677318
- My NDIA number (ie my employee number), is stated clearly as: 4050046572
- It is addressed to me personally- not my business www.richmclean.com.au
- It is for an advance payment from my employer in the time of COVID:
- The number of that advance payment issued is: 300063667057
- I also have a vendor number of: 4050046572
- The account I have to pay it back to is The NDIA - so obviously and without a doubt - I am employed by them - and workcover are right - Comminsure is my insurer for workcover.
- The invoice is invoiced to me personally.
- It is none of your nor Lara's Fleming's business if I do or do not have private health insurance cover for my business, and whether if I do they pay me or not- that is irrelevant.
- I have a recording of Lara asking me such questions.

I wish to state that as a person who has been prejudiced to be in debt and homeless, I exercise my right, and have also informed you both, that I have recorded our conversations - and additionally have a record of our emails that would not satisfy a court that I am exempt from cover.

Any further delay will affect my mallovs hierarchy of needs, (ie, housing and shelter), and so I have no choice but to exercise my right of publishing this evidence identifying both yourself as rejecting my claim and Lara Fleming's weak arguments to me on the phone calls that I have recorded

You are both clearly identified and recorded rejecting me and then un-rejecting me, then rejecting me again, and now you are doing what most organisations institutes and organisations do with my human rights and that is...kick the can down the road and elongate it knowing full well it will leave me starving and destitute.

If it is not resolved in my favour tomorrow, I will have no other option but to add both your names and the cover up at ComCare to my whistleblower Statement for the Federal Police and for the Independent Broad based Anti Corruption Commission (IBAC) or other agency.

This will result in you both being civilly pursued as agents of a force that are rejecting my health my wealth freedom prosperity and my livelihood

And I deserve better and I indeed think you could both do without the 10-15 years jail that 'Conspiracy to pervert the course of justice' attracts when it goes to the federal court.

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1. Amy Delzoppo and
2. Lara Flemming

I look forward to hearing the favourable outcome, that is actually backed up by legislative evidence, to justify your position given the circumstances.

Failure to do so will convince me that the powers that be are denying me prosperity civil and legal rights and freedom, and I will publish the entire email thread above, including telephone calls I have exemption to publish under a whistleblower statement.

I also am now granted protection from litigation as a whistleblower, and additionally have an exemption to publish your recordings.

I also have in an exemption of the surveillance devices legislation 1999, in that I can publish a one sided conversation to be used in the high court because it is protecting my life and litigation. (Look it up).

Regards,

Dr Rich McLean

svc_PROD_ADLIB

From: Amy Delzoppo <Delzoppo.Amy@comcare.gov.au>
Sent: Wednesday, 26 May 2021 9:13 AM
To: Email.RMC
Subject: FW: ATT Lara Fleming and Amy Delzoppo - URGENT [SEC=OFFICIAL]
Attachments: workcover.commcare.pdf; MCLEAN, RICHARD WILLIAM - Invoice 300063677318.pdf

OFFICIAL

Please scan as one file to 1326583/1

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Sent: Tuesday, 25 May 2021 7:38 PM
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Cassandra

Cassandra
Advisor info@worksafe.vic.gov.au
Tel/ 1800 136 089 or 9641 1444

Head Office, 1 Malop
Street
Geelong VIC 3220
www.worksafe.vic.gov.au

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Thanks for all your replies.

Rich

Dr Rich McLean

Phd, MeD, BFA, Ass Dip CAD

P : (+61) 0400 639 248

E: rich@richmclean.com.au

Web: www.richmclean.com.au

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Warmest regards,

Amy Delzoppo

Senior Claims Manager

Canberra 7 | Claims Management Canberra

Claims Management Group | Canberra

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<SCHEMEDEBTMANAGEMENTTEAM@ndis.gov.au>

Subject: LETTER OF DEMAND – OUTSTANDING DEBT TO NDIA [SEC=OFFICIAL]

Date: 13 May 2021 at 3:46:44 pm AEST

To: "rich@richmclean.com.au" <rich@richmclean.com.au>

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National Disability Insurance Agency

Email schemedebtmanagementteam@ndis.gov.au

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1. Amy Delzoppo and
2. Lara Flemming

I look forward to hearing the favourable outcome, that is actually backed up by legislative evidence, to justify your position given the circumstances.

Failure to do so will convince me that the powers that be are denying me prosperity civil and legal rights and freedom, and I will publish the entire email thread above, including telephone calls I have exemption to publish under a whistleblower statement.

I also am now granted protection from litigation as a whistleblower, and additionally have an exemption to publish your recordings.

I also have in an exemption of the surveillance devices legislation 1999, in that I can publish a one sided conversation to be used in the high court because it is protecting my life and litigation. (Look it up).

Regards,

Dr Rich McLean

CERTIFICATE OF CAPACITY



- A valid Certificate of Capacity must be provided if you are claiming compensation for loss of income because of a transport accident or work-related injury or illness.
- The certifier will use this Certificate of Capacity to communicate with your employer and your case manager about your work capacity (refer to the TAC or WorkSafe Victoria (WorkSafe) website for who can certify). Note: The first medical certificate for a work-related injury/condition WorkSafe claim must be issued by a medical practitioner.
- Certifiers - Please type or use block letters and ensure that all relevant sections are complete. Incomplete forms may be returned.

This certificate has been issued in relation to a:

☐ Transport accident related injury (TAC Claim) ☒ Work related injury/condition (WorkSafe claim)

This certificate has been issued to confirm attendance only Complete sections 1, 2, 5 & 6 only ☐

1. Worker Details

Worker First Name

Richard

Claim Number (if known)

Worker Last Name

McLean

Date of Injury (if Claim number not known)

18/1/21

Date of Birth

8/4/73

Worker Address

2 McCubbin Street

FOOTSCRAY

3011

2. Diagnosis

I examined you on

If this certificate refers to a period prior to the date of examination please provide details in Additional Comments (Section 3) below

My Clinical Diagnosis/es based on my examination of you and other available information is:

anxiety, depression reaction to dealing with clients trauma

3. Capacity Assessment

If capacity is affected further details MUST be provided in this section.
Continue to Section 4 if capacity is unaffected

Your work capacity is affected by your injury/condition as follows:

Physical Function	CAN	WITH MODIFICATIONS	CANNOT
Select applicable			
Sit	☒	☐	☐
Stand/Walk	☒	☐	☐
Bend	☒	☐	☐
Squat	☒	☐	☐
Kneel	☒	☐	☐
Reach above shoulder	☒	☐	☐
Use injured arm/hand	☒	☐	☐
Lift	☒	☐	☐
Neck movement	☒	☐	☐

Physical Function - Additional Comments eg. limits on durations, weight-handling capacity repetitive or sustained postures/movements or forces:

Mental Health Function

Select applicable

NOT
AFFECTED

AFFECTED

Attention/Concentration

☐

☒

Memory (short and/or long term)

☐

☒

Judgement (ability to make decisions)

☐

☒

Mental Health - Additional Comments eg. effects of mental health symptoms, cognitive function

Other Functional Considerations - not listed above

Other Functional Considerations - Additional Comments eg. effects of medication

Work Environment Considerations eg. physical (temperature, noise, space, light) or mental health considerations that affect work capacity

4. Certification

Note: Certificate durations for a work-related injury/condition (WorkSafe claim) unless special reasons apply are up to:
 • 14 days for the first certificate (must be issued by a medical practitioner) • 28 days for a subsequent certificate.

Taking into account the effects of your injury/condition, as outlined in section 3, you:

- ☐ Have a capacity for pre-injury employment from
- ☐ Have a capacity for suitable employment from to
- ☒ Have no capacity for employment from **25/5/21** to **22/6/21**

Estimated timeframe to return to work days or weeks

An estimated timeframe will assist with planning for a return to safe work

5. Treatment Plan

Your treatment plan including injury management, strategies to increase capacity for work, address return to work barriers and/or prevent recurrence/aggravation of injury:

medication , psychiatry

6. Certifier Declaration

I certify that I have clinically examined this patient. The information and medical opinions I have provided in this certificate are, to the best of my knowledge, true and correct.

Provider name, address and phone no. (or practice stamp)

Dr Richard Moore
370 ST GEORGES RD
FITZROY NORTH VIC 3068

Telephone **03 9485 7700**

Signature of Certifier

Provider number or Hospital name

0322489A

Date issued **25/5/21**

7. Worker Declaration – WORKER TO COMPLETE

MANDATORY unless this is the first certificate or an attendance certificate only

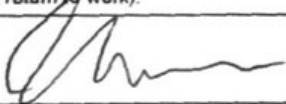
At any time since the last Certificate of Capacity was provided, have you engaged in:

- voluntary work, or
- any form of employment or in self-employment for which you have received or been entitled to receive payment in money or otherwise?

☒ No, I have not

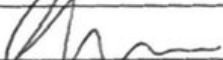
☐ Yes, I have

Please provide details of any voluntary work, employment or self-employment you have engaged in (other than with your pre-injury employer as part of your return to work):



I declare that the details I have given on this certificate are true and correct. I understand that it is an offence under the legislation to provide false or misleading information.

Signature of Worker



Date

25/05/21

Further Information**Returning to work**

If you have a work capacity for suitable employment your employer and case manager will use the information provided by your certifier on the Certificate of Capacity to assess suitable options for you to safely stay at or return to work. They will take into account what you can do safely and any limitations that apply to your individual circumstances. A capacity for suitable employment could mean working reduced hours while you recover or working modified or different duties until you can return to your normal work with your pre-injury employer or another employer.

Privacy

The TAC and WorkSafe (WorkSafe Agents and Self-Insurers) will handle your personal and health information in accordance with their privacy policies and legislation. You can access privacy policy information at the TAC and WorkSafe websites.



Delivered by the
National Disability
Insurance Agency

Collector of Public Monies
GPO Box 700
CANBERRA ACT 2601
Email: schemedebtmanagementteam@ndis.gov.au

ABN 25617475104

TAX INVOICE

Vendor MCLEAN, RICHARD WILLIAM 2 McCubbin Street FOOTSCRAY VIC 3011 rich@richmclean.com.au	Date 13.05.2021 Document No 300063677318 NDIA No 4050046572 Due Date 20.05.2021
---	--

DESCRIPTION	AMOUNT	GST	TOTAL
Recovery – COVID 19 Advance Payment - 300063667057	\$1,048.73	0.00	\$1,048.73
Total Amount Payable			\$1,048.73

Preferred method of payment is Electronic Funds Transfer to:
Account Name: National Disability Insurance Agency
BSB: 092-009, Account No: 121335, Reserve Bank Australia, Canberra.
Please include the invoice number 300063677318 in your payment reference.

Alternatively, please remit this tear-off with your cheque to the above address.

Name	Vendor No.	Date	Document No.	Total Amount
MCLEAN, RICHARD WILLIAM	4050046572	13.05.2021	300063677318	\$1,048.73

svc_PROD_ADLIB

From: Rich McLean <richarddrawsstuff@gmail.com>
Sent: Tuesday, 25 May 2021 7:34 PM
To: General.Enquiries
Cc: Rich McLean
Subject: Re: Claim 1326583/1[SEC=OFFICIAL:Sensitive]
Attachments: workcover.commcare.pdf; MCLEAN, RICHARD WILLIAM - Invoice 300063677318.pdf

Dear Amy Delzoppo and Lara Fleming,

Please be made urgently aware of this email before 'YOUR' decision that is expected tomorrow.

Please find attached my latest workcover statement that covers me up until 22/06/2021. It is a work related injury/condition as the drs report says.

Sensitive: This document may contain sensitive information as defined under Section 6 of the Privacy Act.

Also if I am not employed or covered by NDIS / NDIA

Then why have I got an advance payment from them?

Please consider this when you 'assess' me for eligibility which I have already proven, and I bade a warning below.

Please bear in mind you sent me this information:

'During this initial contact, the claims manager will discuss your claim and the claims process. They may also request additional information to help progress your claim. You will also have the opportunity to ask questions and learn more about the claim process.

Your claims manager is here to support you through the claims process.

Claim assessment

Following the initial contact, your claim will be assessed, and you will be informed if your claim has been accepted.

If your claim is accepted:

- you will have access to medical and health treatments and services that are evidence based and will best support your recovery
- any treatment you do have will include clear recovery goals and ongoing measurement of your progress; and
- staying in or returning to good work will be part of your overall recovery and return to health as far as possible.

If your claim is not accepted, we will explain our decision. We will also inform you how you can get the decision reviewed and we will suggest other support services that are available to you.'

In actual fact, you have already rejected me.

CERTIFICATE OF CAPACITY



- A valid Certificate of Capacity must be provided if you are claiming compensation for loss of income because of a transport accident or work-related injury or illness.
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1. Worker Details

Worker First Name

Richard

Claim Number (if known)

Worker Last Name

McLean

Date of Injury (if Claim number not known)

18/1/21

Date of Birth

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Memory (short and/or long term)

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Judgement (ability to make decisions)

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Mental Health - Additional Comments eg. effects of mental health symptoms, cognitive function

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Provider name, address and phone no. (or practice stamp)

Dr Richard Moore
370 ST GEORGES RD
FITZROY NORTH VIC 3068

Telephone **03 9485 7700**

Signature of Certifier

Provider number or Hospital name

0322489A

Date issued **25/5/21**

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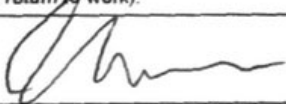
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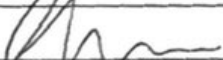
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Date

25/05/21

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svc_PROD_ADLIB

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Sent: Tuesday, 25 May 2021 7:34 PM
To: General.Enquiries
Cc: Rich McLean
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Attachments: workcover.commcare.pdf; MCLEAN, RICHARD WILLIAM - Invoice 300063677318.pdf

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If your claim is not accepted, we will explain our decision. We will also inform you how you can get the decision reviewed and we will suggest other support services that are available to you.'

In actual fact, you have already rejected me.

Your Boss, in so called 'quality assurance' Lara Fleming, says this is not the case, yet she seems unsure or unable to say with any surety or confidence one way or the other.

Additionally a cc'd email states from Worksafe that commcare are my insurer in their opinion:

(In addition, I have only worked in Victoria too, but have the agency for national work),

,

On 18 May 2021, at 9:52 am, Advisory_Service@worksafe.vic.gov.au wrote:

Hi Rich,

Thank you for contacting WorkSafe Advisory.

As per your email I can see your claim is managed by CommCare.

Please liaise with CommCare for any queries you have with the claim process.

Kind Regards

Cassandra

Cassandra
Advisor

info@worksafe.vic.gov.au
Tel/ 1800 136 089 or 9641 1444

Head Office, 1 Malop
Street
Geelong VIC 3220
www.worksafe.vic.gov.au

<14590346.gif> <ecblank.gif>

Additionally Lara said she would give me an update and outcome today, this email is from yesterday:

'Good afternoon Dr McLean,

Thank you for your email dated 20 May 2021.

I'm writing to advise that we are still reviewing the information on your claim file and will provide you with an update tomorrow.

Kind regards,
Lara Fleming

Assistant Director
Claims Operations | Canberra
Claims Management Group | Comcare
P: (02) 6225 2391

I also emailed all of you with this URGENT request and this evidence of an advance payment from the NDIA:

'As a registered provider and in debt to the NDIA as my 'employer', whom I am a 'sole trader' and 'contract' to:

I stopped work on the 22nd Jan - due to an injury/illness I sustained at work. I have attached the workcover forms I filled out. I have medical evidence from my doctor to back it up. I have other evidence from my work under the NDIA that reasonably translates the situation I was triggered by by my client of the NDIS.

The reluctance of my private health insurance to reimburse what I was covered for - income assist - led me to be destitute & become bankrupt-and further due to the financial distress this caused in addition to the triggered response I had while at work, I was further incarcerated against my will and hospitalised where I sustained injuries complicated by the situation.

1) Workcover says I am covered, but covered by which insurer? I assume it is Commcare.

2) I have called the NDIS & NDIA and they say I am NOT covered for workers compensation through the NDIA NOR the NDIS, even though I have registered NDIS provider ID number 4050046572 - and you are an 'employer' of myself who is paid in ways, through the portal of PRODA - a government agency - hence the NDIA is the people I contract to and currently owe money to as an 'employee'. The NDIA had gifted me this money though COVID because it is a responsible thing to do for an 'employee' that is under the auspice of NDIA.

3) Because I was denied cover for my stress related illness that was explicably work-related by my private insurer, I was forced to bankruptcy so because this debt was incurred when I went bankrupt - I CANNOT pay.

4) This private insurance company were brutal in their assessment and it has not been resolved - it is still before AFCA - in addition they say they will pay it IF I have a workcover claim for the same 'injury' or 'psychological injury' for the same condition.

5) Hence I have been in conversation with Commsure the federal governments insurance agency to see if I am covered by them | ie: who will my insurer be if not the NDIA?

6) This debit reasonably demonstrates in an acute way that the NDIA actually IS my employer, and hence you would assume, I would be covered under federal insurer.

So I wish to state and ask of Commsure, the NDIA, the NDIS, workcover, and work safe:

Is it reasonable for me to conclude I will be covered for workcover by Commsure because this debt is exemplary of me even though I am a sole trader, to be an 'employee' of the NDIA?

q) If not, why not? Please provide evidence in legislative terms that demonstrates my exemption of cover by Commsure.

I remind you that the NDIS quality and safeguards commission is in the dropdown box on the menu of Commcare's website for claims.

Please treat this as urgent.

Thanks for all your replies.

Rich

Dr Rich McLean

Phd, MeD, BFA, Ass Dip CAD

P : (+61) 0400 639 248

E: rich@richmclean.com.auWeb: www.richmclean.com.au

Please see below too:

Re Amy

On 13 May 2021, at 4:07 pm, Amy Delzoppo <Delzoppo.Amy@comcare.gov.au> wrote:**OFFICIAL**

Good afternoon Richard

Thank you for your time yesterday.

As discussed, National Disability Insurance Agency (NDIA) have advised that you are not employed by them and they are not paying your wage. Please find attached the emails NDIA provided to Comcare.

***I interrupt* Amy Delzoppo has OFFICIALLY stated she has attached the emails that NDIA provided to ComCare - but THERE WAS NOTHING ATTACHED and the NDIA has not responded**

You further go on...and I correct you on the points below:

When a new claim is received, Comcare must be satisfied that the claim has been lodged by an employee as defined under the *Safety Rehabilitation and Compensation Act 1988* (SRC Act). If not, then coverage does not exist for the person under the SRC Act.

Subsection 5(1) to (15) of the SRC Act provides coverage for the following employees:

- Employees of ACT Government
- Employees of the Commonwealth
- Employees who work for Members of Parliament
- Members of the Australian Federal Police
- **Persons employed under a contract of service**
- Persons works as apprentices or graduate for the Commonwealth
- Employees of Commonwealth authorities and licenced corporations
- Persons declared by the Minister to be Commonwealth employees
- Persons declared by the Minister to be employees of the Australian Capital Territory

NDIA have stated you are not an NDIA employee. Therefore, I have explored whether you are engaged under a contract of service with NDIA. Generally the key indicators of a contract of service are:

- The NDIA has the power to hire the person engaged for the job

NOTE: The NDIA 'approved' me, and can indeed, fire me.

-
- The payment is in the form of wages and the NDIA deducts tax and pays superannuation
- The person engaged in being paid by the NDIA and not through a separate company

NOTE: The above would accurately describe this as TRUE

-
- The NDIA has the right to supervise and control the manner in which the employee does his work

NOTE: The above would accurately because I have to do an audit my the NDIS quality Assurance and safeguards Commission. If I dont meet those, and I am yet to find out - I will be excluded from my job.

-
- The person engaged in subject to the NDIA's disciplinary standards and any other internal department policies which provide guidance and standards of behaviour.

NOTE: The above would accurately because I have to do an audit my the NDIS quality Assurance and safeguards Commission. If I dont meet those, and I am yet to find out - I will be excluded from my job. Additionally I have to make progress reports, lease with different organisations and do risk assessments and additionally have to comply with 'reportable instances' within a definite timeframe.

NDIA's response suggest that you do not meet these key indicators.

I DISAGREE

Based on the information available, I am not satisfied you are an employee under the SRC Act and cannot be covered for workers' compensation from Comcare.

What do you think now I have outlined the above?

Please treat this as URGENT, as I am homeless.

Rich

You are welcome to provide a copy of your contract with NDIA which should set out the terms and conditions of your engagement with them. If you would like to provide this, could you please do so by 20 May 2021? If nothing further is received from you by this time, I will need to decline your claim based on the available evidence not supporting you are an employee as defined under the SRC Act.

Warmest regards,

Amy Delzoppo

Senior Claims Manager

Canberra 7 | Claims Management Canberra

Claims Management Group | Canberra

P: (02) 6276 0354

COVID-19 Update: While we are unable to serve you in person during COVID-19, we are still working and you can [contact us](#) via phone or email. Work health and safety is our highest priority. We monitor this situation daily and regularly update our [COVID-19 guidance](#).

Begin forwarded message:

From: SCHEMEDEBTMANAGEMENTTEAM

<SCHEMEDEBTMANAGEMENTTEAM@ndis.gov.au>

Subject: LETTER OF DEMAND – OUTSTANDING DEBT TO NDIA

[SEC=OFFICIAL]

Date: 13 May 2021 at 3:46:44 pm AEST

To: "rich@richmclean.com.au" <rich@richmclean.com.au>

Dear Provider,

Recovery of Advance Payment for Registered NDIS Providers

Thank you for speaking to us recently in regard to repayment of the Advance Payment, which was made by the NDIA to your organisation on or around the 30th March 2020.

Please see attached an invoice for the balance owing of \$1,048.73

Please arrange payment by COB 20 May 2021.

The NDIA reserves its rights in respect of the Advance Payment.

If you have any queries in relation to the invoice please contact the schemedebtmanagementteam@ndis.gov.au mailbox.

Yours Sincerely

Scheme Debt Management Team
National Disability Insurance Agency

Email schemedebtmanagementteam@ndis.gov.au

Here is the evidence:

- Their ABN is: 25617475104
-
- The date of the invoice in which they 'reserve its rights' ie: I owe them, is stated above.
-
- It is a TAX INVOICE (ie: an employer).
-
- Document number: 300063677318
-
- My NDIA number (ie my employee number), is stated clearly as: 4050046572
-
- It is addressed to me personally- not my business www.richmclean.com.au
-
- It is for an advance payment from my employer in the time of COVID:
-
- The number of that advance payment issued is: 300063667057
-
- I also have a vendor number of: 4050046572
-
- The account I have to pay it back to is The NDIA - so obviously and without a doubt - I am employed by them - and workcover are right - Comminsure is my insurer for workcover.
-
- The invoice is invoiced to me personally.
-
- It is none of your nor Lara's Fleming's business if I do or do not have private health insurance cover for my business, and whether if I do they pay me or not- that is irrelevant.
-
- I have a recording of Lara asking me such questions.

I wish to state that as a person who has been prejudiced to be in debt and homeless, I exercise my right, and have also informed you both, that I have recorded our conversations - and additionally have a record of our emails that would not satisfy a court that I am exempt from cover.

Any further delay will affect my mallows hierarchy of needs, (ie, housing and shelter), and so I have no choice but to exercise my right of publishing this evidence identifying both yourself as rejecting my claim and Lara Fleming's weak arguments to me on the phone calls that I have recorded

You are both clearly identified and recorded rejecting me and then un-rejecting me, then rejecting me again, and now you are doing what most organisations institutes and organisations do with my human rights and that is, ...kick the can down the road and elongate it knowing full well it will leave me starving and destitute.

If it is not resolved in my favour tomorrow, I will have no other option but to add both your names and the cover up at ComCare to my whistleblower Statement for the Federal Police and for the Independent Broad based Anti Corruption Commission (IBAC) or other agency.

This will result in you both being civilly pursued as agents of a force that are rejecting my health my wealth freedom prosperity and my livelihood

And I deserve better and I indeed think you could both do without the 10-15 years jail that 'Conspiracy to pervert the course of justice' attracts when it goes to the federal court.

Both of you do not know the circumstances by which you are being told by someone senior or 'higher than you' to 'kick the can down the road', and reject me as not being covered.

This is the way I have been victimised for many years now, and I will hold all pawns of public office of the veneer of disadvantaging me as such to that whistleblower complaint of agents that disrupt, persecute me, deny my freedoms and my agency to have prosperity.

You are both in above your head, for only I know the reason you are being told to reject me.

Please do not self demonise yourselves with jail time via my whistleblower statement simply because you are told to.

You are both better than that.

I have proven a valid case and failure to demonstrate that will lead to conviction via my whistleblower statement- so either hand it to someone who is identifiable senior to you, or I dare say suffer the consequences.

Here is the evidence, below, which the federal conspiracy has been watching and deleted off of my computer, but which I will publish along with this email.

So in fact, Comcare are a faceless identity - and I will not be rejected by someone I cannot civilly identify - so I will be placing the criminal offence of 'conspiracy to pervert the course of justice' on the highest named individuals complicit in the crime.

1. Amy Delzoppo and
2. Lara Flemming

I look forward to hearing the favourable outcome, that is actually backed up by legislative evidence, to justify your position given the circumstances.

Failure to do so will convince me that the powers that be are denying me prosperity civil and legal rights and freedom, and I will publish the entire email thread above, including telephone calls I have exemption to publish under a whistleblower statement.

I also am now granted protection from litigation as a whistleblower, and additionally have an exemption to publish your recordings.

I also have in an exemption of the surveillance devices legislation 1999, in that I can publish a one sided conversation to be used in the high court because it is protecting my life and litigation. (Look it up).

Regards,

Dr Rich McLean

On 25 May 2021, at 5:41 pm, General.Enquiries <Enquiries.General@comcare.gov.au> wrote:

Hi Richard

I am writing to provide you with an update on your workers compensation claim. Comcare will have an outcome on your claim tomorrow and will be in contact then.

Warmest regards,

Amy Delzoppo
Senior Claims Manager
Canberra 7 | Claims Management Canberra
Claims Management Group | Canberra
P: (02) 6276 0354
Comcare
GPO Box 9905, Canberra, ACT 2601
1300 366 979
www.comcare.gov.au

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Delivered by the
National Disability
Insurance Agency

Collector of Public Monies
GPO Box 700
CANBERRA ACT 2601
Email: schemedebtmanagementteam@ndis.gov.au

ABN 25617475104

TAX INVOICE

Vendor MCLEAN, RICHARD WILLIAM 2 McCubbin Street FOOTSCRAY VIC 3011 rich@richmclean.com.au	Date 13.05.2021 Document No 300063677318 NDIA No 4050046572 Due Date 20.05.2021
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DESCRIPTION	AMOUNT	GST	TOTAL
Recovery – COVID 19 Advance Payment - 300063667057	\$1,048.73	0.00	\$1,048.73
Total Amount Payable			\$1,048.73

Preferred method of payment is Electronic Funds Transfer to:
Account Name: National Disability Insurance Agency
BSB: 092-009, Account No: 121335, Reserve Bank Australia, Canberra.
Please include the invoice number 300063677318 in your payment reference.

Alternatively, please remit this tear-off with your cheque to the above address.

Name	Vendor No.	Date	Document No.	Total Amount
MCLEAN, RICHARD WILLIAM	4050046572	13.05.2021	300063677318	\$1,048.73

From: Dr Rich Mclean <rich@richmclean.com.au>
Sent: Tuesday, 25 May 2021 7:38 PM
To: mailbox.feedback@comcare.gov.au; general.enquiries@comcare.gov.au; fleming.lara@comcare.gov.au; foi@comcare.gov.au; Amy Delzoppo
Cc: Rich McLean; Rich McLean
Subject: URGENT
Attachments: workcover.commcare.pdf; Untitled attachment 00010.htm; MCLEAN, RICHARD WILLIAM - Invoice 300063677318.pdf; Untitled attachment 00013.htm

Dear Amy Delzoppo and Lara Fleming,

Please be made urgently aware of this email before 'YOUR' decision that is expected tomorrow.

Please find attached my latest workcover statement that covers me up until 22/06/2021. It is a work related injury/condition as the drs report says.

Dr Richard William McLean
 2 McCubbin Street
 FOOTSCRAY 3011

26 May 2021

Dear Dr McLean

Your claim for workers' compensation

Claimed condition: anxiety and depression

Date of injury: 22 January 2021

Determination

I am writing to advise that your claim for Workers' Compensation has been declined under section 14 of the *Safety, Rehabilitation and Compensation Act 1988* (SRC Act) for anxiety state and depressive disorder.

Reasons for decision

When assessing a claim, Comcare needs to be satisfied that several criteria are met. The first criteria being confirmation that the person is an 'employee' in accordance with section 5 of the SRC Act.

Subsection 5(1) of the SRC Act defines an employee to mean:

- a) A person who is **employed by the Commonwealth or a Commonwealth authority**, whether the person is **employed under a law of the Commonwealth** or of a Territory or **under a contract of service** or apprenticeship; or
- b) A person who is employed by a licensed corporation.

Are you employed by the Commonwealth?

In your workers' compensation claim form dated 26 April 2021 you state your usual occupation is 'artist-life coach- therapeutic supplier' and that you are a 'sole trader.'

You have clarified in an email dated 13 May 2021, that you are a registered provider for the National Disability Insurance Agency (NDIA) and recorded your registered National Disability

Insurance Scheme (NDIS) provider ID number. You have said you are an 'employer of yourself' and are paid by NDIA through Provider Digital Access (PRODA).

Generally, when a person is employed under a contract of service the following indicators are met:

- The employer has the power to hire the person engaged for the job.
- The payment is in the form of wages and the employer deducts tax and pays superannuation.
- The employer has the right to supervise and control the manner in which the employee does their work.
- The person engaged is subject to the employer's disciplinary standard; i.e. APS Code of Conduct and other internal department policies which provide guidance and standards of behaviour.

The NDIA advised in their statement dated 10 May 2021 that you are not an employee of NDIA. The NDIA confirmed that you are not paid in the form of wages in which the NDIA deduct tax and pay superannuation. NDIA also note that they are not responsible for your supervision or control the manner in which you complete your work and you are not subject to the APS Code of Conduct or internal NDIA policies which provide guidance and standards of behaviour.

In your response dated 14 May 2021, you state you contract to the NDIA, the NDIA have approved you and can fire you, you are being paid by the NDIA and not a separate company. You also claim that you have to complete an audit by the NDIS Quality and Safeguards Commission (NDIS Commission) and if you do not meet the requirements you will be excluded from your job; and are required to comply with reportable instances within a definite timeframe.

To support your position that you are an employee, you have provided a copy of the Recovery of Advance Payment for Registered NDIA Providers dated 13 May 2021. On review of the NDIS website, the NDIA introduced a one-off advance payment for registered providers to assist in the expected increase in cost to deliver support with the expectation this will be repaid by providers in the future.

Comcare acknowledge that you are a registered NDIA provider who delivers support to participants of the NDIS, are required to meet NDIS Commission practice standards, and receive payment from NDIA for services you provide to NDIS participants.

Based on review of the above evidence, Comcare concludes that this supports you are an independent sole trader under a contract **for** service to NDIA rather than contract **of** service. Comcare have requested you provide a copy of your contract, however, to date this has not been received.

Based on the available evidence, Comcare is not satisfied you are an 'employee' in accordance with the SRC Act and as such are precluded from claiming compensation through Comcare.

What do I do if I disagree with this decision?

If you disagree with this determination you have the right for it to be reviewed. Please refer to the attached *Notice of Rights* or see 'Assistance and Further Information Options' at the end of this letter.

If you have any queries please call me on 02~6276~0354 or contact Comcare as below.

Yours sincerely



Amy Delzoppo
Comcare delegate
Tel: 02~6276~0354

CC: Case Manager

Attachments: Notice of Rights

ASSISTANCE AND FURTHER INFORMATION OPTIONS

Phone (from landlines only) 1300 366 979, for the cost of a local call or additional information and forms are available from our website at www.comcare.gov.au

- If you disagree with a determination made by Comcare you may request a reconsideration within 30 days of receiving it
- General information about Comcare's claims and benefits are available from our website
- Claims are assessed under the Safety, Rehabilitation and Compensation Act 1988 (SRC Act)
- The clinical framework for the delivery of health services provides guidance for treatment providers helping employees recover and return to work following a workplace injury or disease

Privacy is important to us. More information on how Comcare handles personal information is available from our website or call 1300 366 979.



Australian Government

Comcare

YOUR RIGHTS REGARDING A DETERMINATION

If you disagree with a determination issued by Comcare under the *Safety, Rehabilitation and Compensation Act 1988* (SRC Act) you have two options:

1. IN-HOUSE FACILITATION

Comcare offers an opportunity for parties in dispute to apply to attend In-house Facilitation, Comcare's Alternative Dispute Resolution process.

In-house Facilitation provides an opportunity for employees and employers who are in dispute following a determination to participate in a facilitated conversation with a qualified mediator. In-house Facilitation aims to negotiate settlement of claim related issues.

Not all claim related disputes will be suitable for In-house Facilitation, however a great many will be. To find out if your matter is suitable for In-house Facilitation please email facilitation@comcare.gov.au or phone the Disputed Claims team on 1300 366 979. If you email, you will need to provide your name, contact number and claim number listed above, so a facilitator can contact you.

Participation in Comcare's In-house Facilitation does not affect your right to request a reconsideration or appeal to the Administrative Appeals Tribunal within the time limits.

In-house Facilitation is currently held in Comcare's **Canberra and Melbourne offices** only.

2. REQUEST A RECONSIDERATION

To request a reconsideration of the determination you must submit a Request for reconsideration form, found on Comcare's website, within 30 days of receiving Comcare's initial determination.

Your request must include:

- > the date of the determination you would like reconsidered;
- > reasons for the request, including why you disagree with the determination; and
- > any new information that supports your request, such as medical reports or x-rays that have not previously been considered by Comcare.

Please ensure you submit all new information and evidence when you submit your request for reconsideration as there will be limited opportunity to provide it once the process commences. If you can't make your request to Comcare within 30 days, you must apply to the Disputed Claims team for an extension of time.

Upon receipt of your reconsideration request Comcare will:

- > acknowledge the request for reconsideration to all relevant parties;
- > give an opportunity to the responding party to comment on any new evidence and information;
- > review all relevant evidence on the claim file, in line with the SRC Act; and
- > issue a 'reviewable decision' in writing including the reasons for the decision.

MORE INFORMATION

- > Both employee and employer are involved in the In-house Facilitation and reconsideration processes.
- > Both employee and employer have the same rights to request that a determination issued by Comcare be reconsidered.
- > Any legal or travel costs incurred as a result of either process are your responsibility.
- > Comcare has a range of publications and information available on our website. If you would like a copy of any publication visit www.comcare.gov.au or call 1300 366 979.

CRITICAL DECISION REVIEW (CDR)

CSO:	Amy Delzoppo	Date Referred to CDR:	
Injured Worker:	Dr Richard William McLean	Claim No:	1326583/1
Age of Claim:	20	DOI:	22/01/2021
Draft determination letter available?	☒		
CSO preliminary decision:	☐ Accepted ☒ Rejected	Date drafted:	21/05/2021
Relevant Information			
Diagnosis			

RTD Tasks					
Description	Date Due	Remind By Date	Reminded Date	Final Reminder Date	Notes
First contact with employee	07/05/2021				
First contact with employer	07/05/2021				
Triage	10/05/2021				
Information requested from employer	12/05/2021				
Information requested from medical providers	12/05/2021				
Information received from employer	28/06/2021	16/06/2021			
Information received from medical providers	28/06/2021	16/06/2021			
Decision sent for QA	30/06/2021				

Description	Date Due	Remind By Date	Reminded Date	Final Reminder Date	Notes
Final QA completed	02/07/2021				
Phone call to employer and employee	02/07/2021				

Investigation History

Element	Question/Conclusion	Answer
---------	---------------------	--------

Determine Claim Compliance

10	Are the employee details correct?	Yes
20	Are the employer details correct?	Yes
30	Are the claim details correct?	Yes
40	Is there a third party/common law indicator present?	No
110	Is Dr McLean an employee in accordance with s5 of the Act?	No
120	Is Dr McLean taken to be employed by the Commonwealth by notice of declaration under section 5(6) or 5(15)?	No
998	The claim compliance has not been met	

Determine Medical Condition

1010	What is the primary condition?	anxiety and depression
1020	What is the ICD Code for the claimed condition?	anxiety state
1030	What is the location of the condition?	Unspecified
1040	What is the type of Condition?	Disease
1110	Does Dr McLean have an injury as defined in s14(1) of the Act?	Yes
1310	Does the medical evidence support the cause of Dr McLean's anxiety state?	Yes
1999	Medical Relationship for Dr McLean's primary condition anxiety state has been met	

Final Determination

4020	Do you agree with iClaim's initial liability determination recommendation of rejected?	Yes
4060	Would you like to Insert additional comments to include in the letter?	No
4120	<i>The initial liability rules have </i>not<i> been satisfied for Dr McLean's condition.</i><p>Is Dr McLean claiming for a secondary condition?	Yes
4998	The investigation is complete. The claim is rejected.	

Issues Considered / Recommendations	Declined - not an employee FOI request - 2021/4547		
Date Reviewed by Panel:			
Does determination need to return to panel for review?	☐	Date of 2nd Review by Panel:	



Australian Government

Comcare

RECONSIDERATION REQUEST

Who is making the request for reconsideration?

☐ Employee ☐ Employer Claim number

How would you like the reconsiderations team to contact you? ☐ Post ☐ Phone ☐ Email ☐ Fax

EMPLOYEE DETAILS

Name Date of birth

Are you represented by a lawyer or another person for the reconsideration? ☐ Yes ☐ No

If yes, who?

WHAT DETERMINATION DO YOU WANT REVIEWED

Date of determination / /

- ☐ Acceptance of a claim
☐ Rejection of a claim
☐ Permanent impairment assessment
☐ Medical treatment determination
☐ Incapacity determination
☐ Other—please specify details below

REASON

- ☐ Insufficient investigation of the claim
☐ Comcare did not consider relevant information
☐ I did not have the opportunity to respond to adverse information
☐ I have new information to provide at review
☐ Other—please specify details below

 You need to provide reasons for requesting a reconsideration which means you need to explain why you think Comcare's decision should be changed. Please attach written reasons for your request to this form.

 You should also attach any supporting evidence. As the requesting party, you will have limited opportunity to submit further evidence.

Please send the completed form and attachments to:

reconsiderations.team@comcare.gov.au; or

GPO Box 9905 Canberra ACT 2600; or

fax: 1300 196 971

Signature

Date

/ /

PRIVACY INFORMATION

Your privacy is important to us. For information about how we handle your personal information, please visit www.comcare.gov.au/privacy or contact us on 1300 366 979 and request a copy of our Privacy Policy.

svc_PROD_ADLIB

From: Dr Rich Mclean <rich@richmclean.com.au>
Sent: Tuesday, 25 May 2021 9:23 AM
To: General.Enquiries
Cc: Rich McLean
Subject: Re: Claim 1326583/1 McLean Richard[SEC=OFFICIAL:Sensitive]

Lara,

I require an outcome today.

No excuses.

Regards

Rich

> On 24 May 2021, at 5:24 pm, General.Enquiries <Enquiries.General@comcare.gov.au> wrote:
 >
 > Good afternoon Dr McLean,
 >
 > Thank you for your email dated 20 May 2021.
 >
 > I'm writing to advise that we are still reviewing the information on your claim file and will provide you with an update tomorrow.
 >
 > Kind regards,
 > Lara Fleming
 >
 > Assistant Director
 > Claims Operations | Canberra
 > Claims Management Group | Comcare
 > P: (02) 6225 2391
 > Sensitive: This document may contain sensitive information as defined under Section 6 of the Privacy Act.
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From: Lara Fleming <Fleming.Lara@comcare.gov.au>
Sent: Friday, 21 May 2021 3:49 PM
To: General.Enquiries
Cc: Amy Delzoppo
Subject: Claim 1326583/1 [SEC=OFFICIAL:Sensitive]
Attachments: image003.png; Untitled attachment 00010.htm; MCLEAN, RICHARD WILLIAM - Invoice 300063677318.pdf; Untitled attachment 00013.htm; mclean, richard william - invoice 300063677318.pdf; Untitled attachment 00016.htm

From: Dr Rich Mclean <rich@richmclean.com.au>
Sent: Thursday, 20 May 2021 5:14 PM
To: Lara Fleming <Fleming.Lara@comcare.gov.au>; foi <foi@comcare.gov.au>; P46656@police.vic.gov.au; p46656@police.vic.gov.au
Cc: Rich McLean <rich@richmclean.com.au>
Subject: This is for Lara Fleming. URGENT

Dear Ms Lara Fleming,

(I Include Constable Darryl McCully in this please read to the bottom because this includes you too-please acknowledge this email or I will expose our recording to IBAC (Whom are also impacted but you cannot fight a fact in a court of law)).

This letter is in defence of the workcover claims manager Amy Delzoppo who rejected my emails and hung up on me.

She provided a definitive answer that I was not covered for workcover under compare.

Yet you, her boss Lara Fleming, say this decision has not been made on our hour long conversation today.

Here are the points I want to raise that will result in a decision that I am covered by Comcare.

(Please respond to all points)

- 1) Amy has not gotten back to me please acknowledge this? (Answer one and etc)
- 2) ALL OF MY EMAIL from here literally disappeared off my screen, after I reported rape, fraud, tax evasion, and other crimes and the police did not want to call me. Don't you think that's strange? (Answer two)
- 3) You said there has no final decision being made even though Amy explicitly did so below, then refused to acknowledge my rebuttal. (Please acknowledge this)
- 4) Then my emails disappeared framed by the 'conspiracy' that a professor of psychiatry at hospital actually confirmed.
- 5) I think that you and Amy are pawn in. The broader picture of a conspiracy designed to disable me from any prosperity. Prove me wrong.
- 6) Conspiracy to pervert the course of justice carries a 10-14 year jail term.
- 7) It sounds as though you yourself are extremely reluctant to grant this to me no matter what I say
- 8) please find my rebuttal (which was ignored) below

9) Please provide evidence scubas the email Amy said about the NDIA saying I am not an employee of theirs (fact check that)

10) I not only require a decision however

11) I require you to go over my rebuttal

12) I need an answer by Monday next week as discussed and agreed to, if not before.

13) because I know that your 'quality control assurance' will fly in coherence and utter agreement with Amy's flat out rejection, (which you said wasn't but an opportunity to provide further evidence), I would like the opportunity its to 1) engage my lawyer and 2) how to appeal the decision.

14) I have ALREADY 'appealed' and rebutted Amy's 'decision' below, 9which you said is NOT a decision), but she gaslighted me as per 'the conspiracy' does, and I have come to expect.

15) My evidence below says that I have an advance payment from my employer the NDIA - with a reference number, vendor number and in addition I did not ask for this advance payment during COVID but I have paid them back thousands already.

16) Therefore I am employed by NDIS and Comsure need to pay me and acknowledge me as insured.

17) Please treat this as urgent as I am deficient in food and near the edge of my shelter and a burden on my family.

18) It is none of your business to enquire about my personal business affairs.

You have stated that it will be progressed to a decision and not just 'investigated' as you first said within our conversation.

This is a common methodology of 'kicking the can down the road' to deny me justice and prosperity.

- so I look forward to a decision regarding my insurance - and what the next steps are. (Despite my evidence and both your poor communication and rejection of evidence of emails the NDIA says I am not an employee and the complete gaslighting and unprofessionalism of my rebuttal which is now included below, and additionally 'disappeared' off my screen as per my computer and emails being intercepted, as I have explained).

You have stated there is an avenue to appeal - so I expect a 'no' from 'ComSure' already, - and I need to know A NAME of who that decision rests with - despite the advance payment from my employer below and the incredible amount of evidence that will not make any of you look good in a court.

QUESTION: WHO is the person that makes the final decision - is it you or Amy?

QUESTION: I would like my FOI of Comsure in all regards to my name my business my calls and my emails. Please provide a timeframe, because something dodgy is going on and we both know it, its bigger than you and me combined.

STATEMENT: I was hospitalised because of a stress reaction to poverty. I told the psychiatrist about the conspiracy and my former partner working for ASIO who swore to ruin my life. Immediately they thought I was psychotic and delusional - (apparently - although this was victimisation and I was treated with contempt and aggressively by the

police), however the exit statement and hospital discharge notes on me as a patient states I am definitely NOT paranoid NOR am I delusional. I wonder your opinion on this? Please elaborate.

I want to bluntly state, for my working life in the past two years my money came explicitly from the government, therefore I am insured under Comcare.

Ignore this undeniable evidence at your peril, in the high court. **Conspiracy to pervert the course of justice is a 10-14 year jail term. I am collecting notes on oppressors and co conspirers as we go along.**

I'm sure you would never want to risk your privileged life of freedom.

I look forward to a concrete decision of my status of being insured from Comcare before or on Monday as agreed.

I reserve the right for my FOI ((CC-d above please give me an acknowledgement and a timeframe), give me a timeframe), and for just litigation to pursue Comcare if I am rejected without legislative evidence - **and additionally the individuals who have been pawns in the process, that have conspired to pervert the course of justice - as the pawn in the veneer of institutions that have damaged me** - an extremely serious crime.

Regards,

Dr Rich Mclean

On 13 May 2021, at 4:07 pm, Amy Delzoppo <Delzoppo.Amy@comcare.gov.au> wrote:

OFFICIAL: Sensitive

Good afternoon Richard

Thank you for your time yesterday.

As discussed, National Disability Insurance Agency (NDIA) have advised that you are not employed by them and they are not paying your wage. Please find attached the emails NDIA provided to Comcare.

When a new claim is received, Comcare must be satisfied that the claim has been lodged by an employee as defined under the *Safety Rehabilitation and Compensation Act 1988* (SRC Act). If not, then coverage does not exist for the person under the SRC Act.

Subsection 5(1) to (15) of the SRC Act provides coverage for the following employees:

- Employees of ACT Government
- Employees of the Commonwealth
- Employees who work for Members of Parliament
- Members of the Australian Federal Police
- **Persons employed under a contract of service**
- Persons works as apprentices or graduate for the Commonwealth
- Employees of Commonwealth authorities and licenced corporations

- Persons declared by the Minister to be Commonwealth employees
- Persons declared by the Minister to be employees of the Australian Capital Territory

NDIA have stated you are not an NDIA employee. Therefore, I have explored whether you are engaged under a contract of service with NDIA. Generally the key indicators of a contract of service are:

- The NDIA has the power to hire the person engaged for the job

NOTE: The NDIA 'approved' me, and can indeed, fire me.

-
- The payment is in the form of wages and the NDIA deducts tax and pays superannuation
- The person engaged in being paid by the NDIA and not through a separate company

NOTE: The above would accurately describe this as TRUE

-
- The NDIA has the right to supervise and control the manner in which the employee does his work

NOTE: The above would accurately because I have to do an audit my the NDIS quality Assurance and safeguards Commission. If I dont meet those, and I am yet to find out - I will be excluded from my job.

-
- The person engaged in subject to the NDIA's disciplinary standards and any other internal department policies which provide guidance and standards of behaviour.

NOTE: The above would accurately because I have to do an audit my the NDIS quality Assurance and safeguards Commission. If I dont meet those, and I am yet to find out - I will be excluded from my job. Additionally I have to make progress reports, lease with different organisations and do risk assessments and additionally have to comply with 'reportable instances' within a definite timeframe.

NDIA's response suggest that you do not meet these key indicators.

I DISAGREE

Based on the information available, I am not satisfied you are an employee under the SRC Act and cannot be covered for workers' compensation from Comcare.

What do you think now I have outlined the above?

Please treat this as URGENT, as I am homeless.

Rich

You are welcome to provide a copy of your contract with NDIA which should set out the terms and conditions of your engagement with them. If you would like to provide this, could you please do so by 20 May 2021? If nothing further is received from you by this time, I will need to decline your claim based on the available evidence not supporting you are an employee as defined under the SRC Act.

Warmest regards,

Amy Delzoppo

Senior Claims Manager

Canberra 7 | Claims Management Canberra

Claims Management Group | Canberra

P: (02) 6276 0354

<image001.png>

Comcare

GPO Box 9905, Canberra, ACT 2601

1300 366 979

www.comcare.gov.au

<image002.png> <image003.png>

COVID-19 Update: While we are unable to serve you in person during COVID-19, we are still working and you can [contact us](#) via phone or email. Work health and safety is our highest priority. We monitor this situation daily and regularly update our [COVID-19 guidance](#).

Rich is a registered NDIS Therapeutic Support Provider, as an Artist-Life-Coach, Author, & Advocate, in Melbourne.

I acknowledge the Indigenous people as the Traditional Custodians of the lands where we live, learn and work.

'The bad news is - nothing is permanent, however the good news is - nothing is permanent.'

NDIS Registered Provider ID: 4050046572
ABN: 72066207615

Begin forwarded message:

From: SCHEMEDEBTMANAGEMENTTEAM

<SCHEMEDEBTMANAGEMENTTEAM@ndis.gov.au>

Subject: LETTER OF DEMAND – OUTSTANDING DEBT TO NDIA [SEC=OFFICIAL]

Date: 13 May 2021 at 3:46:44 pm AEST

To: "rich@richmclean.com.au" <rich@richmclean.com.au>

Dear Provider,

Recovery of Advance Payment for Registered NDIS Providers

Thank you for speaking to us recently in regard to repayment of the Advance Payment, which was made by the NDIA to your organisation on or around the 30th March 2020.

Please see attached an invoice for the balance owing of \$1,048.73

Please arrange payment by COB 20 May 2021.

The NDIA reserves its rights in respect of the Advance Payment.

If you have any queries in relation to the invoice please contact the schemedebtmanagementteam@ndis.gov.au mailbox.

Yours Sincerely

Scheme Debt Management Team
National Disability Insurance Agency

Email schemedebtmanagementteam@ndis.gov.au

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From: Amy Delzoppo <Delzoppo.Amy@comcare.gov.au>
Sent: Friday, 14 May 2021 1:09 PM
To: Email.RMC
Subject: FW: LETTER OF DEMAND – OUTSTANDING DEBT TO NDIA [SEC=OFFICIAL]
Attachments: image003.png; Untitled attachment 00044.html; MCLEAN, RICHARD WILLIAM - Invoice 300063677318.pdf; Untitled attachment 00047.html

OFFICIAL

Please scan as one file to 1326583/1

From: Dr Rich Mclean <rich@richmclean.com.au>
Sent: Friday, 14 May 2021 12:07 PM
To: schemedebtmanagementteam@ndis.gov.au; Amy Delzoppo <Delzoppo.Amy@comcare.gov.au>
Cc: info@workcover.vic.gov.au; info@worksafe.vic.gov.au; Hao Wu <Hao.Wu@ndis.gov.au>; enquiries@ndis.gov.au; enquiries@ndia.gov.au
Subject: Fwd: LETTER OF DEMAND – OUTSTANDING DEBT TO NDIA [SEC=OFFICIAL]

Dear NDIA, AMY, Workcover, Worksafe, NDIS

I need to know if I am covered by commcare for workcover please urgently.

If I can rec give a debt from them for an advance payment, you would think that I am an 'employee'

Please can you all answer this.

Thanks

As a registered provider and in debt to the NDIA as my 'employer', whom I am a 'sole trader' and 'contract' to:

I stopped work on the 22nd Jan - due to an injury/illness I sustained at work. I have attached the workcover forms I filled out. I have medical evidence from my doctor to back it up. I have other evidence from my work under the NDIA that reasonably translates the situation I was triggered by by my client of the NDIS.

The reluctance of my private health insurance to reimburse what I was covered for - income assist - led me to be destitute & become bankrupt-and further due to the financial distress this caused in addition to the triggered response I had while at work, I was further incarcerated against my will and hospitalised where I sustained injuries complicated by the situation.

1) Workcover says I am covered, but covered by which insurer? I assume it is Commcare.

2) I have called the NDIS & NDIA and they say I am NOT covered for workers compensation through the NDIA NOR the NDIS, even though I have registered NDIS provider ID number 4050046572 - and you are an 'employer' of myself who is paid in ways, through the portal of PRODA - a government agency - hence the NDIA is the people I contract to and currently owe money to as an 'employee'. The NDIA had gifted me this money though COVID because it is a responsible thing to do for an 'employee' that is under the auspice of NDIA.

3) Because I was denied cover for my stress related illness that was explicably work-related by my private insurer, I was forced to bankruptcy so because this debt was incurred when I went bankrupt - I CANNOT pay.

4) This private insurance company were brutal in their assessment and it has not been resolved - it is still before AFCA - in addition they say they will pay it IF I have a workcover claim for the same 'injury' or 'psychological injury' for the same condition.

5) Hence I have been in conversation with Commsure the federal governments insurance agency to see if I am covered by them | ie: who will my insurer be if not the NDIA?

6) This debit reasonably demonstrates in an acute way that the NDIA actually IS my employer, and hence you would assume, I would be covered under federal insurer.

So I wish to state and ask of Commsure, the NDIA, the NDIS, workcover, and work safe:

Is it reasonable for me to conclude I will be covered for workcover by Commsure because this debt is exemplary of me even though I am a sole trader, to be an 'employee' of the NDIA?

q) If not, why not? Please provide evidence in legislative terms that demonstrates my exemption of cover by Commsure.

I remind you that the NDIS quality and safeguards commission is in the dropdown box on the menu of Commcare's website for claims.

Please treat this as urgent.

Thanks for all your replies.

Rich

Dr Rich McLean

Phd, MeD, BFA, Ass Dip CAD

P : (+61) 0400 639 248

E: rich@richmclean.com.au

Web: www.richmclean.com.au

Please see below too:

Re Amy

On 13 May 2021, at 4:07 pm, Amy Delzoppo <Delzoppo.Amy@comcare.gov.au> wrote:

OFFICIAL

Good afternoon Richard

Thank you for your time yesterday.

As discussed, National Disability Insurance Agency (NDIA) have advised that you are not employed by them and they are not paying your wage. Please find attached the emails NDIA provided to Comcare.

When a new claim is received, Comcare must be satisfied that the claim has been lodged by an employee as defined under the *Safety Rehabilitation and Compensation Act 1988* (SRC Act). If not, then coverage does not exist for the person under the SRC Act.

Subsection 5(1) to (15) of the SRC Act provides coverage for the following employees:

- Employees of ACT Government
- Employees of the Commonwealth
- Employees who work for Members of Parliament
- Members of the Australian Federal Police
- **Persons employed under a contract of service**
- Persons works as apprentices or graduate for the Commonwealth
- Employees of Commonwealth authorities and licenced corporations
- Persons declared by the Minister to be Commonwealth employees
- Persons declared by the Minister to be employees of the Australian Capital Territory

NDIA have stated you are not an NDIA employee. Therefore, I have explored whether you are engaged under a contract of service with NDIA. Generally the key indicators of a contract of service are:

- The NDIA has the power to hire the person engaged for the job

NOTE: The NDIA 'approved' me, and can indeed, fire me.

-
- The payment is in the form of wages and the NDIA deducts tax and pays superannuation
- The person engaged in being paid by the NDIA and not through a separate company

NOTE: The above would accurately describe this as TRUE

-
- The NDIA has the right to supervise and control the manner in which the employee does his work

NOTE: The above would accurately because I have to do an audit my the NDIS quality Assurance and safeguards Commission. If I dont meet those, and I am yet to find out - I will be excluded from my job.

-
- The person engaged in subject to the NDIA's disciplinary standards and any other internal department policies which provide guidance and standards of behaviour.

NOTE: The above would accurately because I have to do an audit my the NDIS quality Assurance and safeguards Commission. If I dont meet those, and I am yet to find out - I will be excluded from my job. Additionally I have to make progress reports, lease with different organisations and do risk assessments and additionally have to comply with 'reportable instances' within a definite timeframe.

NDIA's response suggest that you do not meet these key indicators.

I DISAGREE

Based on the information available, I am not satisfied you are an employee under the SRC Act and cannot be covered for workers' compensation from Comcare.

What do you think now I have outlined the above?

Please treat this as URGENT, as I am homeless.

Rich

You are welcome to provide a copy of your contract with NDIA which should set out the terms and conditions of your engagement with them. If you would like to provide this, could you please do so by 20 May 2021? If nothing further is received from you by this time, I will need to decline your claim based on the available evidence not supporting you are an employee as defined under the SRC Act.

Warmest regards,

Amy Delzoppo

Senior Claims Manager

Canberra 7 | Claims Management Canberra

Claims Management Group | Canberra

P: (02) 6276 0354

<image001.png>

Comcare

GPO Box 9905, Canberra, ACT 2601

1300 366 979

www.comcare.gov.au

<image002.png> <image003.png>

COVID-19 Update: While we are unable to serve you in person during COVID-19, we are still working and you can [contact us](#) via phone or email. Work health and safety is our highest priority. We monitor this situation daily and regularly update our [COVID-19 guidance](#).

Rich is a registered NDIS Therapeutic Support Provider, as an Artist-Life-Coach, Author, & Advocate, in Melbourne.

I acknowledge the Indigenous people as the Traditional Custodians of the lands where we live, learn and work.

'The bad news is - nothing is permanent, however the good news is - nothing is permanent.'

NDIS Registered Provider ID: 4050046572
ABN: 72066207615

Begin forwarded message:

From: SCHEMEDEBTMANAGEMENTTEAM
<SCHEMEDEBTMANAGEMENTTEAM@ndis.gov.au>
Subject: LETTER OF DEMAND – OUTSTANDING DEBT TO NDIA [SEC=OFFICIAL]
Date: 13 May 2021 at 3:46:44 pm AEST
To: "rich@richmclean.com.au" <rich@richmclean.com.au>

Dear Provider,

Recovery of Advance Payment for Registered NDIS Providers

Thank you for speaking to us recently in regard to repayment of the Advance Payment, which was made by the NDIA to your organisation on or around the 30th March 2020.

Please see attached an invoice for the balance owing of \$1,048.73

Please arrange payment by COB 20 May 2021.

The NDIA reserves its rights in respect of the Advance Payment.

If you have any queries in relation to the invoice please contact the schemedebtmanagementteam@ndis.gov.au mailbox.

Yours Sincerely

Scheme Debt Management Team
National Disability Insurance Agency

Email schemedebtmanagementteam@ndis.gov.au



Delivered by the

FOI request - 2021/4547

National Disability
Insurance Agency

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Delivered by the
National Disability
Insurance Agency

Collector of Public Monies
GPO Box 700
CANBERRA ACT 2601
Email: schemedebtmanagementteam@ndis.gov.au

ABN 25617475104

TAX INVOICE

Vendor MCLEAN, RICHARD WILLIAM 2 McCubbin Street FOOTSCRAY VIC 3011 rich@richmclean.com.au	Date 13.05.2021 Document No 300063677318 NDIA No 4050046572 Due Date 20.05.2021
---	--

DESCRIPTION	AMOUNT	GST	TOTAL
Recovery – COVID 19 Advance Payment - 300063667057	\$1,048.73	0.00	\$1,048.73
Total Amount Payable			\$1,048.73

Preferred method of payment is Electronic Funds Transfer to:
Account Name: National Disability Insurance Agency
BSB: 092-009, Account No: 121335, Reserve Bank Australia, Canberra.
Please include the invoice number 300063677318 in your payment reference.

Alternatively, please remit this tear-off with your cheque to the above address.

Name	Vendor No.	Date	Document No.	Total Amount
MCLEAN, RICHARD WILLIAM	4050046572	13.05.2021	300063677318	\$1,048.73

From: Amy Delzoppo <Delzoppo.Amy@comcare.gov.au>
Sent: Friday, 14 May 2021 1:07 PM
To: Email.RMC
Subject: FW: URGENT [SEC=OFFICIAL]
Attachments: image003.png; Untitled attachment 00029.html; MCLEAN, RICHARD WILLIAM - Invoice 300063677318.pdf; Untitled attachment 00032.html

OFFICIAL

Please scan as one file to 1326583/1

From: Dr Rich Mclean <rich@richmclean.com.au>
Sent: Friday, 14 May 2021 12:02 PM
To: Amy Delzoppo <Delzoppo.Amy@comcare.gov.au>
Subject: URGENT

Dear Amy,

Please get back to me urgently re: the below email.

Thanks, otherwise I will call you at 2pm

Rich

Amy, further to your email I have just written this one - in which I owe my employer - the NDIA - money.

>>>>>

Dear NDIA,

Thanks for that delayed message.

As a registered provider and in debt to the NDIA as my 'employer', whom I am a 'sole trader' and 'contract' to:

I stopped work on the 22nd Jan - due to an injury/illness I sustained at work. I have attached the workcover forms I filled out. I have medical evidence from my doctor to back it up. I have other evidence from my work under the NDIA that reasonably translates the situation I was triggered by by my client of the NDIS.

The reluctance of my private health insurance to reimburse what I was covered for - income assist - led me to be destitute & become bankrupt-and further due to the financial distress this caused in addition to the triggered response I had while at work, I was further incarcerated against my will and hospitalised where I sustained injuries complicated by the situation.

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Please treat this as urgent.

Thanks for all your replies.

Rich

Dr Rich McLean

Phd, MeD, BFA, Ass Dip CAD

P : (+61) 0400 639 248

E: rich@richmclean.com.au

Web: www.richmclean.com.au

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NDIS Registered Provider ID: 4050046572

ABN: 72066207615

Begin forwarded message:

From: SCHEMEDEBTMANAGEMENTTEAM

<SCHEMEDEBTMANAGEMENTTEAM@ndis.gov.au>

Subject: LETTER OF DEMAND – OUTSTANDING DEBT TO NDIA [SEC=OFFICIAL]

Date: 13 May 2021 at 3:46:44 pm AEST

To: "rich@richmclean.com.au" <rich@richmclean.com.au>

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Yours Sincerely

Scheme Debt Management Team
National Disability Insurance Agency

Email schemedebtmanagementteam@ndis.gov.au



Delivered by the

FOI request - 2021/4547

National Disability
Insurance Agency

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National Disability
Insurance Agency

Collector of Public Monies
GPO Box 700
CANBERRA ACT 2601
Email: schemedebtmanagementteam@ndis.gov.au

ABN 25617475104

TAX INVOICE

Vendor MCLEAN, RICHARD WILLIAM 2 McCubbin Street FOOTSCRAY VIC 3011 rich@richmclean.com.au	Date 13.05.2021 Document No 300063677318 NDIA No 4050046572 Due Date 20.05.2021
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Name	Vendor No.	Date	Document No.	Total Amount
MCLEAN, RICHARD WILLIAM	4050046572	13.05.2021	300063677318	\$1,048.73

>>>>>

‘

‘

Further below - I am employed under a contract of service as the above demonstrates.

‘

On 13 May 2021, at 4:07 pm, Amy Delzoppo <Delzoppo.Amy@comcare.gov.au> wrote:

OFFICIAL

Good afternoon Richard

Thank you for your time yesterday.

As discussed, National Disability Insurance Agency (NDIA) have advised that you are not employed by them and they are not paying your wage. Please find attached the emails NDIA provided to Comcare.

When a new claim is received, Comcare must be satisfied that the claim has been lodged by an employee as defined under the *Safety Rehabilitation and Compensation Act 1988* (SRC Act). If not, then coverage does not exist for the person under the SRC Act.

Subsection 5(1) to (15) of the SRC Act provides coverage for the following employees:

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- Persons declared by the Minister to be Commonwealth employees
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NDIA have stated you are not an NDIA employee. Therefore, I have explored whether you are engaged under a contract of service with NDIA. Generally the key indicators of a contract of service are:

- The NDIA has the power to hire the person engaged for the job

NOTE: The NDIA ‘approved’ me, and can indeed, fire me.

•

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- The person engaged in being paid by the NDIA and not through a separate company

NOTE: The above would accurately describe this as TRUE

•

- The NDIA has the right to supervise and control the manner in which the employee does his work

NOTE: The above would accurately because I have to do an audit my the NDIS quality Assurance and safeguards Commission. If I dont meet those, and I am vet to find out - I will be excluded from my job.

-
- The person engaged in subject to the NDIA's disciplinary standards and any other internal department policies which provide guidance and standards of behaviour.

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NDIA's response suggest that you do not meet these key indicators.

I DISAGREE

Based on the information available, I am not satisfied you are an employee under the SRC Act and cannot be covered for workers' compensation from Comcare.

What do you think now I have outlined the above?

Please treat this as URGENT, as I am homeless.

Rich

You are welcome to provide a copy of your contract with NDIA which should set out the terms and conditions of your engagement with them. If you would like to provide this, could you please do so by 20 May 2021? If nothing further is received from you by this time, I will need to decline your claim based on the available evidence not supporting you are an employee as defined under the SRC Act.

Warmest regards,

Amy Delzoppo

Senior Claims Manager

Canberra 7 | Claims Management Canberra

Claims Management Group | Canberra

P: (02) 6276 0354

<image001.png>

Comcare

GPO Box 9905, Canberra, ACT 2601

FOI request - 2021/4547

1300 366 979

www.comcare.gov.au

<image002.png> <image003.png>

COVID-19 Update: While we are unable to serve you in person during COVID-19, we are still working and you can [contact us](#) via phone or email. Work health and safety is our highest priority. We monitor this situation daily and regularly update our [COVID-19 guidance](#).

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svc_PROD_ADLIB

From: Kelly, Joanne <Joanne.Kelly@ndis.gov.au>
Sent: Friday, 14 May 2021 11:07 AM
To: General.Enquiries
Subject: RE: Richard McLean [SEC=OFFICIAL:Sensitive]

Hi Amy

I'm not sure if sole traders need to be insured to be an NDIS provider. He could go to the NDIS website, there is a tab for providers, that would be a start.

<https://www.ndis.gov.au/>

Regards

Jo

-----Original Message-----

From: General.Enquiries <Enquiries.General@comcare.gov.au>
Sent: Thursday, 13 May 2021 4:05 PM
To: Kelly, Joanne <Joanne.Kelly@ndis.gov.au>
Cc: YOURWORKPLACESUPPORTS <YOURWORKPLACESUPPORTS@ndis.gov.au>
Subject: Richard McLean[SEC=OFFICIAL:Sensitive]

Hi Jo

Thank you for your email and confirmation that Mr McLean is not an NDIA employee. Do you have any information on whether NDIA Sole Traders require some type of insurance to be classified as an NDIS provider? Do you have any suggestions on who Mr McLean may be able to contact to discuss if he is covered and by who?

Your assistance is appreciated!

Warmest regards,

Amy Delzoppo
 Senior Claims Manager
 Canberra 7 | Claims Management Canberra
 Claims Management Group | Canberra
 P: (02) 6276 0354
 Comcare
 GPO Box 9905, Canberra, ACT 2601
 1300 366 979
www.comcare.gov.au

Sensitive: This document may contain sensitive information as defined under Section 6 of the Privacy Act.

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review, re-transmission, disclosure, dissemination or other use of, or taking of any action in reliance upon, this information is prohibited and may result in severe penalties. If you have received this e-mail in error please notify the sender immediately and delete all electronic and hard copies of this transmission together with any attachments. Please consider the environment before printing this e-mail

Sensitive: This document may contain sensitive information as defined under Section 6 of the Privacy Act.

svc_PROD_ADLIB

From: Amy Delzoppo <Delzoppo.Amy@comcare.gov.au>
Sent: Thursday, 13 May 2021 5:18 PM
To: Email.RMC
Subject: FW: claim number: 1326583/1 [SEC=OFFICIAL]
Attachments: image003.png; Untitled attachment 00009.html; MCLEAN, RICHARD WILLIAM - Invoice 300063677318.pdf; Untitled attachment 00012.html

OFFICIAL

Please scan as one file

From: Dr Rich Mclean <rich@richmclean.com.au>
Sent: Thursday, 13 May 2021 4:23 PM
To: Amy Delzoppo <Delzoppo.Amy@comcare.gov.au>
Cc: Rich McLean <rich@richmclean.com.au>
Subject: Re: claim number: 1326583/1 [SEC=OFFICIAL]

Amy, further to your email I have just written this one - in which I owe my employer - the NDIA - money.

>>>>>

Dear NDIA,

Thanks for that delayed message.

As a registered provider and in debt to the NDIA as my 'employer', whom I am a 'sole trader' and 'contract' to:

I stopped work on the 22nd Jan - due to an injury/illness I sustained at work. I have attached the workcover forms I filled out. I have medical evidence from my doctor to back it up. I have other evidence from my work under the NDIA that reasonably translates the situation I was triggered by by my client of the NDIS.

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Please treat this as urgent.

Thanks for all your replies.

Rich

Dr Rich McLean

Phd, MeD, BFA, Ass Dip CAD

P : (+61) 0400 639 248

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Rich is a registered NDIS Therapeutic Support Provider, as an Artist-Life-Coach, Author, & Advocate, in Melbourne.

I acknowledge the Indigenous people as the Traditional Custodians of the lands where we live, learn and work.

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NDIS Registered Provider ID: 4050046572
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National Disability Insurance Agency

Email schemedebtmanagementteam@ndis.gov.au



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National Disability
Insurance Agency

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National Disability
Insurance Agency

Collector of Public Monies
GPO Box 700
CANBERRA ACT 2601
Email: schemedebtmanagementteam@ndis.gov.au

ABN 25617475104

TAX INVOICE

Vendor MCLEAN, RICHARD WILLIAM 2 McCubbin Street FOOTSCRAY VIC 3011 rich@richmclean.com.au	Date 13.05.2021 Document No 300063677318 NDIA No 4050046572 Due Date 20.05.2021
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Total Amount Payable			\$1,048.73

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- Persons works as apprentices or graduate for the Commonwealth
- Employees of Commonwealth authorities and licenced corporations
- Persons declared by the Minister to be Commonwealth employees
- Persons declared by the Minister to be employees of the Australian Capital Territory

NDIA have stated you are not an NDIA employee. Therefore, I have explored whether you are engaged under a contract of service with NDIA. Generally the key indicators of a contract of service are:

- The NDIA has the power to hire the person engaged for the job

NOTE: The NDIA ‘approved’ me, and can indeed, fire me.

•

- The payment is in the form of wages and the NDIA deducts tax and pays superannuation
- The person engaged in being paid by the NDIA and not through a separate company

NOTE: The above would accurately describe this as TRUE

•

- The NDIA has the right to supervise and control the manner in which the employee does his work

NOTE: The above would accurately because I have to do an audit my the NDIS quality Assurance and safeguards Commission. If I dont meet those, and I am vet to find out - I will be excluded from my job.

-
- The person engaged in subject to the NDIA's disciplinary standards and any other internal department policies which provide guidance and standards of behaviour.

NOTE: The above would accurately because I have to do an audit my the NDIS quality Assurance and safeguards Commission. If I dont meet those, and I am vet to find out - I will be excluded from my job. Additionally I have to make progress reports, lease with different organisations and do risk assessments and additionally have to comply with 'reportable instances' within a definite timeframe.

NDIA's response suggest that you do not meet these key indicators.

I DISAGREE

Based on the information available, I am not satisfied you are an employee under the SRC Act and cannot be covered for workers' compensation from Comcare.

What do you think now I have outlined the above?

Please treat this as URGENT, as I am homeless.

Rich

You are welcome to provide a copy of your contract with NDIA which should set out the terms and conditions of your engagement with them. If you would like to provide this, could you please do so by 20 May 2021? If nothing further is received from you by this time, I will need to decline your claim based on the available evidence not supporting you are an employee as defined under the SRC Act.

Warmest regards,

Amy Delzoppo

Senior Claims Manager

Canberra 7 | Claims Management Canberra

Claims Management Group | Canberra

P: (02) 6276 0354

<image001.png>

Comcare

GPO Box 9905, Canberra, ACT 2601

FOI request - 2021/4547

1300 366 979

www.comcare.gov.au

<image002.png> <image003.png>

COVID-19 Update: While we are unable to serve you in person during COVID-19, we are still working and you can [contact us](#) via phone or email. Work health and safety is our highest priority. We monitor this situation daily and regularly update our [COVID-19 guidance](#).

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From: Amy Delzoppo <Delzoppo.Amy@comcare.gov.au>
Sent: Thursday, 13 May 2021 4:09 PM
To: Email.RMC
Subject: FW: claim number: 1326583/1 [SEC=OFFICIAL]
Attachments: T30_22932423.pdf; T29_22937616.pdf

OFFICIAL

Please scan as one file

From: Amy Delzoppo
Sent: Thursday, 13 May 2021 4:08 PM
To: rich@richmclean.com.au
Subject: claim number: 1326583/1 [SEC=OFFICIAL]

OFFICIAL

Good afternoon Richard

Thank you for your time yesterday.

As discussed, National Disability Insurance Agency (NDIA) have advised that you are not employed by them and they are not paying your wage. Please find attached the emails NDIA provided to Comcare.

When a new claim is received, Comcare must be satisfied that the claim has been lodged by an employee as defined under the *Safety Rehabilitation and Compensation Act 1988* (SRC Act). If not, then coverage does not exist for the person under the SRC Act.

Subsection 5(1) to (15) of the SRC Act provides coverage for the following employees:

- Employees of ACT Government
- Employees of the Commonwealth
- Employees who work for Members of Parliament
- Members of the Australian Federal Police
- Persons employed under a contract of service
- Persons works as apprentices or graduate for the Commonwealth
- Employees of Commonwealth authorities and licenced corporations
- Persons declared by the Minister to be Commonwealth employees
- Persons declared by the Minister to be employees of the Australian Capital Territory

NDIA have stated you are not an NDIA employee. Therefore, I have explored whether you are engaged under a contract of service with NDIA. Generally the key indicators of a contract of service are:

- The NDIA has the power to hire the person engaged for the job
- The payment is in the form of wages and the NDIA deducts tax and pays superannuation
- The person engaged in being paid by the NDIA and not through a separate company
- The NDIA has the right to supervise and control the manner in which the employee does his work
- The person engaged in subject to the NDIA's disciplinary standards and any other internal department policies which provide guidance and standards of behaviour.

NDIA's response suggest that you do not meet these key indicators. Based on the information available, I am not satisfied you are an employee under the SRC Act and cannot be covered for workers' compensation from Comcare.

You are welcome to provide a copy of your contract with NDIA which should set out the terms and conditions of your engagement with them. If you would like to provide this, could you please do so by 20 May 2021? If nothing further is received from you by this time, I will need to decline your claim based on the available evidence not supporting you are an employee as defined under the SRC Act.

Warmest regards,

Amy Delzoppo

Senior Claims Manager

Canberra 7 | Claims Management Canberra

Claims Management Group | Canberra

P: (02) 6276 0354



Comcare

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svc_PROD_ADLIB

From: Kelly, Joanne <Joanne.Kelly@ndis.gov.au> on behalf of
YOURWORKPLACESUPPORTS <YOURWORKPLACESUPPORTS@ndis.gov.au>
Sent: Monday, 10 May 2021 8:46 AM
To: General.Enquiries
Subject: RE: Dr Richard McLean new workers compensation form. Clarification required
[SEC=OFFICIAL:Sensitive]

Good Morning Amy

See response below:

Regards

Joanne Kelly
 Assistant Director
 Workplace Support & Disability Engagement People & Culture Division National Disability Insurance Agency T 03
 9622 1114 E joanne.kelly@ndis.gov.au Workplace Support Email yourworkplacesupports@ndis.gov.au

NDIA acknowledges the traditional owners of country throughout Australia, and their continuing connection to land, sea and community. We pay our respects to them and their cultures, and to elders both past and present.

-----Original Message-----

From: General.Enquiries <Enquiries.General@comcare.gov.au>
Sent: Friday, 7 May 2021 2:03 PM
To: YOURWORKPLACESUPPORTS <YOURWORKPLACESUPPORTS@ndis.gov.au>
Cc: Kelly, Joanne <Joanne.Kelly@ndis.gov.au>
Subject: Dr Richard McLean new workers compensation form. Clarification required[SEC=OFFICIAL:Sensitive]

Good afternoon

Please find attached workers' compensation claim form for Dr Richard McLean. Dr McLean has indicated on the claim form that he is a contractor.

Could NDIA please provide a response to the following:

- 1) Is Dr McLean being paid by NDIA or through a separate company?
 Dr McLean is not employed by NDIA and he is not on our system.
 - 2) Is the payment in the form of wages in which NDIA deduct tax and pay superannuation?
 No
 - 3) Is NDIA responsible for the supervision of Dr McLean and do they control the manner in which he completes his work?
 No
 - 4) Is Dr McLean subject to the APS Code of Conduct and any other internal department policies which provide guidance and standards of behaviour?
 No
- To help me assess whether Dr McLean is classed as an employee under the SRC Act, could a response to these questions please be provided by no later than 12 May 2021

Warmest regards,

Amy Delzoppo
 Senior Claims Manager
 Canberra 7 | Claims Management Canberra
 Claims Management Group | Canberra
 P: (02) 6276 0354
 Comcare
 GPO Box 9905, Canberra, ACT 2601
 1300 366 979
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From: Kelly, Joanne <Joanne.Kelly@ndis.gov.au>
Sent: Tuesday, 11 May 2021 10:54 AM
To: General.Enquiries
Subject: FW: confirm employment for compensation claim - Dr Richard McLean [SEC=OFFICIAL]

Hi Amy

Please see email below confirming that Dr Richard McLean is not an employee of the NDIA.

Regards

Joanne Kelly

Assistant Director

Workplace Support & Disability Engagement

People & Culture Division

National Disability Insurance Agency

T 03 9622 1114 E joanne.kelly@ndis.gov.au

Workplace Support Email yourworkplacesupports@ndis.gov.au



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National Disability
Insurance Agency



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From: Dewhurst, Karla <Karla.Dewhurst@ndis.gov.au> **On Behalf Of** WORKFORCEPLANNINGANDREPORTING
Sent: Tuesday, 11 May 2021 9:35 AM
To: Kelly, Joanne <Joanne.Kelly@ndis.gov.au>; WORKFORCEPLANNINGANDREPORTING <WORKFORCEPLANNINGANDREPORTING@ndis.gov.au>
Subject: RE: confirm employment for compensation claim [SEC=OFFICIAL]

Hi Joanne,

I am unable to locate anyone by that name in the SAP system or files either.

Regards

Karla

Karla Dewhurst

Workforce Planning Officer

Workforce Planning Analytics & Systems | Workforce & Capability Branch | Chief People Officer
Division | **National Disability Insurance Agency**

E: Karla.Dewhurst@ndis.gov.au



We are moving

The [P&C Service Desk](#) will help you find the right team to answer your questions. Take a look and let us know what you think.

From: Kelly, Joanne <Joanne.Kelly@ndis.gov.au>

Sent: Monday, 10 May 2021 10:50 AM

To: WORKFORCEPLANNINGANDREPORTING <WORKFORCEPLANNINGANDREPORTING@ndis.gov.au>

Subject: confirm employment for compensation claim [SEC=OFFICIAL]

Good Morning

Workplace Supports have received a claim for compensation for the following employee:

Dr Richard William McLean

DOB: 08/04/1973

Address: 2 McCubbin Street, Footscray, VIC 3011

I have checked Skype and Essentials and have not been able to locate this person. Can you please confirm if he has been an employee of NDIA.

Regards

Joanne Kelly

Assistant Director

Workplace Support & Disability Engagement

People & Culture Division

National Disability Insurance Agency

T 03 9622 1114 E joanne.kelly@ndis.gov.au

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#safetychampion
safeworkmonth.swa.gov.au

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recipient you are notified that any review, re-transmission, disclosure, dissemination or other use of, or taking of any action in reliance upon, this information is prohibited and may result in severe penalties. If you have received this e-mail in error please notify the sender immediately and delete all electronic and hard copies of this transmission together with any attachments. Please consider the environment before printing this e-mail *****

From: Dr Rich Mclean <rich@richmclean.com.au>
Sent: Thursday, 13 May 2021 2:03 PM
To: claims@bizcover.com.au; support@bizcover.com.au; craigg@bizcover.com.au; corppartners@vero.com.au
Cc: info@workcover.vic.gov.au; Advisory_Service@worksafe.vic.gov.au; general.enquiries@comcare.gov.au
Subject: Re: Claim 1326583/1[SEC=OFFICIAL:Sensitive] ATT Amie in Claims

Dear biz cover,

And Vero,

(Craig who I just spoke with), (CC comminsure and workcover and work safe -can you both please acknowledge this email and /or shed any light?)

I just received this email from biz [cover.com.au](https://www.bizcover.com.au)

It is for my business insurance I wondered if I may be covered by them for my break from work due to 'stress' which I have been unable to determine with any workcover comminsure the NDIS or the NDIA

Can I ask what does this mean?

'Online Medical Malpractice Civil Liability Policy (LPS016832716?M14933) issued by Vero Insurance'

Can I also ask what this means?

'Prior to this you purchased a DUAL Australia Allied Health Professionals Combined Liability Policy (BMM/22575/000/19/J)'

Are these policies or claims that have been made against me - without me even knowing about it?

Why would I not know something g about that?

What does it mean?

I am utterly in the dark?

Can anyone at Bizcover or workcover or work safe or commcare please shed some light on this?

Do I need to seek legal advice?

Thanks,

Rich

----- Forwarded Message -----

From: **Claims** <claims@bizcover.com.au>

Date: 3 May 2021 at 12:57 PM

Subject: Your recent enquiry

To: rich@richmclean.com.au

Dear Dr McLean Thank you for your email dated 1 May 2021 asking for information about your cover under insurance purchased through BizCover, and specifically regarding whether you are covered for "...an interruption in work/business for a sole trader." We are sorry to hear of the difficult circumstances you are facing. Your current Policy purchased through us is an Online Medical Malpractice Civil Liability Policy (LPS016832716?M14933) issued by Vero Insurance. Prior to this you purchased a DUAL Australia Allied Health Professionals Combined Liability Policy (BMM/22575/000/19/J). Generally and subject to their respective terms and conditions, these Policies cover your legal liability to pay compensation to third parties arising out of your business activities an/or any professional services or advice you provide. There may be extensions and additions to this cover and we refer you to the individual policies for further details. We note, however, that you do not appear to have purchased any business interruption cover. If you would like to make a claim for the insurer to consider, attached is a claim form for you to complete and return to us. The following link provides some information in the event you are seeking financial hardship assistance: <https://www.bizcover.com.au/official-documents/financial-hardship/> Further information may also be found on our insurer partners' websites: * Vero Insurance - <https://www.vero.com.au/contact-us/help-support.html> * DUAL Insurance Australia - <https://www.dualaustralia.com.au> I hope this assists and provides some clarification. Kind regards Milead Khoury Claims Team Leader BizCover Pty Ltd
w: www.bizcover.com.au t: 1300 249 268 e: claims@bizcover.com.au

From: Dr Rich Mclean <rich@richmclean.com.au>
Sent: Thursday, 13 May 2021 1:24 PM
To: Rich McLean; general.enquiries@comcare.gov.au; info@workcover.vic.gov.au; Advisory_Service@worksafe.vic.gov.au
Subject: Re: Claim 1326583/1[SEC=OFFICIAL:Sensitive] ATT Amie in Claims

Dear Commcare, and Workcover...

Is this claim assessed?

What is the process?

I spoke with someone at workcover and they said I am insured somewhere...

and they said I am a sole trader and I am not covered by commcare...

Workcover has pointed me again in your direction...

I want to stipulate that I am a registered provider with the NDIS as a registered provider, and I invoice directly to PRODA which is a government agency.

I want to determine quite urgently if despite being a sole trader if I get paid by the NDIS does that mean or not mean I am employable and our insured by Commcare?

This has come to my attention recently when my private insurer has rejected me outright unless I have a same claim with workcover.

Workcover has referred me to Commcare.

Can Amy please call me back, or even better, can she email me back please defining how within legislation I am NOT insured with commcare, and if not, what will I tell workcover?

TIA

Rich

Dr Rich McLean

Phd, MeD, BFA, Ass Dip CAD

P : (+61) 0400 639 248

E: rich@richmclean.com.au

Web: www.richmclean.com.au

Rich is a registered NDIS Therapeutic Support Provider, as an Artist-Life-Coach, Author, & Advocate, in Melbourne.

I acknowledge the Indigenous people as the Traditional Custodians of the lands where we live, learn and work.

'The bad news is - nothing is permanent, however the good news is - nothing is permanent.'

NDIS Registered Provider ID: 4050046572

Advisory_Service@worksafe.vic.gov.au

On 8 May 2021, at 1:57 pm, Dr Rich Mclean <rich@richmclean.com.au> wrote:

Dear Commcare,

Firstly I apologise for being cranky on the phone if I was to my case manager.

Its been such a stressful time - my apologies.

I was wondering if I may be called Monday after 12 midday with an update?

Otherwise I'll try and call

Kindly

Rich McLean

On 6 May 2021, at 12:03 pm, General.Enquiries
<Enquiries.General@comcare.gov.au> wrote:

Dear Dr McLean

We are writing to you to inform you that we have received your workers' compensation claim. For your reference, your claim number is: 1326583/1 which will be used throughout the claim process.

What you need to know

A Comcare claims manager will contact you within the next business day by phone.

During this initial contact, the claims manager will discuss your claim and the claims process. They may also request additional information to help progress your claim. You will also have the opportunity to ask questions and learn more about the claim process.

Your claims manager is here to support you through the claims process.

Claim assessment

Following the initial contact, your claim will be assessed, and you will be informed if your claim has been accepted.

If your claim is accepted:

- you will have access to medical and health treatments and services that are evidence based and will best support your recovery

- any treatment you do have will include clear recovery goals and ongoing measurement of your progress; and
- staying in or returning to good work will be part of your overall recovery and return to health as far as possible.

If your claim is not accepted, we will explain our decision. We will also inform you how you can get the decision reviewed and we will suggest other support services that are available to you.

Contact us

If you have any questions before your claims manager contacts you or you need support to communicate with us, please:

- [Email general.enquiries@comcare.gov.au](mailto:general.enquiries@comcare.gov.au) and quote your claim number in the subject line.
- Call our Contact Centre on 1300 366 979, Monday to Friday between 8.30 am and 5 pm AEST. Remember to have your claim number handy.
- If you need an interpreter to speak with us, call the Translation and Interpreting Service (TIS National) on 131 450.
- If you are deaf, or have a hearing or speech impairment, contact us through the National Relay Service (NRS) on 133 677 and ask for 1300 366 979.
- If you would like to have a family member or representative communicate with us on your behalf, complete the Authority to Act on Employee's Behalf form and return it to general.enquiries@comcare.gov.au.

If you would like to provide us with feedback, please send an email to mailbox.feedback@comcare.gov.au or call us on 1300 366 979.

Your privacy

Your privacy is important to us and we are committed to the highest standards of privacy when we collect, store, use or disclose your personal information while we manage your claim. You can find more information about the steps we take to protect your privacy, or view our Privacy Policy, on our website.

A claims manager will be in contact with you soon. In the meantime, please visit our Comcare website for more information.

Thank you

Comcare

1300 366 979

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From: Kelly, Joanne <Joanne.Kelly@ndis.gov.au>
Sent: Tuesday, 11 May 2021 10:54 AM
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Subject: FW: confirm employment for compensation claim - Dr Richard McLean [SEC=OFFICIAL]

Hi Amy

Please see email below confirming that Dr Richard McLean is not an employee of the NDIA.

Regards

Joanne Kelly

Assistant Director

Workplace Support & Disability Engagement

People & Culture Division

National Disability Insurance Agency

T 03 9622 1114 E joanne.kelly@ndis.gov.au

Workplace Support Email yourworkplacesupports@ndis.gov.au



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Insurance Agency



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To: Kelly, Joanne <Joanne.Kelly@ndis.gov.au>; WORKFORCEPLANNINGANDREPORTING <WORKFORCEPLANNINGANDREPORTING@ndis.gov.au>
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Hi Joanne,

I am unable to locate anyone by that name in the SAP system or files either.

Regards

Karla

Karla Dewhurst

Workforce Planning Officer

Workforce Planning Analytics & Systems | Workforce & Capability Branch | Chief People Officer
Division | **National Disability Insurance Agency**

E: Karla.Dewhurst@ndis.gov.au



We are moving

The [P&C Service Desk](#) will help you find the right team to answer your questions. Take a look and let us know what you think.

From: Kelly, Joanne <Joanne.Kelly@ndis.gov.au>

Sent: Monday, 10 May 2021 10:50 AM

To: WORKFORCEPLANNINGANDREPORTING <WORKFORCEPLANNINGANDREPORTING@ndis.gov.au>

Subject: confirm employment for compensation claim [SEC=OFFICIAL]

Good Morning

Workplace Supports have received a claim for compensation for the following employee:

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DOB: 08/04/1973

Address: 2 McCubbin Street, Footscray, VIC 3011

I have checked Skype and Essentials and have not been able to locate this person. Can you please confirm if he has been an employee of NDIA.

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#safetychampion
safeworkmonth.swa.gov.au

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Joanne Kelly
 Assistant Director
 Workplace Support & Disability Engagement People & Culture Division National Disability Insurance Agency T 03
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To help me assess whether Dr McLean is classed as an employee under the SRC Act, could a response to these questions please be provided by no later than 12 May 2021

Warmest regards,

Amy Delzoppo
 Senior Claims Manager
 Canberra 7 | Claims Management Canberra
 Claims Management Group | Canberra
 P: (02) 6276 0354
 Comcare
 GPO Box 9905, Canberra, ACT 2601
 1300 366 979
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From: Dr Rich Mclean <rich@richmclean.com.au>
Sent: Saturday, 8 May 2021 1:57 PM
To: General.Enquiries
Cc: Claim.Correspondence
Subject: Re: Claim 1326583/1[SEC=OFFICIAL:Sensitive]

Dear Commcare,

Firstly I apologise for being cranky on the phone if I was to my case manager.

Its been such a stressful time - my apologies.

I was wondering if I may be called Monday after 12 midday with an update?

Otherwise I'll try and call

Kindly

Rich McLean

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 >
 > Dear Dr McLean
 >
 > We are writing to you to inform you that we have received your workers' compensation claim. For your reference, your claim number is: 1326583/1 which will be used throughout the claim process.
 >
 > What you need to know
 > A Comcare claims manager will contact you within the next business day by phone.
 >
 > During this initial contact, the claims manager will discuss your claim and the claims process. They may also request additional information to help progress your claim. You will also have the opportunity to ask questions and learn more about the claim process.
 >
 > Your claims manager is here to support you through the claims process.
 >
 > Claim assessment
 > Following the initial contact, your claim will be assessed, and you will be informed if your claim has been accepted.
 >
 > If your claim is accepted:
 > •you will have access to medical and health treatments and services that are evidence based and will best support your recovery
 > •any treatment you do have will include clear recovery goals and ongoing measurement of your progress; and
 > •staying in or returning to good work will be part of your overall recovery and return to health as far as possible.
 >
 > If your claim is not accepted, we will explain our decision. We will also inform you how you can get the decision reviewed and we will suggest other support services that are available to you.
 >
 > Contact us

> If you have any questions before your claims manager contacts you or you need support to communicate with us, please:

>

- > •Email general.enquiries@comcare.gov.au and quote your claim number in the subject line.
- > •Call our Contact Centre on 1300 366 979, Monday to Friday between 8.30 am and 5 pm AEST. Remember to have your claim number handy.
- > •If you need an interpreter to speak with us, call the Translation and Interpreting Service (TIS National) on 131 450.
- > •If you are deaf, or have a hearing or speech impairment, contact us through the National Relay Service (NRS) on 133 677 and ask for 1300 366 979.
- > •If you would like to have a family member or representative communicate with us on your behalf, complete the Authority to Act on Employee's Behalf form and return it to general.enquiries@comcare.gov.au.

>

> If you would like to provide us with feedback, please send an email to mailbox.feedback@comcare.gov.au or call us on 1300 366 979.

>

> Your privacy

> Your privacy is important to us and we are committed to the highest standards of privacy when we collect, store, use or disclose your personal information while we manage your claim. You can find more information about the steps we take to protect your privacy, or view our Privacy Policy, on our website.

>

> A claims manager will be in contact with you soon. In the meantime, please visit our Comcare website for more information.

>

> Thank you

>

> Comcare

> 1300 366 979

> Sensitive: This document may contain sensitive information as defined under Section 6 of the Privacy Act.

> NOTICE: This e-mail message and attachments may contain confidential, personal or legally privileged information. If you are not the intended recipient you should not use or disclose any information in the message or attachments. If received in error, please notify the sender by return email immediately, if possible, or Enquiries.General@comcare.gov.au. Comcare does not waive any confidentiality or privilege. For information about how we handle personal information, please visit www.comcare.gov.au/privacy or contact us on 1300 366 979 and request a copy of our Privacy Policy.

CERTIFICATE OF CAPACITY



- A valid Certificate of Capacity must be provided if you are claiming compensation for loss of income because of a transport accident or work-related injury or illness.
- The certifier will use this Certificate of Capacity to communicate with your employer and your case manager about your work capacity (refer to the TAC or WorkSafe Victoria (WorkSafe) website for who can certify). Note: The first medical certificate for a work-related injury/condition WorkSafe claim must be issued by a medical practitioner.
- Certifiers - Please type or use block letters and ensure that all relevant sections are complete. Incomplete forms may be returned.

This certificate has been issued in relation to a:

☐ Transport accident related injury (TAC Claim) ☒ Work related injury/condition (WorkSafe claim)

This certificate has been issued to confirm attendance only Complete sections 1, 2, 5 & 6 only ☐

1. Worker Details

Worker First Name **Richard** Claim Number (if known)
 Worker Last Name **McLean** Date of Injury (if Claim number not known) **18/1/21**
 Date of Birth **8/4/73**
 Worker Address

2 McCubbin Street

FOOTSCRAY

3011

I examined you on **25/1/21** If this certificate refers to a period prior to the date of examination, please provide details in Additional Comments (Section 3) below

My Clinical Diagnosis/es based on my examination of you and other available information is:

anxiety depression response to clients with sexual trauma

If capacity is affected further details MUST be provided in this section - continue to Section 4 if capacity is affected

Your work capacity is affected by your injury/condition as follows:

Physical Function	CAN	WITH MODIFICATIONS	CANNOT	Physical Function - Additional Comments eg. limits on durations weight-handling capacity repetitive or sustained postures movements or forces.
Select applicable				
Sit	☒	☐	☐	
Stand/Walk	☒	☐	☐	
Bend	☒	☐	☐	
Squat	☒	☐	☐	
Kneel	☒	☐	☐	
Reach above shoulder	☒	☐	☐	
Use injured arm/hand	☒	☐	☐	
Lift	☒	☐	☐	
Neck movement	☒	☐	☐	

Mental Health Function	NOT AFFECTED	AFFECTED	Mental Health - Additional Comments eg. effects of mental health symptoms, cognitive function
Select applicable			
Attention/Concentration	☐	☒	
Memory (short and/or long term)	☐	☒	
Judgement (ability to make decisions)	☐	☒	

Other Functional Considerations - not listed above

Other Functional Considerations - Additional Comments eg. effects of medication

Work Environment Considerations eg. physical (temperature, noise, space, light) or mental health considerations that affect work capacity

4. Certification

Note: Certificate durations for a work-related injury/condition (WorkSafe claim) unless special reasons apply are up to:
 - 14 days for the first certificate (must be issued by a medical practitioner) - 28 days for a subsequent certificate

Taking into account the effects of your injury/condition, as outlined in section 3, you:

- ☐ Have a capacity for pre-injury employment from _____
- ☐ Have a capacity for suitable employment from _____ to _____
- ☒ Have no capacity for employment from **25/1/21** to **8/2/21**

Estimated timeframe to return to work days or weeks

An estimated timeframe will assist with planning for a return to safe work

5. Treatment Plan

Your treatment plan including injury management, strategies to increase capacity for work, address return to work barriers and/or prevent recurrence/aggravation of injury:

6. Certifier Declaration

I certify that I have clinically examined this patient. The information and medical opinions I have provided in this certificate are, to the best of my knowledge, true and correct.

Provider name, address and phone no. (or practice stamp)

Dr Richard Moore
370 ST GEORGES RD
FITZROY NORTH VIC 3068

Telephone **03 9485 7700**

Signature of Certifier

Provider number or hospital name

0322489A

Date issued **4/5/21**

7. Worker Declaration – WORKER TO COMPLETE

MANDATORY unless this is the first certificate or an attendance certificate only

At any time since the last Certificate of Capacity was provided, have you engaged in:

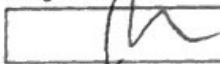
- voluntary work, or
- any form of employment or in self-employment for which you have received or been entitled to receive payment in money or otherwise?

- ☒ No, I have not
- ☐ Yes, I have

Please provide details of any voluntary work, employment or self-employment you have engaged in (other than with your pre-injury employer as part of your return to work):

I declare that the details I have given on this certificate are true and correct. I understand that it is an offence under the legislation to provide false or misleading information.

Signature of Worker



Date

25/1/21

Further Information**Returning to work**

If you have a work capacity for suitable employment your employer and case manager will use the information provided by your certifier on the Certificate of Capacity to assess suitable options for you to safely stay at or return to work. They will take into account what you can do safely and any limitations that apply to your individual circumstances. A capacity for suitable employment could mean working reduced hours while you recover or working modified or different duties until you can return to your normal work with your pre-injury employer or another employer.

Privacy

The TAC and WorkSafe (WorkSafe Agents and Self-Insurers) will handle your personal and health information in accordance with their privacy policies and legislation. You can access privacy policy information at the TAC and WorkSafe websites.

CERTIFICATE OF CAPACITY



- A valid Certificate of Capacity must be provided if you are claiming compensation for loss of income because of a transport accident or work-related injury or illness.
- The certifier will use this Certificate of Capacity to communicate with your employer and your case manager about your work capacity. Refer to the TAC or WorkSafe website for who can certify. Note: The first medical certificate for a work-related injury/condition that is a WorkSafe claim must be issued by a medical practitioner.
- Certifiers - Please type or use block letters and ensure that all relevant sections are complete. Incomplete forms may be returned.

This certificate has been issued in relation to a:

☐ Transport accident related injury (TAC Claim) ☒ Work related injury/condition (WorkSafe claim)

This certificate has been issued to confirm attendance only Complete sections 1, 2, 5 & 8 only ☐

1. Worker Details

Worker First Name

Richard

Claim Number (if known)

Worker Last Name

McLean

Date of Injury (if Claim number not known)

18/1/21

Worker Address

Date of Birth

8/4/73

2 McCubbin Street

FOOTSCRAY

3011

I examined you on 2/3/21

If this certificate refers to a period prior to the date of examination please provide details in Additional Comments (Section 3) below

My Clinical Diagnosis/es based on my examination of you and other available information is

anxiety depression reaction to clients with sexual trauma

If capacity is affected further details MUST be provided in this section
Comments in Section 3 if capacity is affected

Your work capacity is affected by your injury/condition as follows:

Physical Function <i>Select applicable</i>	CAN	WITH MODIFICATIONS	CANNOT
Sit	☒	☐	☐
Stand/Walk	☒	☐	☐
Bend	☒	☐	☐
Squat	☒	☐	☐
Kneel	☒	☐	☐
Reach above shoulder	☒	☐	☐
Use injured arm/hand	☒	☐	☐
Lift	☒	☐	☐
Neck movement	☒	☐	☐

Physical Function - Additional Comments eg limits on duration, weight handling capacity repetitive or sustained postures movements or forces

Mental Health Function

Select applicable

NOT
AFFECTED

AFFECTED

Attention/Concentration

☐
☒

Memory (short and/or long term)

☐
☒

Judgement (ability to make decisions)

☐
☒

Mental Health - Additional Comments eg effects of mental health symptoms, cognitive function

Other Functional Considerations - not listed above

Other Functional Considerations - Additional Comments eg effects of medication

Work Environment Considerations eg physical (temperature, noise, space, light) or mental health considerations that affect work capacity

4. Certificate Note: Certificate duration for a work-related injury/condition (WorkSafe claim unless special reasons apply are no longer than 12 weeks for the first condition (must be less than 6 months) maximum) - 26 days for a subsequent condition.

Taking into account the effects of your injury/condition, as outlined in section 3, you:

- ☐ Have a capacity for pre-injury employment from _____
- ☐ Have a capacity for suitable employment from _____ to _____
- ☒ Have no capacity for employment from 8/2/21 to 8/3/21

Estimated timeframe to return to work 0 days or 0 weeks

An estimated timeframe will assist with planning for a return to safe work

5. Treatment Plan

Your treatment plan including injury management strategies to increase capacity for work, address return to work barriers and/or prevent recurrence/aggravation of injury.

6. Certifier Declaration

I certify that I have clinically examined this patient. The information and medical opinions I have provided in this certificate are, to the best of my knowledge, true and correct.

Provider name, address and phone no. (or practice stamp)

Dr Richard Moore
370 ST GEORGES RD
FITZROY NORTH VIC 3068

Telephone 03 9485 7700

Signature of Certifier

Provider number or hospital name

0322489A

Date issued 4/5/21

7. Worker Declaration - WORKER TO COMPLETE

MANDATORY unless this is the first certificate or an attendance certificate only

At any time since the last Certificate of Capacity was provided, have you engaged in:

- voluntary work, or
- any form of employment or in self-employment for which you have received or been entitled to receive payment in money or otherwise?

☒ No, I have not

☐ Yes, I have

Please provide details of any voluntary work, employment or self-employment you have engaged in (other than with your pre-injury employer as part of your return to work):

I declare that the details I have given on this certificate are true and correct. I understand that it is an offence under the legislation to provide false or misleading information.

Signature of Worker



Date

2/4/21

Further Information

Returning to work

If you have a work capacity for suitable employment your employer and case manager will use the information provided by your certifier on the Certificate of Capacity to assess suitable options for you to safely stay at or return to work. They will take into account what you can do safely and any limitations that apply to your individual circumstances. A capacity for suitable employment could mean working reduced hours while you recover or working modified or different duties until you can return to your normal work with your pre-injury employer or another employer.

Privacy

The TAC and WorkSafe (WorkSafe Agents and Self-Insurers) will handle your personal and health information in accordance with their privacy policies and legislation. You can access privacy policy information at the TAC and WorkSafe websites.

CERTIFICATE OF CAPACITY



- A valid Certificate of Capacity must be provided if you are claiming compensation for loss of income because of a transport accident or work-related injury or illness.
- The certifier will use this Certificate of Capacity to communicate with your employer and your case manager about your work capacity (refer to the TAC or WorkSafe Victoria (WorkSafe) website for who can certify). Note: The first medical certificate for a work-related injury/condition WorkSafe claim must be issued by a medical practitioner.
- Certifiers - Please type or use block letters and ensure that all relevant sections are complete. Incomplete forms may be returned.

This certificate has been issued in relation to a:

☐ Transport accident related injury (TAC Claim) ☒ Work related injury/condition (WorkSafe claim)

This certificate has been issued to confirm attendance only Complete sections 1, 2, 5 & 6 only ☐

1. Worker Details

Worker First Name

Richard

Claim Number (if known)

Worker Last Name

McLean

Date of Injury (if Claim number not known)

18/1/21

Date of Birth

8/4/73

Worker Address

2 McCubbin Street

FOOTSCRAY

3011

I examined you on 22/3/21

If this certificate refers to a period prior to the date of examination please provide details in Additional Comments (Section 3) below

My Clinical Diagnosis/es based on my examination of you and other available information is:

anxiety depression reaction to clients with sexual trauma

30/03/2021

If capacity is affected further details MUST be provided in this section. Continue to Section 4 if capacity is unaffected.

Your work capacity is affected by your injury/condition as follows:

Physical Function <i>Select applicable</i>	CAN	WITH MODIFICATIONS	CANNOT
Sit	☒	☐	☐
Stand/Walk	☒	☐	☐
Bend	☒	☐	☐
Squat	☒	☐	☐
Kneel	☒	☐	☐
Reach above shoulder	☒	☐	☐
Use injured arm/hand	☒	☐	☐
Lift	☒	☐	☐
Neck movement	☒	☐	☐

Physical Function - Additional Comments eg limits on durations weight-handling capacity repetitive or sustained postures movements or forces.

Mental Health Function

Select applicable

NOT
AFFECTED

AFFECTED

Attention/Concentration

☐

☒

Memory (short and/or long term)

☐

☒

Judgement (ability to make decisions)

☐

☒

Mental Health - Additional Comments eg effects of mental health symptoms, cognitive function.

Other Functional Considerations - not listed above

Other Functional Considerations - Additional Comments eg effects of medication

Work Environment Considerations eg physical (temperature, noise, space, light) or mental health considerations that affect work capacity

4. Certificate Declaration

Notes: Certificate duration for a work-related injury/condition (WorkSafe claim unless special reasons apply are up to 26 weeks for the first certificate (must be issued by a medical practitioner) - 26 days for a subsequent certificate)

Taking into account the effects of your injury/condition, as outlined in section 3, you:

- ☐ Have a capacity for pre-injury employment from
- ☐ Have a capacity for suitable employment from to
- ☒ Have no capacity for employment from 8/3/21 to 5/4/21

Estimated timeframe to return to work days or weeks

An estimated timeframe will assist with planning for a return to safe work

5. Treatment Plan

Your treatment plan including injury management, strategies to increase capacity for work, address return to work barriers and/or prevent recurrence/aggravation of injury

psychiatry

6. Certifier Declaration

I certify that I have clinically examined this patient. The information and medical opinions I have provided in this certificate are to the best of my knowledge, true and correct

Provider name, address and phone no. (or practice stamp)

Dr Richard Moore
370 ST GEORGES RD
FITZROY NORTH VIC 3068

Telephone 03 9485 7700

Signature of Certifier

Provider number or hospital name

0322489A

Date issued 4/5/21

7. Worker Declaration

MANDATORY unless this is the first certificate or an attendance certificate only

At any time since the last Certificate of Capacity was provided, have you engaged in:

- voluntary work, or
- any form of employment or in self-employment for which you have received or been entitled to receive payment in money or otherwise?

☒ No, I have not

☐ Yes, I have

Please provide details of any voluntary work, employment or self-employment you have engaged in (other than with your pre-injury employer as part of your return to work)

(Handwritten signature)

I declare that the details I have given on this certificate are true and correct. I understand that it is an offence under the legislation to provide false or misleading information.

Signature of Worker

(Handwritten signature)

Date

24/3/21

Further Information

Returning to work

If you have a work capacity for suitable employment your employer and case manager will use the information provided by your certifier on the Certificate of Capacity to assess suitable options for you to safely stay at or return to work. They will take into account what you can do safely and any limitations that apply to your individual circumstances. A capacity for suitable employment could mean working reduced hours while you recover or working modified or different duties until you can return to your normal work with your pre-injury employer or another employer.

Privacy

The TAC and WorkSafe (WorkSafe Agents and Self-insurers) will handle your personal and health information in accordance with their privacy policies and legislation. You can access privacy policy information at the TAC and WorkSafe websites.

CERTIFICATE OF CAPACITY



- A valid Certificate of Capacity must be provided if you are claiming compensation for loss of income because of a transport accident or work-related injury or illness
- The certifier will use this Certificate of Capacity to communicate with your employer and your case manager about your work capacity (refer to the TAC or WorkSafe Victoria (WorkSafe) website for who can certify). Note: The first medical certificate for a work-related injury/condition WorkSafe claim must be issued by a medical practitioner
- Certifiers – Please type or use block letters and ensure that all relevant sections are complete. Incomplete forms may be returned

This certificate has been issued in relation to a:

☐ Transport accident related injury (TAC Claim) ☒ Work related injury/condition (WorkSafe claim)

This certificate has been issued to confirm attendance only Complete sections 1, 2, 5 & 6 only ☐

1. Worker Details

Worker First Name Richard Claim Number (if known)
 Worker Last Name McLean Date of Injury (if Claim number not known) 18/1/21
 Worker Address 2 McCubbin Street Date of Birth 8/4/73
FOOTSCRAY 3011

2. Diagnosis

I examined you on 30/4/21 If this certificate refers to a period prior to the date of examination, please provide details in Additional Comments (Section 3) below

My Clinical Diagnosis/es based on my examination of you and other available information is:

anxiety depression reaction to clients with sexual trauma

3. Capacity Assessment

If capacity is affected further details MUST be provided in this section.
 • Continue to Section 4 if capacity is unaffected

Your work capacity is affected by your injury/condition as follows:

Physical Function	CAN	WITH MODIFICATIONS	CANNOT	Physical Function – Additional Comments eg. limits on durations weight-handling capacity repetitive or sustained postures movements or forces:
Select applicable				
Sit	☒	☐	☐	
Stand/Walk	☒	☐	☐	
Bend	☒	☐	☐	
Squat	☒	☐	☐	
Kneel	☒	☐	☐	
Reach above shoulder	☒	☐	☐	
Use injured arm/hand	☒	☐	☐	
Lift	☒	☐	☐	
Neck movement	☒	☐	☐	

Mental Health Function	NOT AFFECTED	AFFECTED	Mental Health – Additional Comments eg. effects of mental health symptoms, cognitive function:
Select applicable			
Attention/Concentration	☐	☒	
Memory (short and/or long term)	☐	☒	
Judgement (ability to make decisions)	☐	☒	

Other Functional Considerations – not listed above

Other Functional Considerations – Additional Comments eg. effects of medication

Work Environment Considerations eg. physical (temperature, noise, space, light) or mental health considerations that affect work capacity

Important Information: Note: Certificate duration for a work-related injury/condition (WorkSafe claims unless special reasons apply) is 12 months for the first certificate (not to exceed 12 months for a subsequent certificate) + 30 days for a subsequent certificate.

Taking into account the effects of your injury/condition, as outlined in section 3, you:

- ☐ Have a capacity for pre-injury employment from _____
- ☐ Have a capacity for suitable employment from _____ to _____
- ☒ Have no capacity for employment from **5/4/21** to **3/5/21**

Estimated timeframe to return to work days or weeks

An estimated timeframe will assist with planning for a return to safe work

5. Treatment Plan

Your treatment plan including injury management, strategies to increase capacity for work, address return to work barriers and/or prevent recurrence/aggravation of injury

psychiatry

6. Certifier Declaration

I certify that I have clinically examined this patient. The information and medical opinions I have provided in this certificate are, to the best of my knowledge, true and correct.

Provider name, address and phone no. (or practice stamp)

Dr Richard Moore
370 ST GEORGES RD
FITZROY NORTH VIC 3068

Telephone **03 9485 7700**

Signature of Certifier

Provider number or hospital name

0322489A

Date issued **4/5/21**

7. Worker Declaration – WORKER TO COMPLETE

MANDATORY unless this is the first certificate or an attendance certificate only

At any time since the last Certificate of Capacity was provided, have you engaged in:

- voluntary work, or
- any form of employment or in self-employment for which you have received or been entitled to receive payment in money or otherwise?

☒ No, I have not

☐ Yes, I have

Please provide details of any voluntary work, employment or self-employment you have engaged in (other than with your pre-injury employer as part of your return to work)

I declare that the details I have given on this certificate are true and correct. I understand that it is an offence under the legislation to provide false or misleading information.

Signature of Worker

Date **20/4/21**

Further Information

Returning to work

If you have a work capacity for suitable employment your employer and case manager will use the information provided by your certifier on the Certificate of Capacity to assess suitable options for you to safely stay at or return to work. They will take into account what you can do safely and any limitations that apply to your individual circumstances. A capacity for suitable employment could mean working reduced hours while you recover or working modified or different duties until you can return to your normal work with your pre-injury employer or another employer.

Privacy

The TAC and WorkSafe (WorkSafe Agents and Self-Insurers) will handle your personal and health information in accordance with their privacy policies and legislation. You can access privacy policy information at the TAC and WorkSafe websites.

CERTIFICATE OF CAPACITY



- A valid Certificate of Capacity must be provided if you are claiming compensation for loss of income because of a transport accident or work-related injury or illness
- The certifier will use this Certificate of Capacity to communicate with your employer and your case manager about your work capacity (refer to the TAC or WorkSafe Victoria (WorkSafe) website for who can certify) **Note:** The first medical certificate for a work-related injury/condition WorkSafe claim must be issued by a medical practitioner
- Certifiers – Please type or use block letters and ensure that all relevant sections are complete. Incomplete forms may be returned

This certificate has been issued in relation to a:

☐ Transport accident related injury (TAC Claim) ☒ Work related injury/condition (WorkSafe claim)

This certificate has been issued to confirm attendance only Complete sections 1, 2, 5 & 6 only ☐

1. Worker details	
Worker First Name Richard	Claim Number (if known) _____
Worker Last Name McLean	Date of Injury (if Claim number not known) 18/1/21
Worker Address 2 McCubbin Street	Date of Birth 8/4/73
FOOTSCRAY	3011

2. Diagnosis

I examined you on **5/5/21** If this certificate refers to a period prior to the date of examination, please provide details in Additional Comments (Section 3) below

My Clinical Diagnosis/es based on my examination of you and other available information is:

anxiety depression reaction to clients with sexual trauma

3. Capacity Assessment

Your work capacity is affected by your injury/condition as follows:

Physical Function	CAN	WITH MODIFICATIONS	CANNOT
Select applicable			
Sit	☒	☐	☐
Stand/Walk	☒	☐	☐
Bend	☒	☐	☐
Squat	☒	☐	☐
Kneel	☒	☐	☐
Reach above shoulder	☒	☐	☐
Use injured arm/hand	☒	☐	☐
Lift	☒	☐	☐
Neck movement	☒	☐	☐

Physical Function – Additional Comments eg. limits on durations weight-handling capacity repetitive or sustained postures movements or forces.

Mental Health Function	NOT AFFECTED	AFFECTED
Select applicable		
Attention/Concentration	☐	☒
Memory (short and/or long term)	☐	☒
Judgement (ability to make decisions)	☐	☒

Mental Health – Additional Comments eg. effects of mental health symptoms, cognitive function:

Other Functional Considerations – not listed above

Other Functional Considerations – Additional Comments eg. effects of medication

Work Environment Considerations eg. physical (temperature, noise, space, light) or mental health considerations that affect work capacity

4. Certification

Note: Certificate durations for a work-related injury/condition (WorkSafe claim) unless special reasons apply are up to:
 • 14 days for the first certificate (must be issued by a medical practitioner) • 28 days for a subsequent certificate.

Taking into account the effects of your injury/condition, as outlined in section 3, you:

- ☐ Have a capacity for pre-injury employment from
- ☐ Have a capacity for suitable employment from to
- ☒ Have no capacity for employment from 3/5/21 to 31/5/21

Estimated timeframe to return to work days or weeks

An estimated timeframe will assist with planning for a return to safe work

5. Treatment

Your treatment plan including injury management, strategies to increase capacity for work, address return to work barriers and/or prevent recurrence/aggravation of injury:

psychiatry

6. Certification

I certify that I have clinically examined this patient. The information and medical opinions I have provided in this certificate are to the best of my knowledge, true and correct.

Provider name, address and phone no. (or practice stamp)

Dr Richard Moore
 370 ST GEORGES RD
 FITZROY NORTH VIC 3068

Telephone 03 9485 7700

Signature of Certifier

Provider number or hospital name

0322489A

Date issued 4/5/21

7. Worker Declaration – WORKER TO COMPLETE

MANDATORY unless this is the first certificate or an attendance certificate only

At any time since the last Certificate of Capacity was provided, have you engaged in:

- voluntary work, or
- any form of employment or in self-employment for which you have received or been entitled to receive payment in money or otherwise?

- ☒ No, I have not
- ☐ Yes, I have

Please provide details of any voluntary work, employment or self-employment you have engaged in (other than with your pre-injury employer as part of your return to work).

I declare that the details I have given on this certificate are true and correct. I understand that it is an offence under the legislation to provide false or misleading information.

Signature of Worker

Date

5/5/21

Further information**Returning to work**

If you have a work capacity for suitable employment your employer and case manager will use the information provided by your certifier on the Certificate of Capacity to assess suitable options for you to safely stay at or return to work. They will take into account what you can do safely and any limitations that apply to your individual circumstances. A capacity for suitable employment could mean working reduced hours while you recover or working modified or different duties until you can return to your normal work with your pre-injury employer or another employer.

Privacy

The TAC and WorkSafe (WorkSafe Agents and Self-Insurers) will handle your personal and health information in accordance with their privacy policies and legislation. You can access privacy policy information at the TAC and WorkSafe websites.

From: Rich McLean <richarddrawsstuff@gmail.com>
Sent: Tuesday, 4 May 2021 3:39 PM
To: General.Enquiries
Cc: Dr Rich McLean
Subject: Fwd: GT6|Re: URGENT REVIEW S29
Attachments: injuryclaimform.pdf; workcoverGPCertificates.pdf

From R Mclean

Re: Urgent review

Dear Commcare, the WorkSafe Advisory has suggested I forward my claim on to Commcare

Could you please acknowledge this email and if necessary forward it to the relevant department.

Thanks in advance for attending to this and also I was just wondering if you could acknowledge this with a receipt and a turn around time.

Grateful for your time.

Kindly

Rich M

Begin forwarded message:

From: Advisory_Service@worksafe.vic.gov.au
Subject: GT6|Re: URGENT REVIEW S29
Date: 4 May 2021 at 3:25:56 pm AEST
To: Rich McLean <richarddrawsstuff@gmail.com>
Reply-To: Advisory_Service@worksafe.vic.gov.au

Hello Richard,
 Thank you for contacting the WorkSafe Advisory service.

With regards to your claim for worker's compensation, the employer noted on the claim form, NDIS/NDIA is not covered under the Victorian WorkCover scheme.

Being a federal agency, we advise lodging the claim with [Comcare](#), the federal worker's compensation authority.

If you have any further questions, please contact WorkSafe Advisory on 1800 136 089, between

7:30am and 6:30pm, Monday to Friday.

Best regards,
Stuart.

Stuart
Advisor

info@worksafe.vic.gov.au
Tel/ 1800 136 089 or 9641 1444

Head Office, 1 Malop Street
Geelong VIC 3220
www.worksafe.vic.gov.au



Whilst the Advisory Service endeavours to provide accurate information and advice, all advice provided is based on the information received in your email and should not be assumed to apply to other situations or circumstances. Please consider the application of the advice to your individual circumstances, taking into account any relevant statutory obligation or duty, before acting upon it.

BE GREEN, READ FROM THE SCREEN

Rich McLean ---04/05/2021 01:11:13 PM---From: Rich McLean <richarddrawsstuff@gmail.com> To: advisory_service, Rich Mclean <rich@richmclean.com.au>, Richard McLean <ric

From: Rich McLean <richarddrawsstuff@gmail.com>

To: advisory_service, Rich Mclean <rich@richmclean.com.au>, Richard McLean <richard@creativemusings.com.au>, Richard McLean <richarddrawsstuff@gmail.com>

Date: 04/05/2021 01:11 PM

Subject: URGENT REVIEW S29

[attachment "injuryclaimform.pdf" deleted by sender] [attachment "workcoverGPCertificates.pdf" deleted by sender]

Worker's injury claim form



For help completing this form or for more information contact:

- Your employer or the nominated Return to Work Coordinator at your workplace
- Your employer's WorkSafe Victoria (WorkSafe) Agent - to find out who the Agent is check the *If you are injured* poster or call the WorkSafe Advisory Service: freecall 1800 136 089
- WorkSafe Advisory Service - the WorkSafe call centre: freecall 1800 136 089
- Your union
- Union Assist - a free service set up and run by the Victorian Trades Hall Council: (03) 9639 6144

As the worker you need to:

- Answer all of the questions on this form. **Carefully complete this form using a dark blue or black pen.** The form may be returned to you if it is incomplete
- Sign the authority to release medical information and worker's declaration at the end of this form. The form cannot be accepted without your signature
- Keep a copy of all documents for your records
- Notify your employer as soon as possible that you've been injured at work, and complete the injury register at your workplace. You can also notify the Agent directly by sending them the "early notification" copy of this form
- Report the accident to the police if your injury was the result of a motor vehicle accident. Otherwise your claim may not be valid
- Give this form (when completed) to your employer as soon as possible after being injured. If you have difficulty giving this claim to your employer, or your employer refuses to take receipt of the claim form, you can send it directly to the Agent or WorkSafe if the Agent is not known
- See your medical practitioner to obtain a *WorkSafe Certificate of Capacity (medical certificate)* if you are unable to work and want to claim weekly payments, and give the original copy to your employer along with this form. It is a good idea to check that all of the injuries or illnesses that you are claiming for on this form are listed on the *WorkSafe Certificate of Capacity*
- Note that if your claim is accepted, WorkSafe can pay the reasonable costs of medical and like expenses. However, this may not mean payment of the full costs. In some cases there may be a gap between what the provider charges you and what WorkSafe can pay as reasonable costs. If you want to know the reasonable costs for a particular service, visit the WorkSafe website at [worksafe.vic.gov.au](https://www.worksafe.vic.gov.au).
- Read the statement on the back of this form that explains how your personal and health information will be collected and used and how your weekly payments will be calculated (if your claim is accepted).

Getting back to work

- Talk with your employer to plan your return to work
- Talk to your medical practitioner or healthcare provider about what parts of your work you could do and any limitations you have. You can also encourage your medical practitioner or healthcare provider to talk to your employer about your capacity for work and any suitable duties that may be available
- Talk to the Agent about what support is available to help you return to work and overcome your injury as quickly as possible

Your employer's responsibilities:

- To confirm to you in writing that you notified them of this claim (they can do this by giving you a copy of this form when signed and completed)
- If you are claiming weekly payments, they must send the completed form and any *WorkSafe Certificates of Capacity (medical certificates)* to the Agent as soon as possible, but no later than 10 days after receiving them from you - or they may be financially penalised
- To pay you weekly payments if your claim is accepted and you have an entitlement
- To work with you to plan your return to work (if required)
- To provide you with suitable employment when you have a capacity to work
- To provide you with pre-injury employment when you have recovered and no longer have an incapacity for work
- To appoint a return to work coordinator who is competent to support your return to work.

Please note that there are penalties for providing false or misleading information in relation to this claim.

The WorkSafe Agent will write to you and advise you if your claim is accepted.

A decision to accept or reject your claim will usually be made within 28 days from the Agent received date.

To find out more about making a claim, and what support is available to help you return to work, talk to the Agent, refer to the brochure *Introducing WorkSafe, a guide for injured workers*, or visit the WorkSafe website at [worksafe.vic.gov.au](https://www.worksafe.vic.gov.au).



WorkCover
QUEENSLAND



This form can be used to lodge a Workers' Compensation Claim
in New South Wales, Queensland or Victoria

Please complete form using a dark blue or black pen

Worker's injury claim form

Please indicate in which State you want to lodge this claim:

NSW ☐ QLD ☐ VIC ☒

1. Worker's personal details

Title Family name
DR McLEAN

Given names
RICHARD WILLIAM

Other known or previous legal names eg. Maiden name

Date of birth Gender
08/04/1973 Male ☒ Female ☐

Residential street address
2 McLEUBIN ST
FOOTSCRAM

Suburb State Postcode
FOOTSCRAM VIC 3011

Postal address for correspondence
2 McLEUBIN ST
FOOTSCRAM VIC 3011

What are your daytime contact phone numbers?
Mobile Work Home
0400639248 - -

Email address
rich@richmelean-com-au

*This question is required for Victorian claims
Please read the information on "Communicating with You" at the end of this form and
indicate below if you agree to WorkSafe sending you personal and health information
relating to your claim via email and SMS.*

I agree ☒

I do not agree ☐
(WorkSafe will communicate with you via post)

If you need an interpreter, what language do you speak?

Do you have special communication needs because of disability?
eg. Hearing or vision impairment

*These questions are required for NSW claims

Do you support a partner?
Yes ☐ No ☐

If yes, what were their average gross weekly earnings
over 3 months?

Do you support any children under the age of 18,
or full-time students?

Yes ☐ No ☐

If yes, please provide the date of birth for each*

2. Incident & worker's injury details

What is your injury/condition, and which parts of your body
are affected?

MY CONDITION WAS TRIGGERED BY NON
VALIDATION CHILD SEXUAL ABUSE + CLIENT STORIES

What happened and how were you injured?

I FOUGHT FOR 3 1/2 YEARS FOR MY CHILD
SEXUAL ABUSE CLAIM TO BE HEARD BY MAGISTRATE
WHO REJECTED IT. TRIGGERED BY STORIES FROM
CHILD SEX ABUSE VICTIMS @ WORK

What task/s were you doing when you were injured?

LOOKING AFTER CLIENTS WITH CHILD ABUSE
RAPE ISSUES PREPARING JOCAT FORMS

What area of the worksite were you working in when you
were injured?

IN THE COMPANY OF SICK CLIENTS AT
HOME

What is the street address where the incident occurred?

22 ASCOT ST ASCOT VALE

Suburb	State	Postcode
ASCOT VALE	NIC	

Name of employer responsible for this workplace

NDIS

Which of the following incident circumstances apply?

- ☒ While working at your usual workplace
☒ While working away from your usual workplace
☒ During a meal-break or authorised recess at work
☒ While away from work during a recess
☒ Travelling to or from work*
☐ A motor vehicle accident while you were working*

*For NSW incidents a journey claim form must also be completed

If your injury was the result of driving or using a motor vehicle or the use of public transport, please provide the following details:

The police station the accident was reported to

--

Registration number/s of involved vehicles State

--	--

Do you believe that your injury/condition was caused or contributed to by a third party such as a manufacturer or supplier?

Please give details if relevant

What was the date and time the injury/condition occurred?

Date	Time	AM	PM
22/01/2021	—	☐	☐

When did you first notice the injury/condition?

When I believed MALICIOUS REGULATION + PROBLE WITH BOUNDARIES + FREQUENT
--

If you stopped work, what was the date and time?

Date	Time	AM	PM
22/01/2021	—	☐	☐

When did you report the injury/condition to your employer?

26/04/2021

What is the name and position of the person you reported the injury/condition to?

NDIS

If you did not report the injury/condition, or there was a delay, please explain why

I DID NOT KNOW SOME TRADERS WERE COVERED
--

What are the names and daytime contact details of anyone who witnessed the incident?

—

Have you previously had another injury/condition or personal injury claim that relates to this injury/condition?

Please give details, including claim numbers

NO

3. Worker's employment details

Name of organisation paying your wages when you were injured

NDIS - NDIA

Street address of your usual workplace

NDIA
GPO BOX 700, CANBERRA ACT

Suburb State Postcode

Suburb	State	Postcode
CANBERRA	ACT	2601

Name and daytime contact number of employer contact

eg. Name of return to work coordinator

1800 800 110

What is your usual occupation? What do you do?

ARTIST - LIFE-COACH - THERAPEUTIC SUPPORTS.

Which of the following apply to you?

(Please tick all relevant boxes)

Full-time ☐ Part-time ☐ Casual ☐ Student ☐
 Apprentice ☐ Volunteer ☐ Contract ☐ Trainee ☐
 Agency worker ☐ Contractor ☒ Permanent ☐ Temporary ☐
 Seasonal ☐ Jockey ☐

Other SOLE TRADER 24GARS

When did you start working for this employer?

02/10/2019

Please indicate if any of the following apply to you:

A director of my employer's company Yes ☐ No ☒A partner in my employer's company Yes ☐ No ☒A sole trader Yes ☒ No ☐A relative of my employer Yes ☐ No ☒

Did you have any other employment at the time you were injured?
 Please provide or attach the names of any other employers and their contact details,
 and any relevant wage or payment records

NO

4. Worker's primary earning details

Please complete this section if you wish to claim for weekly payments

How many standard hours did you work each week before being injured? Exclude overtime

7-15 hours up to 24

What were your usual working hours?

For example, Monday to Friday, 8 30 am to 5 30 pm

4 days per week different days

What was your usual pre-tax hourly rate?*

Exclude overtime & shift allowances

\$193.94

What were your usual pre-tax weekly earnings?*

Exclude overtime & shift allowances

* Please provide copies of any recent payslips (if available)

\$1300-1500

Please provide details of any overtime or shift work

Weekly shift allowance

2 hrs week admin

Weekly overtime

hrs

5. Treatment & return to work details

* This question is required for NSW claims

Who is your nominated treating doctor?*

Name Phone

Please provide the name, clinic or hospital, and contact details of
 any medical providers (including Clinics or Hospitals) that have
 treated your injury

If you have returned to work with your employer, what was the date?

What duties are you doing?

Full ☐Suitable/Modified ☐

How many hours are you working?

0

Have you returned to work with a new employer?

Please provide the name and contact details of the new employer

If you have not returned to work, do you think that there are any
 issues that would delay or prevent you from returning to work?

yes

When did/will you give your employer this claim form?

26/04/2021

How did/will you give this claim form to your employer?

Hand delivery ☐ By post ☐ email ☒

When did/will you give your employer the first medical certificate?

26/04/2021

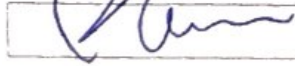
6. Authority to release medical information and worker's declaration

I have read the information provided in this form. I declare that the information that I have supplied in this form, and any attachments to this form, is true and correct to the best of my knowledge. I understand that the making of a false or misleading claim or false and misleading statement in support of the claim is punishable by law and that I may be prosecuted.

I authorise and consent to any person who provides a medical service or hospital service to me in connection with an injury/condition to which this claim relates to provide upon request by the workers' compensation authority, my employer or insurer/claims agent or any committee established under legislation to advise the workers' compensation authority, any information regarding the service relevant to the claim. I understand that my authority has effect and cannot be revoked for the duration of this claim.

Worker's signature

Date

 26/04/2021

* This declaration is also required for NSW claims

I authorise and consent to the collection, disclosure and release of any personal and health information in connection with an injury/condition to which the claim relates by the workers' compensation authority, my employer or insurer/claims agent to each other, or to any person who provides a medical service or hospital service to me in connection with an injury/condition to which this claim relates. I understand that if this claim results in my receiving weekly compensation payments, I am required to notify whomever is paying my benefits if I commence employment with some other person or in my own business, or of any change in my employment that affects my earnings, and that failure to do so is an offence. I consent to the State Insurer Regulatory Authority of NSW using the information collected in connection with my claim for the purposes of research about workers compensation, workplace injury management and occupational health and safety

Worker's Signature

Date

7. Employer lodgement details

When did the employer first receive the worker's completed claim form?



When did the employer first receive the worker's medical certificate?

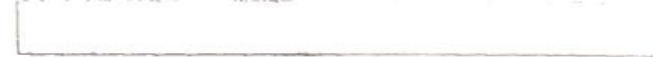


*This question is required for Victorian claims

Date claim form forwarded to Agent*



Estimated cost of claim to date



How many days have been lost?

Days	Hours
	

Employer's signature

Date

Name



Position



Employer's scheme registration number

eg. WorkCover Employer, Policy, or Employer Registration Number



Workplace Injury Rehabilitation and Compensation Act 2013

Worker's injury claim form

Collection of personal and health information to manage your claim*

In processing your claim, the Victorian WorkCover Authority (WorkSafe) and any WorkSafe Agent acting for WorkSafe in relation to your claim may collect personal and health information about you. WorkSafe and its Agents are required by law to ensure that all people about whom they collect personal and health information are provided with the following information:

WorkSafe is a body corporate established under the Victorian workers compensation legislation. Agents are appointed by WorkSafe under that legislation to act on its behalf in managing workers' compensation policies and claims for compensation.

Personal and health information about you is collected on this form and may also be collected during the processing, assessing and management of your claim. It may be collected from your current, previous and future employers, other government agencies, credit reporting agencies, health service providers and other persons who can provide information relevant to the claim.

Personal and health information about you may also be collected by solicitors, private investigators, loss adjusters and other service providers acting on behalf of WorkSafe or your employer's Agent. Personal and health information collected about you is used for the purpose of processing, assessing and managing your claim and to verify any evidence you may submit in support of the claim. The information may also be used for one or more of the purposes listed in Victorian workers compensation legislation for the purposes of legal proceedings arising under that legislation, to assist with your rehabilitation and return to work and to assist WorkSafe and Agents to better manage claims generally.

For the purposes of processing, assessing and managing your claim, WorkSafe and your employer's Agent may disclose personal and health information about you to each other and to the following types of organisations:

- employees, contractors and agents of WorkSafe and Agents
- your employers
- solicitors, medical practitioners and other health service providers, private investigators, loss adjusters and other service providers acting on behalf of WorkSafe or the Agent in relation to the claim
- the Accident Compensation Conciliation Service and Medical Panels
- any committee established under legislation to advise WorkSafe
- a court or tribunal in the course of criminal proceedings or any proceedings under any of the Acts which WorkSafe administers
- any other person, organisation or government agency authorised by you, or by law, to obtain the information.

Collection of this information may be required by Victorian workers compensation legislation. If you do not provide any part or all of this information, your claim may not be accepted or processed. You may request access to personal and health information about you collected by WorkSafe or your employer's Agent by contacting your employer's Agent.

Communicating with you

WorkSafe may use your email address or mobile telephone number for any purpose for which you provide it, including to send you personal and health information relating to your claim. Email and SMS are convenient and consistent methods of communication, but you should understand that they are not completely secure and there is a risk that they could be intercepted, read or modified by others or sent to an incorrect address. If you have any questions, or if you would like to update your contact details or change your preferences for how WorkSafe communicates with you, please contact us via the "Contact us" page on the WorkSafe website: [worksafe.vic.gov.au](https://www.worksafe.vic.gov.au).

WorkSafe's policies for managing personal and health information are set out in its Privacy Policy, which is available from your nearest WorkSafe office or at the WorkSafe website at [worksafe.vic.gov.au](https://www.worksafe.vic.gov.au). Information relating to your right to access your WorkSafe claim information is also available at the website.

(*If your injury employer is an approved self-insurer, references to 'WorkSafe' and 'Agent' should be read as if they were references to 'self-insurer' and 'approved agent of a self-insurer'.)

Calculating your entitlement to weekly payments

Weekly payments are calculated based on your pre-injury average weekly earnings (PIAWE), generally in the 52 weeks before your injury. If you have been with your employer for less than 52 weeks, your PIAWE will be your average weekly earnings in the period of actual employment.

What information your employer needs to provide about your earnings

To enable the WorkSafe Agent to calculate your PIAWE, your employer will need to provide details of the following payments made to you in the past 52 weeks of your employment, or if that was less than 52 weeks, in the period of your actual employment.

- Base rate of pay
- Overtime and shift allowances
- Piece rates, tally bonuses and commissions
- Non-pecuniary benefits including residential accommodation, use of a motor vehicle, payment of health insurance or payment of education fees
- Any salary sacrifice arrangements

Your employer will also need to tell the Agent if, in the 52 week period before the injury, your earnings increased due to a promotion, or if they decreased due to you voluntarily reducing your hours or changing the nature of your work with the employer.

If your earnings include any other items not listed above, please discuss this with your Agent.

svc_PROD_ADLIB

From: General.Enquiries <Enquiries.General@comcare.gov.au>
Sent: Thursday, 6 May 2021 12:03 PM
To: rich@richmclean.com.au
Cc: Claim.Correspondence
Subject: Claim 1326583/1[SEC=OFFICIAL:Sensitive]

Dear Dr McLean

We are writing to you to inform you that we have received your workers compensation claim. For your reference, your claim number is: 1326583/1 which will be used throughout the claim process.

What you need to know

A Comcare claims manager will contact you within the next business day by phone.

During this initial contact, the claims manager will discuss your claim and the claims process. They may also request additional information to help progress your claim. You will also have the opportunity to ask questions and learn more about the claim process.

Your claims manager is here to support you through the claims process.

Claim assessment

Following the initial contact, your claim will be assessed, and you will be informed if your claim has been accepted.

If your claim is accepted:

you will have access to medical and health treatments and services that are evidence based and will best support your recovery any treatment you do have will include clear recovery goals and ongoing measurement of your progress; and staying in or returning to good work will be part of your overall recovery and return to health as far as possible.

If your claim is not accepted, we will explain our decision. We will also inform you how you can get the decision reviewed and we will suggest other support services that are available to you.

Contact us

If you have any questions before your claims manager contacts you or you need support to communicate with us, please:

Email general.enquiries@comcare.gov.au and quote your claim number in the subject line.

Call our Contact Centre on 1300 366 979, Monday to Friday between 8.30 am and 5 pm AEST. Remember to have your claim number handy.

If you need an interpreter to speak with us, call the Translation and Interpreting Service (TIS National) on 131 450.

If you are deaf, or have a hearing or speech impairment, contact us through the National Relay Service (NRS) on 133 677 and ask for 1300 366 979.

If you would like to have a family member or representative communicate with us on your behalf, complete the Authority to Act on Employee s Behalf form and return it to general.enquiries@comcare.gov.au.

If you would like to provide us with feedback, please send an email to mailbox.feedback@comcare.gov.au or call us on 1300 366 979.

Your privacy

Your privacy is important to us and we are committed to the highest standards of privacy when we collect, store, use or disclose your personal information while we manage your claim. You can find more information about the steps we take to protect your privacy, or view our Privacy Policy, on our website.

A claims manager will be in contact with you soon. In the meantime, please visit our Comcare website for more information.

Thank you

Comcare
1300 366 979

Sensitive: This document may contain sensitive information as defined under Section 6 of the Privacy Act.



Australian Government

Comcare

e0615 - Claim Comments Report - On Request

Displays claim comments for nominated claim in reverse order of updating.
May be used for FOI requests. Includes comments flagged to span all claims for the employee.

1326583/1 - Richard William McLean

All comments

*Employee are claims tagged with (E)

1326583/1 - Richard William McLean

All comments

Created	Updated	Category	(Inactive) (E)*
15/06/2021		Comcare to Employee	
19/05/2021			

Note transferred from exercise book.

PC with EE

- EE advised that things have gone missing from his computer - he believes there is a conspiracy - some bad things have been happening.

- EE went to policy yesterday to report crimes - they wouldn't listen to him. - conspiracy, murder, medical malpractice, fraud, tax evasion, his emails have disappeared.

- EE advised he has spoken to Spine Lawyers.

- EE considers he is an employee - he has a tax invoice from NDIA - forward payment that supports this.

- EE said that we are perverting the course of justice and are pawns in this conspiracy against him.

- I advised that Amy has not declined his claim yet but has advised him that based on the current information, it appears that he is not an employee and unless he can provide us with further information such as his contract of employment then the claim will likely be declined.

- I asked EE about private insurance and previous claims but he told me that was none of his business. I

- advised that it is relevant because as a sole trader he would have to ensure he was insured.

- EE said he will put in an FOI request for his claim information. I advised that we can collate that under s59 for him.

- EE said that we are splitting hairs and are blocking him from getting a 'hell of a lot of money'. He mentioned he is currently squatting.

- EE advised he wants a decision asap and will provide a further statement to support his claim/response to the rebuttal. I advised that we will endeavour to get back to him by Monday. I advised we were happy to review any further supporting information he had.

LF

8/06/2021

Employee to Comcare

EE called advising that his computer has been hacked probably by the government and he has lost all the emails we sent to him including the determination. He asked that I email him a copy. He asked if I had any knowledge or information regarding the conspiracy to hacking his computer/emails because he is going to the Ombudsman. I advised that I did not.

EE asked me to email the determination to both his existing email and richarddrawstuff@gmail.com. He stayed on the line until he received the determination.

EE thanked me for my assistance.

LF

1326583/1 - Richard William McLean

[All comments](#)

Created

Updated

Category

(Inactive) (E)***26/05/2021****Comcare to Employer**

@ 4.28 left voicemail for Jo (RCM) advising comcarew have declined for EE (Richard) claim on the basis we are not satisfied he is an employee under our legislation. Advised i would email determination and for her to call if she has any questions

amy delzoppo

1326583/1 - Richard William McLean

All comments

Created Updated Category

(Inactive) (E)*

26/05/2021

Employee to Comcare

12.55 received call from Richard (EE) returning my call.

He requested i email him a copy of the written determination so he can engage in litigation. Confirmed i would email him a copy of the determination letter. Explained he has 30 days to request a reconsideration should he disagree with the decision. Explained if he requires longer he can request an EOT.

EE asked whether his claim has been accepted. I explained it has been declined on the basis we were not satisfied he was an employee under Comcare's legislation. He asked if he was not an employee of NIDA then who is he an employee of. Explained based on the information we had on file he is a sole trader and self-employed. He wanted to know whether we considered the debt he received from NDIA as evidence he is an employee. I explained we had considered this and on review of NDIA website it suggests all providers were offered an advance payment in response to covid and we were not satisfied this was enough to support he was an employee.

He said that his previous partner was involved in murder, rape and 1.3 billion tax invasion and only got a slap on the wrist. He can't go to the police, any government agency, victoria ombudsman, ect. He said I am a part of something higher than me and part of the conspiracy. EE asked if i received his email last night and i confirmed i had received it and read it. He said that he will be publicising mine and Lara's names naming us in his conspiracy. He will also be adding our names to his whistleblower statement for the police and the broad based anti corruption commission.

He wanted my opinion that I agreed it was none of Lara's business on whether he has private health insurance. I explained we are trying to assist him in understanding whether he may be entitled to insurance elsewhere. he said he did not think we were helping and were kicking the can along the road.

He wanted advice on who he should engage legally. I explained i could not provide him this advice and this is his decision. He said he wanted Comcare to arrange an advocate on his behalf. I explained Comcare cannot arrange an advocate for him. He said i was discriminating against him because he has a learning disability and may not be able to understand the determination letter. I confirmed the length of the letter. I asked whether he had anyone that could AOB who i could send the letter to and he said he couldn't think of anyone. I said he could discuss the letter with his GP. He said he does not have a GP. I asked whether he was seeing Dr Moore. He asked whether I had been in contact with Dr Moore. I explained Comcare had attempted to contact Dr Moore. EE said he did not give us permission to contact Dr Moore. I explained he had signed a workers compensation claim form and we had concerns about his welfare and wanted to discuss this with Dr Moore but had not received a callback from him to date.

He wanted to know what would happen if we had a person who was blind submit a claim and couldn't read the letter. I explained this is a hypothetical question and does not have relevance to his claim. I explained I would email the determination letter and appeal rights and if he had questions regarding the letter he could call me and we could discuss this further. He wanted to know whether we have addressed his rebuttal and i explained we have outlined the reasons why we do not consider he is an employee in the determination letter. He requested i send the email to him from my direct line and provide mine and Lara's email address, phone numbers and hours we work so he could contact us should he need to. He explained his emails had been disappearing.

He wanted to know why it has taken so long to reach a decision. I explained we wanted to allow him time to provide his contact with NDIA. He said if he provided this then would that prove he is an employee. I explained it would depend on what information is contained in the contract.

Confirmed i would email determination letter today. Thanks exchanged

amy delzoppo

1326583/1 - Richard William McLean

All comments

Created

Updated

Category

(Inactive) (E)*

26/05/2021

Comcare to Employee

@ 11.31 left viable voicemail for Richard (EE) advising I was calling to provide outcome of his workers compensation claim and requested a call back

amy delzoppo

25/05/2021

IMAS Service

Support required regarding determination

Declinature is due to occur as EE is not considered employee under legislation (sole contracted Provider - completed advocacy and support/tx services)

CM and AD noted that EE is highly distressed, previous history of self harm/extreme distress. EE has reported suicidal ideations and distress behaviour with processes and mental health.

Discussed EE wants outcome today. Agreed with all parties not appropriate for EE to receive letter after business hours and ideally not without support from GP (no other support person).

CM has attempted on several occasions to call GP and has not received response. IMAS agreed to call tonight whilst CM provides response to EE advising outcome would be provided tomorrow.

Follow up email sent to CM:

As discussed this evening, we have reviewed that the claimant is highly vulnerable and has reported high distress and suicidal ideation on several occasions.

The claims team have attempted to contact the GP on multiple occasions requesting a call back regarding the claimant's welfare and also support to release the determination given the possible risk to the claimant's wellbeing.

I contacted the clinic tonight and they confirmed Dr Moore was working till 6pm. I explained the situation, welfare concerns and the need for contact with Comcare to enable support for release of a determination or alternative to ensure a welfare call is completed in a timely manner. The receptionist initially advised she would get Dr Moore to complete a welfare call then to call Comcare. I requested that a phone call be made to Comcare first so that we could discuss the situation to ensure appropriate action is undertaken. The receptionist advised she would urgently flag with Dr Moore this evening and I confirmed we would be available until 6pm.

I called back at 5:55pm when no response was received. I remained on hold music until 6pm when the line cut out and I am no longer able to get through. Dr Moore does not work Wednesdays.

I would recommend that given Comcare's ongoing attempts to obtain GP support in the matter without success and in addition the claimant's requests and distress with a lack of outcome the following actions be considered (for your review Lara and Amy):

1. Contact the GP clinic tomorrow morning summarising the above and ask if Dr Moore provided a response tonight.
2. Provide a written letter to the practice outlining the attempts and the fact the determination is released and request the GP follow-up on contact.
3. Call the claimant tomorrow to verbally discuss the outcome prior to release of the letter this way if there are welfare concerns raised this can be escalated and IMAS/senior management can support and the CATT or police can be called to complete welfare to ensure safety.

FC

1326583/1 - Richard William McLean

All comments

Created	Updated	Category
25/05/2021		Comcare to Stakeholder

(Inactive) (E)*

25/05/2021 Comcare to Stakeholder

@ 1.54 called northside clinic s and asked to speak with doctor about releasing decision through him. Was told Dr Moore not available. Left my direct line for callback

Amy Delzoppo

24/05/2021 Comcare to Stakeholder

@ 4.35 called Dr Moore's rooms again and ask to speak with doctor. Spoke with receptionist they advised Dr Moore currently with a patient. Explained i was calling re their patient Richard. Receptionist advised Dr Moore working until 6 and i confirmed i would be i the office to 5.30. He said he would pass on message. Left my direct line

amy delzoppo

24/05/2021 Comcare to Stakeholder

@ 1.15 called Dr Moore's rooms again. Explained we have concerns with EE wellbeing and would like to issue an adverse decision through Dr Moore. Was advised Dr Moore not currently in but should be in this afternoon. Left my number for a call back from Dr Moore

amy delzoppo

21/05/2021 Comcare to Stakeholder

@ 10.44 called Dr Moore's room and spoke with receptionist. Asked to speak to Dr Moore about EE. Was advised Dr Moore does not start work until 1 todayand will call me when available. Left direct line

amy delzoppo

14/05/2021 Employer to Comcare

@ 2.45 spoke with Jo (RCM)

She advised she had sent me an email to generalenquiries with link the NDIS sole trader website which may have some info and contacts for EE. She explained as an NDIS sole traders do not have to have any insurance and its there choice should they wish to do this. She said its different if they have employees then its a requirement for the company to have workers comp for their employees.

Amy Delzoppo

14/05/2021 Comcare to Employer

@ 1.25 left viable voicemail for Jo (RCM) asking if she could give me a call re Ee claim. Explained i have sent her an email about whether she has any info of NDIS sole traders and possible insurance they may have. Apologies and explained i wasnt sure if she responded to general enquiries yet. Explained EE is adamant he is an NDIA employee and i want to try and assist him by giving him information on NDIS sole traders and who he could possibly contact

asked for call back

amy delzoppo

1326583/1 - Richard William McLean			All comments
Created	Updated	Category	(Inactive) (E)*
14/05/2021		Employee to Comcare	

@ 12.26 received call from Richard.

He said how can we say he is not an employee if he has a vendor number with NDIS and owes them money because of the advance payment they made during covid. He said he needs someone to advocate for his company he needs someone to advocate him. He said there are three ways he gets paid through NDIA.

Explained he could provide me with a copy of his contract with NDIA and i could look into this further for him. He said he does not have a copy of his contract because his computer broke and he did not print this out. I explained without the contract i will have to go based on the information before me. He asked that i request his contract from NDIA. I explained this will be difficult because NDIA are saying he is not an employee and they do not have any record of him in their system.

He disputes the information i provided him that he is not an employee. He said the NDIA are responsible for the way he completes his work and he has to follow their procedure and gets audited by them. He said he had to follow policies which provide guidance of standards of behaviour because he needs to report any incidents that happen to NDIA otherwise he can get in trouble and could be excluded from the job.

He said he was recording my phonecall and feels this is all conspiracy. He said no one wants to help him including the ombudsmen, centrelink, workcover, NDIS, Comcare. He said this is all about his ex partner trying to ruin his life. He said his ex partner worked for ASIO and was a tax evader of 1.2 billion dollars.

He said i was an evil prawn being controlled by someone higher up than me trying to protect him from getting workcover. I said i did not appreciate being called an evil prawn and if he continued to say things like that i would need to terminate the call. He apologized for calling me evil. I explained I am trying to help him but i really need a copy of his contract. I also explained I have contacted NDIA to see if they have any info on NDIS sole traders they can provide and possible contacts for him.

EE requested i respond to his latest email where he has provided evidence that NDIA have requested he pay back money. I explained i feel there is nothing further to respond to and that i will require his contract. He said that i cannot ignore his email and that he is recording me. He is also going to report my name to ombudsmen so they will likely be in contact with me. He requested Lara Fleming call him urgently. Confirmed i would get her to call

amy delzoppo

1326583/1 - Richard William McLean

All comments

Created

Updated

Category

(Inactive) (E)*

12/05/2021

Comcare to Employee

@ 4.00 returned call to EE (Richard)

Provided update explaining we have received email from NDIA and they have advised he is not an employee of them and they do not pay his wage. He wanted to know how that could be the case if he has PRODA access for NDIS and he is NDIS provider providing therapeutic treatment to NDIA clients. He said when he accesses PRODA he gets paid directly from NDIA. He said although he is a sole trader he gets paid by NDIA. I explained it sounds like he is a sole trader and provides therapeutic services to participants of NDIA but that does not mean he is an employee of NDIA.

EE requested i provide him the email sent by NDIA and the relevant legislation that says sole traders of NDIA are not covered by Comcare by tomorrow. He asked if we don't cover him then who does. I explained i could not advise this because i can only advise who Comcare does cover. I explained if he is a sole trader and cannot work he could look into his income protection. He said i have no idea what he has been through and he contacted his income protection and they declined him and continued to decline him even though he went to hospital and attempted suicide there. He said they won't respond to any of his queries or answer his calls. He said Comcare is an insurance agency and we are just trying to not pay him. I explained this was not the case and that under the legislation he needs to first meet the criteria of being an employee as defined under this legislation and based on the information from NDIA this does not support he is.

He said i needed to be a big girl and email him with the reason why as a sole trader of NDIA he is not covered and he needs this urgently because he is dying. Confirmed his best email and confirmed i would email him

amy delzoppo

12/05/2021

Comcare to Employer

@ 1.00 called Jo (RCM) to enquire whether she received the email about whether EE is an employee of NDIA. She said she responded this morning. She explained they have no record of him ever being an employee or contractor.

thanks exchanged

amy delzoppo

1326583/1 - Richard William McLean

All comments

Created Updated Category

(Inactive) (E)*

10/05/2021

Employee to Comcare

@ 12.26 received call from EE (Richard) he advised he received claim number and wanted to know if claim was accepted. I explained his claim has been registered but not accepted at this stage. Explained I am seeking clarification from NDIA on whether he is an employee of them. EE recalled conversation that Comcare may not cover him. I explained we cover commonwealth employees. He said he looked on comcare website and it says comcare covers NDIA. I confirmed we do cover NDIA employees but because he has indicated he is contracted we need to confirm with NDIA whether he is an employee or contracted by a different company. Asked whether he was paid by NDIA and he said he thought so. He said he works with NDIA and NDIS clients as well as other clients. I explained I have asked NDIA to confirm if he is an employee by Wednesday. I explained if he is an employee we can then start assessment process such as requesting reports from his doctors and a details statement from him. Advised NDIA will also be offered opportunity to provide statement as well.

I clarified with Richard multiple times that NDIA confirming he is an employee does not mean his claim is accepted. I explained there is certain criteria Comcare has to be satisfied of before we can accept a claim. He asked how long the process would take. I explained it can take up to 60 days but it is dependent on how quickly requested information is received. He said he would follow up with doctor Moore immediately and get him to action the report. He said he also has information on when he was incarcerated in hospital for suicide watch. He wanted to know who would cover him if it's not comcare. I explained it should be on his contract who covers his workers comp. He said he would look.

He expressed concern that his family is saying his rent and they can only do this for next 30 days. He is too unwell to work. He is anxious to get an outcome. He can't afford to feed his dog. He wanted to know how Comcare arranges his psych treatment. I explained comcare cannot arrange or recommend any treatment providers and this is up to him and his doctor to arrange. He said even after his hospital stay no one has referred him to a psychologist or psychiatrist. He said the psychiatrist at the hospital would not give him the medication he needs. He is looking into suing the hospital and that's why they won't help him. I asked about his relationship with doctor Moore and he said he has been a patient for 5 years but cannot comment on the relationship.

He wanted to know how many claims are accepted by me. I explained I could not provide this number and every claim is assessed on its own merit based on the information on hand. He wanted an exact timeframe for a decision, I explained I could not provide the exact timeframe because it is dependant on how quickly information is received.

He asked I contact him at 3 on Wednesday to provide an update on what NDIA have said.

amy delzoppo

10/05/2021

Comcare to Employer

PC to Jo AD
left voice msg requesting a call back.

LF

1326583/1 - Richard William McLean

All comments

Created

Updated

Category

(Inactive) (E)*

10/05/2021

Comcare to Employee

6/05/2021 - PC to EE

Confirmed receipt of his claim and advised that he indicated he was a registered NDIS provider. I advised that we need to seek clarification from the NDIA because if he is a provider for a contract for service than he is unlikely to be classified as an 'employee' under the SRC Act which means the Comcare scheme does not cover him. EE requested this information in writing. I confirmed that once i've sought clarity from the Agency we would advise him in writing.

- EE advised that his income protection didn't pay out because stress isn't a diagnosis. Later in the conversation EE then said that his claim was declined because his condition arose as a result of financial stress.
- EE advised he was homeless, squatting and then hospitalised.
- EE noted that his former partner worked at ASIO and has sown to ruin him - he believes there are handover tactics at play. His former partner was involved in a murder situation and was a tax evader.
- EE feels there is a conspiracy against him and he is frustrated at the parties that are involved- he is still fighting for justice.
- EE advised that he survived 2 murder attempts
- EE feels marginalised and has been battling for justice for the last 4 years. Court said he was doomed to fail.
- EE has ADHD. He sees Dr Moore - he doesn't see a GP.
- EE obtained his masters and PHD before helping people with sexual abuse history made him unable to work.
- EE is an advocate for people who are less advantageous than him. - he wants to spread kindness, help and knowledge.
- EE has his own ABN and website richmclean.com.au. He is a sole trader.
- I advised EE that we would provide further information to EE once we have sought clarification from the NDIA.
- EE advised he preferred email correspondence and wanted a detailed explanation and legislation as to why he isn't covered under the scheme. I confirmed we would provide him with an update/next steps soon.

LF

end of comment list